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(of 6), by E. Benjamin Andrews

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[Transcriber's Notes]

The debt of England caused by the French and Indian War of 140,000,000 Pounds sterling is equivalent to about 19,000,000,000 Pounds in 2006.

Thomas Paine's pamphlet "Common Sense" is available at <http://www.gutenberg.org/dirs/etext03/comsn10a.txt>

The blank pages correspond to blanks pages in the original, usually the back of image plates or the beginning of chapters. Some blank pages are numbered, some are not. Text has been moved to avoid fragmentation of sentences.

This is a list of unfamiliar (to me) words.

abatis

Defensive obstacle made by laying felled trees on top of each other with branches, sometimes sharpened, facing the enemy.

appanage

Land or other source of revenue for the maintenance of a member of the family of a ruling house. Whatever belongs rightfully to one's rank or station in life. Natural or necessary accompaniment; adjunct.

From the Latin "panis"--bread or "apanar"--to nourish.

Aristides

Athenian statesman and general who fought at Marathon and Salamis. A central figure in the confederation known as the Delian League.

encomia

Formal expression of praise; eulogy; tribute.

entails

To limit the inheritance of property to a specified succession of heirs.

exigency

Requiring much effort or immediate action; urgent; pressing.

finical

Exacting about details; finicky; fussy; very particular.

indite

Compose or write.

lief

Gladly; willingly.

mooted

Hypothetical case argued by law students as an exercise. An ancient English meeting of the freemen of a shire. To discuss or debate.

recreant

Cowardly, craven, unfaithful, disloyal, traitorous, apostate, renegade.

subaltern

Lower in position or rank. British military rank below captain.

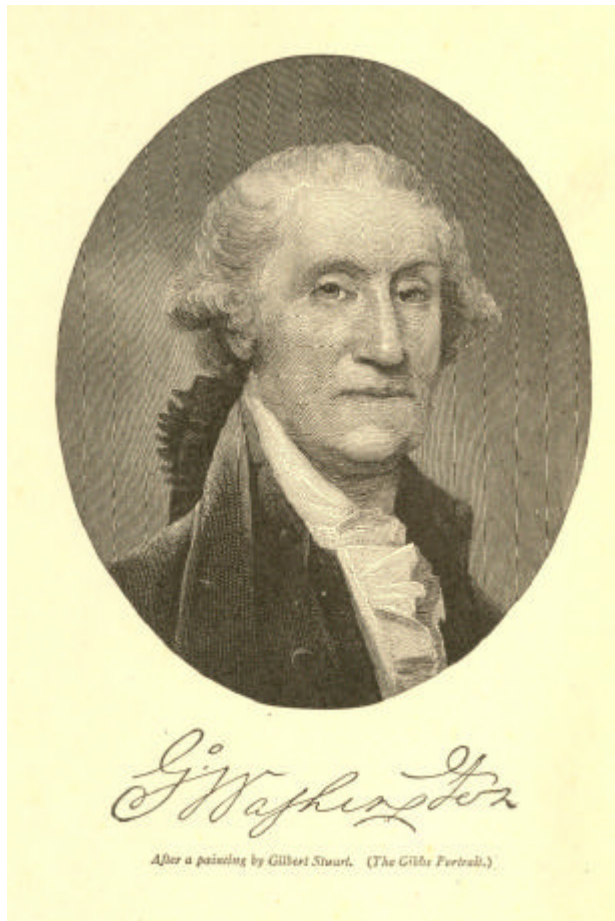
primogeniture

System of inheritance by the eldest son.

whilom

Former; erstwhile; at one time.

[End Transcriber's Notes]



After a painting by Gilbert Stuart. (The Gibbs Portrait.)

HISTORY OF THE UNITED STATES
FROM THE EARLIEST DISCOVERY OF AMERICA
TO THE PRESENT TIME

By
E. BENJAMIN ANDREWS
CHANCELLOR OF THE UNIVERSITY OF NEBRASKA
FORMERLY PRESIDENT OF BROWN UNIVERSITY

With 650 Illustrations and Maps

VOLUME II.

NEW YORK

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1912

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PERIOD III.

REVOLUTION AND THE OLD CONFEDERATION

1763-1789

CHAPTER I.

RESULTS OF THE FRENCH AND INDIAN WAR

The results of the French and Indian War were out of all proportion to the scale of its military operations. Contrasted with the campaigns which were then shaking all Europe, it sank into insignificance; and the world, its eyes strained to see the magnitude and the issue of those European wars, little surmised that they would dictate the course of history far less than yonder desultory campaigning in America. Yet here and there a political prophet foresaw some of these momentous indirect consequences of the war.

"England will ere long repent," said Vergennes, then the French ambassador at Constantinople, "of having removed the only check that could keep her colonies in awe. They no longer stand in need of her protection. She will call on them to contribute toward supporting the burdens they have helped to bring upon her, and they will answer by striking off all dependence." This is, in outline, the history of the next twenty years.

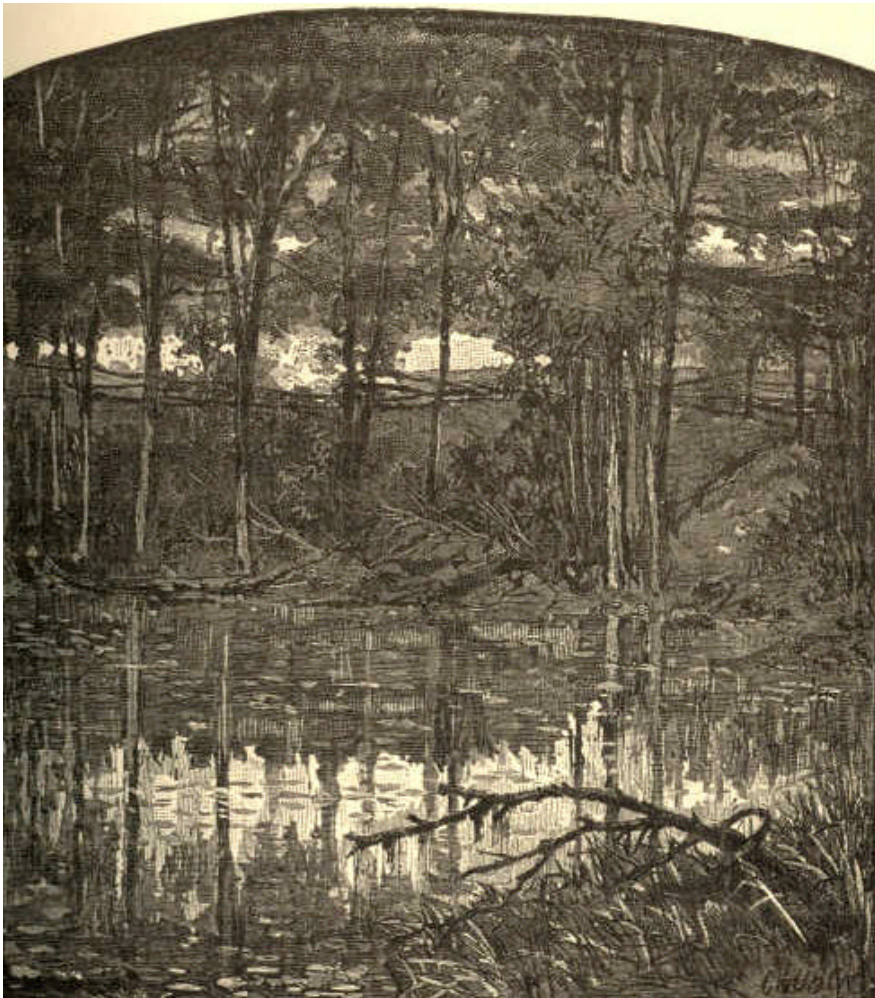
The war in Europe and America had been a heavy drain upon the treasury of England. Her national debt had doubled, amounting at the conclusion of peace to 140,000,000 Pounds sterling. The Government naturally desired to lay upon its American subjects a portion of this burden, which had been incurred partly on their behalf. The result was that new system of taxation which the king and his ministers sought to impose upon the colonies, and which was the immediate cause of the Revolution. The hated taxes cannot, of course, be traced to the French and Indian War alone as their source.

England had for years shown a growing purpose to get revenue out of her American dependencies; but the debt incurred by the war gave an animus and a momentum to this policy which carried it forward in the face of opposition that might otherwise have warned even George III. to pause ere it was too late.

While the war thus indirectly led England to encroach upon the rights of the colonies, it also did much to prepare the latter to resist such encroachment. It had this effect mainly in two ways: by promoting union among the colonies, and by giving to many of their citizens a good training in the duties of camp, march, and battle-field.

The value to the colonists of their military experience in this war can hardly be overestimated. If the outbreak of the Revolution had found the Americans a generation of civilians, if the colonial cause had lacked the privates who had seen hard service at Lake George and Louisburg, or the officers, such as Washington, Gates, Montgomery, Stark, and Putnam, who had learned to fight successfully against British regulars by fighting with them, it is a question whether the uprising would not have been stamped out, for a time at least, almost at its inception.

Especially at the beginning of such a war, when the first necessity is to get a peaceful nation under arms as quickly as possible, a few soldier-citizens are invaluable. They form the nucleus of the rising army, and set the standard for military organization and discipline. In fact, the French and Indian War would have repaid the colonies all it cost even if its only result had been to give the youthful Washington that schooling in arms which helped fit him to command the Continental armies. Without the Washington of Fort Mifflin and of Braddock's defeat, we could in all likelihood never have had the Washington of Trenton and Yorktown. Besides Washington, to say nothing of Gates, Gage, and Mercer, also there, Dan Morgan, of Virginia, began to learn war in the Braddock campaign.



Bloody Pond, near Lake George, which is said to still contain the bones of many of those who fell in the fight at Fort William Henry.

Again, the war prepared the colonists for the Revolution by revealing to them their own rare fighting quality, and by showing that the dreaded British regulars were not invincible. No foe would, at Saratoga or Monmouth, see the backs of the men who had covered the redcoats' retreat from the field of Braddock's death, scaled the abatis of Louisburg, or brained Dieskau's regulars on the parapet of Fort William Henry.

But there was one thing even more necessary to the Revolutionists than skill at arms, and that was union. Their only hope of successful resistance against the might of England lay in concerted action, and perhaps the most important result of the long war through which they had been passing was the sense of union and of a common cause with which it had inspired the thirteen colonies. This feeling was of course still none too intense. But during the long war the colonies had drawn nearer to one another than ever before. Soldiers from New Hampshire and North Carolina, from Virginia and Massachusetts, bivouacked together, and fought shoulder to shoulder. Colonial officers forgot local jealousies in a common resentment of the contempt and neglect shown them all alike by the haughty subalterns of the king.

Mutual good-will was fostered by the money and troops which the southern and less exposed colonies sent to their sister commonwealths on the frontier. In these and numberless minor ways a community of sentiment was engendered which, imperfect as it was, yet prepared the way for that hearty co-operation which was to carry the infant States through the fiery trial just before them.

It is important to remember, as well, not only that the war built up this conviction of a common interest, but that nothing except the war could have done it. The great forces of nineteenth-century civilization--the locomotive, the telegraph, the modern daily newspaper--which now bind sixty millions of people, spread over half a continent, into one nation, were then unknown. The means of communication and transportation between the colonies were very primitive. Roads were rough, full of steepes and cuts, and in many places, especially near cities, almost impassable with mire.

It took seven days to go by stage from Philadelphia to Pittsburgh, four days from Boston to New York. The mail service was correspondingly inadequate and slow. At times in winter a letter would be five weeks in going from Philadelphia to Virginia. The newspapers were few, contained little news, and the circulation of each was necessarily confined to a very limited area. It has been estimated that the reading-matter in all the forty-three papers which existed at the close of the Revolution would not fill ten pages of the New York *Herald* now. In connection with this state of things consider the fact that the idea of colonial solidarity had not then, as now, merely to be sustained. It had to be created outright. Local pride and jealousy were still strong. Each colony had thought of itself as a complete and isolated political body, in a way which it is difficult for us, after a hundred years of national unity, to conceive. Plainly a lifetime of peace would not have begotten the same degree of consolidation among the colonies which the war, with its common danger and common purpose, called into being in a half-dozen years.

The war did yet another important service by removing a dangerous neighbor of the colonies. So long as France, ambitious and warlike, kept foot-hold in the New World, the colonies had to look to the mother-country for protection. But this danger gone, England ceased to be necessary to the safety of the embryo political communities, and her sovereignty was therefore the more readily renounced. English statesmen foresaw this danger before the Peace of Paris, and but for the magnanimity of Pitt our western territory might after all have been left in the hands of France.

And the cession of Canada, besides removing an enemy, helped to transform that enemy into an active friend. Had France retained her possessions in America, she would still have had an interest in maintaining the colonial system, and it is doubtful if even her hatred of England would have induced her to aid the rebellious colonies. But, her dream of a great Western empire forever dispelled, she had much to gain and nothing to lose by drawing sword for the American cause. The British defeated the French at Quebec only to meet them again at Yorktown.

One more result remains to be noted, without which what has preceded would lose half its significance. By the Peace of Paris England succeeded to all of France's possessions in America east of the Mississippi; but the most valuable part of this great territory she won only to hold in trust a few years for her colonial children. The redcoats under Amherst and Wolfe, who thought they were fighting for King George, were in reality winning an empire for the Young Republic. It is not easy to feel the full significance of this. The colonies might, indeed, have won independence even if France had retained her grasp on the valley of the Mississippi; but so long as the new-born nation was shut up to a narrow strip along the Atlantic coast, it would have been a lion caged.

The "conquest of Canada," says Green, "by ... flinging open to their energies in the days to come the boundless plains of the West, laid the foundation of the United States."

CHAPTER II.

GEORGE III. AND HIS AMERICAN COLONIES

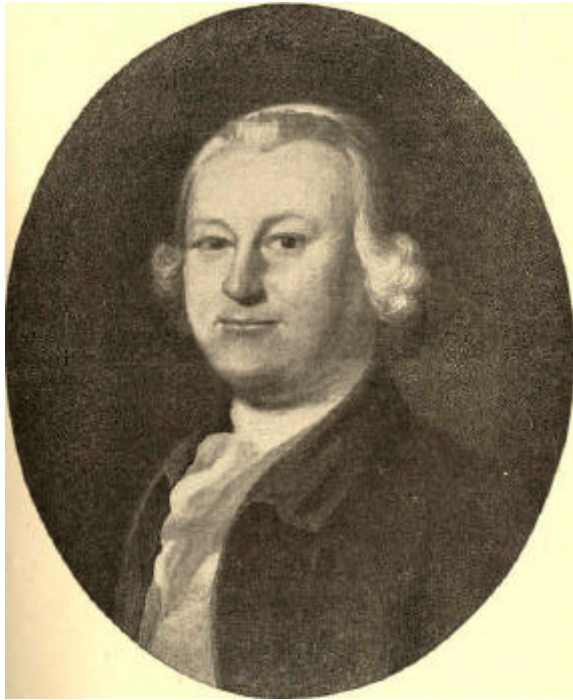
The year after the capture of Quebec a young king ascended the throne of England, whose action was to affect profoundly the fortunes of the American colonies. Of narrow mental range and plebeian tastes, but moral, sincere, and stout-hearted, George III. assumed the crown with one dominant purpose--to *rule* personally; and the first decade of his reign was a constant struggle to free himself from the dictation of cabinet ministers. In 1770, during the premiership of North, who was little more than his page, the king gained the day; and for the next dozen years he had his own way perfectly. All points of policy, foreign and domestic, even the management of debates in Parliament, he was crafty enough to get into his hands. To this meddling of his with state affairs, his impracticable and fickle plans, and the stupidity of the admirers whom his policy forced upon him, may be traced in very large measure the breach between England and the colonies.

The Revolution, however, cannot be wholly accounted for by any series of events which can be set down and labelled. The ultimate causes lie deeper. Three thousand miles of ocean rolled between England and the colonies. A considerable measure of colonial self-government was inevitable from the first, and this, by fostering the spirit of independence, created a demand for more and more freedom. The social ties which had bound the early Pilgrims to their native land grew steadily weaker with each new generation of people who knew no home but America. The colonists had begun to feel the stirrings of an independent national life. The boundless possibilities of the future on this new continent, with its immense territory and untold natural wealth, were beginning to dawn upon them. Their infancy was over. The leading-strings which bound them to the mother-country must be either lengthened or cast off altogether.



King George III.

But England did not see this. Most Englishmen at the beginning of George III.'s reign regarded the colonies as trading corporations rather than as political bodies. It was taken for granted that a colony was inferior to the mother-country, and was to be managed in the interests of the commercial classes at home. Conflict was therefore inevitable sooner or later. We have to trace briefly the chief events by which it was precipitated.



James Otis, Jr.

In 1760-61 England tried to enforce the navigation laws more strictly. Writs of assistance issued, empowering officers to enter any house at any time, to search for smuggled goods. This measure aroused a storm of indignation. The popular feeling was voiced, and at the same time intensified, by the action of James Otis, Jr., a young Boston lawyer, who threw up his position as advocate-general rather than defend the hated writs, which he denounced as "instruments of slavery." "Then and there," said John Adams, "the trumpet of the Revolution was sounded."

In May, 1764, a report reached Boston that a stamp act for the colonies had been proposed in Parliament, to raise revenue by forcing the use in America of stamped forms for all sorts of public papers, such as deeds, warrants, and the like. A feeling of mingled rage and alarm seized the colonists. It seemed that a deliberate blow was about to be struck at their liberties. From the day of their founding the colonies had never been taxed directly except by their own legislatures. Massachusetts, New York, Rhode Island, Connecticut, Pennsylvania, and Virginia at once sent humble but earnest protests to Parliament against the proposed innovation.

The act was nevertheless passed in March of the next year, with almost no opposition. By its provisions, business documents were illegal and void unless written on the stamped paper. The cheapest stamp cost a shilling, the price ranging upward from that according to the importance of the document. The prepared paper had to be paid for in specie, a hardship indeed in a community where lawsuits were very common, and whose entire solid coin would not have sufficed to pay the revenue for a single year. Even bitterest Tories' declared this requirement indefensible. Another flagrant feature of the act was the provision that violators of it should be tried without a jury, before a judge whose only pay came from his own condemnations.



Burning the Stamps in New York.

The effect upon the colonies was like that of a bomb in a powder-magazine. The people rose up *en masse*. In every province the stamp-distributor was compelled to resign. In Portsmouth, N. H., the newspaper came out in mourning, and an effigy of the Goddess of Liberty was carried to the grave. The Connecticut legislature ordered a day of fasting and prayer kept, and an inventory of powder and ball taken. In New York a bonfire was made of the stamps in the public square. The bells in Charleston, S. C., were tolled, and the flags on the ships in the harbor hung at half-mast. The colonists entered into agreements to buy no goods from England until the act was repealed. Even mourning clothes, since they must be imported, were not to be worn, and lamb's flesh was abjured that more wool might be raised for home manufacture. England's colonial trade fell off so alarmingly in consequence that Manchester manufacturers petitioned Parliament to repeal the act, asserting that nine-tenths of their workmen were idle.

Besides these popular demonstrations, delegates from nine colonies met in New York, in October, 1765, often called the Stamp Act Congress, and adopted a declaration of rights, asserting that England had no right to tax them without their consent. During the days of the Stamp Act excitement, the term "colonist" gave way to "American," and "English" to "British," a term of the deeper opprobrium because Bute, the king's chief adviser, was a Briton.

Startled by this unexpected resistance, Parliament, in January of the next year, began to debate repeal. We must in fairness to England look at both sides of the problem of colonial taxation. As general administrator of colonial affairs, the English Government naturally desired a fixed and certain revenue in America, both for frontier defence against Indians and French and for the payment of colonial governors.

While each stood ready to defend its own territory, the colonies were no doubt meanly slow about contributing to any common fund. They were frequently at loggerheads, too, with their governors over the question of salaries. On the other hand, the colonists made the strong plea that self-taxation was their only safeguard against tyranny of king, Parliament, or governor.

In the great debate which now ensued in Parliament over England's right to tax America, Mansfield, the greatest constitutional lawyer of his day, maintained--*first*, that America was represented in Parliament as much as Manchester and several other large cities in England which elected no members to the House of Commons, and yet were taxed; and, *second*, that an internal tax, such as that on stamps, was identical in principle with customs duties, which the colonies had never resisted. In reply, Pitt, the great champion of the colonies, asserted-- *first*, that the case of the colonies was not at all like that of Manchester; the latter happened not to be represented at that time because the election laws needed reforming, while the colonies, being three thousand miles away, could in the nature of the case never be adequately represented in an English Parliament; and, *second*, that as a matter of fact a sharp distinction had always, since the Great Charter, been made between internal taxation and customs duties.

Had the colonies rested their case upon constitutional argument alone it would have been relatively weak. While it was then a question, and will be forever, whether the American settlements were king's colonies, Parliament's colonies, or neither, but peculiar communities which had resulted from growth, the English lawyers had a good deal of logic on their side. Unconstitutional measures had indeed been resorted to--the writs of assistance, taking Americans beyond sea for trial, internal taxation; yet the real grievance lay far less in these things than in the fact that the English constitution itself was working in a manner contrary to colonial interests. Social considerations, too, accounted for more bitterness than has usually been thought. Our fathers hated the presence here of a privileged class.

George III.'s policy was therefore wiser legally than politically. This was, in fact, his ministry's capital mistake--like Lord Salisbury's in respect to Ireland in 1888--that it had too great regard for the mere legal aspect of the question, ignoring the practical. The colonists were too numerous, powerful, and far away, longer to be governed from home, at least by the old plan. To attempt perpetuation of the old *regime* might be lawful, but was certainly impracticable and stupid. Hence Americans like Jefferson showed themselves consummate politicians in going beyond Pitt's contention from the constitution and from precedent, and appealing to the "natural rights" of the colonists. "Our rights," said Otis, in substance, "do not rest on a charter, but are inherent in us as men." "The people" said John Adams in 1765, "have rights antecedent to all earthly government."

The Stamp Act was repealed in February. Its principle, however, was immediately re-asserted by the "Declaratory Act," in which Parliament claimed power over the colonies "in all cases whatsoever." The repeal caused great rejoicing in America; but neither king nor Parliament had changed policy respecting colonial affairs. There soon followed, in rapid succession, that series of blundering acts of oppression which completed the work begun by the Stamp Act, and drove the colonists into rebellion.

In 1767 duties were laid upon glass, paper, painters' colors, and tea. Massachusetts, again taking the lead, sent a circular-letter to all the colonies, proposing a united supplication to the throne. For refusal to rescind this letter the Massachusetts assembly was dissolved at the command of the angry king. This refusal was the first denial of the king's prerogative; only the authority of Parliament had been resisted before. The soul of the colonial cause in Massachusetts at this time was Samuel Adams, of Boston, "the last of the Puritans," a man of powerful and logical mind, intrepid heart, and incorruptible patriotism.

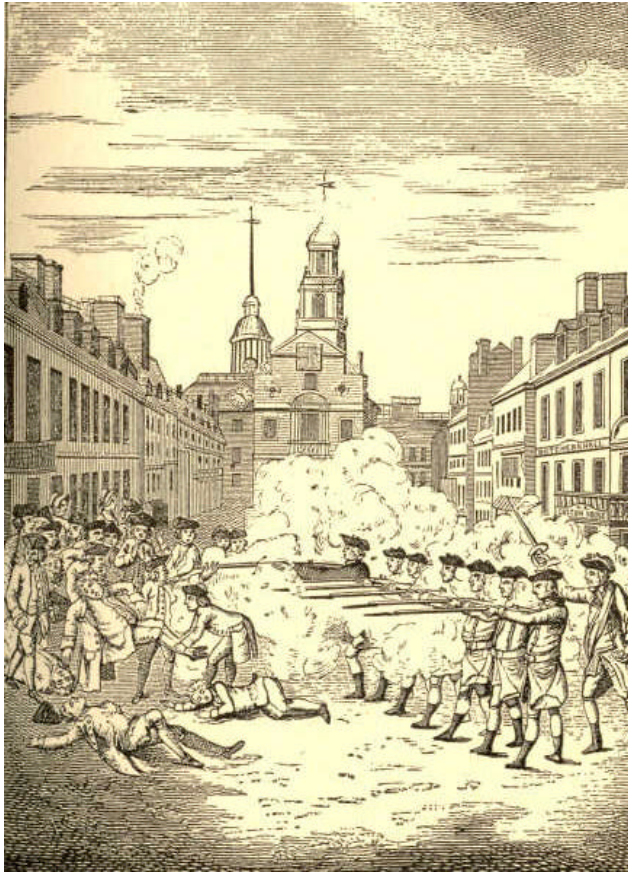
America's debt to him for his work in these early years cannot be estimated. At this juncture he organized committees of safety and correspondence throughout Massachusetts, which led to the formation of such committees in the other colonies. They did an invaluable work in binding the scattered sections together, and providing for emergencies.

The Billeting Act, which required the colonists to lodge and feed the British troops quartered among them, added fuel to the flames. In 1768 the New York legislature refused to comply, and Parliament suspended its legislative functions.

In the fall of the same year, seizing as a pretext two ship-riots which had occurred in the summer, the king stationed four regiments in Boston. Public sentiment was shocked and indignant at this establishment of a military guard over a peaceable community. The presence of the soldiers was a constant source of irritation.

Frequent altercations occurred between the soldiers and the lower class of citizens. The trouble culminated in the Boston Massacre of March 5, 1770. A squad of soldiers, set upon by a mob of men and boys, fired into the crowd, killing three persons and wounding eight others. That the soldiers had considerable justification is proved by the fact that a jury acquitted all but two, who were convicted of manslaughter, and branded. But exaggerated reports of the occurrence spread like wildfire throughout the colonies, and wrought powerfully for hatred against England.

During the next two or three years there was comparative quiet. Massachusetts, it is true, under the tutelage of Samuel Adams, grew more radical in its demands. In 1772 the committee of Boston issued a statement of grievances, adding, as new complaints, the sending of persons to England for trial, restraints upon colonial manufacturers, and a rumored plan to establish bishops over America. This statement was approved by all the colonies, and was sent to Franklin in London. The country as a whole, however, was weary of the strife, and would gladly have returned to the old cordial relations with the mother-land.



The Boston Massacre.
From an Engraving by Paul Revere.

But George III. could not rest without asserting his supremacy over America. He made an arrangement with the East India Company by which tea could be bought in America, spite of the hated tax, cheaper than in England. Then, at the king's instigation, large shipments of tea were made to America. The colonists saw through the cunning attempt, and the tide of resistance rose higher than ever. At New York and Philadelphia the tea-ships were forced to put to sea again without unlading. At Charleston the tea was stored in damp cellars and soon spoiled. At Boston there was a deadlock; the people would not let the tea be landed; the governor would not let the ships sail without unlading. On the evening of December 16, 1773, the tax falling due on the next day, a party of fifty citizens, disguised as Indians, boarded the ships, and threw three hundred and forty-two chests of tea into the harbor.

The Boston tea-party aroused all the blind obstinacy of George III. "Blows must decide," he exclaimed; "the guilty rebels are to be forced to submission," The king's anger led to the Boston Port Bill, which was passed the next year, and closed Boston harbor to all commerce. Changes were also made in the government of Massachusetts, rendering it almost entirely independent of the people. Town meetings were forbidden except for elections. Poor Massachusetts, her liberties curtailed, her commerce ruined, appealed to her sister colonies for support, and they responded right heartily. In three weeks from the news of the Port Bill all the colonies had made the cause of Massachusetts their own. Expressions of sympathy and liberal gifts of money and provisions poured into Boston from all over the country. The first Continental Congress assembled at Philadelphia in September. All the colonies but Georgia were represented. An earnest statement of grievances was drawn up, with a prayer to the king for redress. The action of Massachusetts was approved, and an agreement entered into to suspend all commerce with England.

Things now hastened rapidly toward open war. British troops were stationed in Boston, and began fortification. Military preparations were making everywhere among the colonists. The train was laid. Only a spark was needed to bring the dreaded explosion.

CHAPTER III.

INDEPENDENCE AND THE NEW STATES

The thought of independence in the minds of the colonists was of surprisingly slow growth. The feeling of dependence on the mother-country and of loyalty to the king was deep-rooted and died hard. Even union, which was a pre-requisite to a successful struggle for independence, came slowly. The old New England Confederation, in 1643-84, between Massachusetts Bay, Plymouth, Connecticut, and New Haven, for defence against Indians, Dutch, and French, ended without ever having manifested the slightest vigor. In the latter half of the seventeenth century Virginia had alliances with some sister colonies for protection against Indians; but there was no call for a general congress until the French and Indian attack on Schenectady, in 1690, during King William's War.

Representatives from New York, Connecticut, Massachusetts, and Plymouth met that year at New York; letters came from Virginia, Maryland, and Rhode Island. But no permanent union was proposed here, nor at any of the similar meetings, seven at least, which occurred between 1690 and 1750.

The Albany Convention, which met in 1754 to prepare for the French and Indian War, adopted a plan for union presented by Franklin, providing for a president-general appointed and supported by the Crown, and for a grand council of delegates elected triennially by the colonies according to population, and empowered, within limits, to lay taxes and make laws for the common interest of English America. Franklin believed that the adoption of this scheme would have postponed the Revolution a century. But, as it gave so much power to the king, it was rejected by the people in every colony.

Even after English oppression and the diligent agency of committees of correspondence had brought union, and delegates from the colonies had met again and again in Congress, the thought of breaking away from the mother-land was strange to the minds of nearly all. The instructions to the delegates to the first Congress, in September, 1774, gave no suggestion of independence. On the contrary, colony after colony urged its representatives to seek the restoration of "harmony and union" with England. This Congress branded as "calumny" the charge that it wished "independency." Washington wrote, from the Congress, that independence was then not "desired by any thinking man in America."



Pine Tree Flag of Massachusetts.
"AN APPEAL TO HEAVEN"



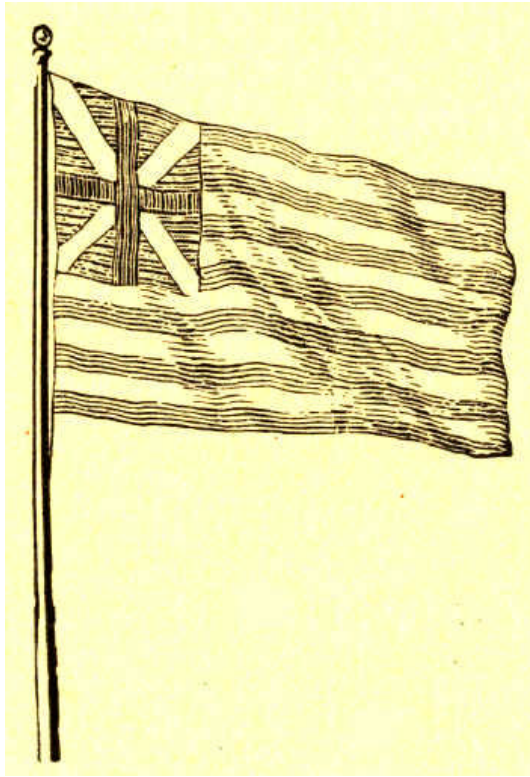
Rattlesnake Flag of South Carolina.
"DON'T TREAD ON ME"

The feeling was much the same in 1775. Pennsylvania "strictly" commanded her representatives to dissent from any "proposition that may lead to separation." Maryland gave similar instructions in January, 1776. Independence was neither the avowed nor the conscious object in defending Bunker Hill, June 17, 1775. Washington's commission as commander-in-chief, two days later, gave no hint of it. And the New Hampshire legislature so late as December 25, 1775, in the very act of framing a new state government, "totally disavowed" all such aim. In the fall of 1775 Congress declared that it had "not raised armies with the ambitious design of separation from Great Britain."

The swift change which, a little more than six months later, made the Declaration of Independence possible and even popular, has never yet been fully explained. In May, 1775, John Adams had been cautioned by the Philadelphia Sons of Liberty not to utter the word independence. "It is as unpopular," they said, in "Pennsylvania and all the Middle and Southern States as the Stamp Act itself."

Early in 1776 this same great man wrote that there was hardly a newspaper in America but openly advocated independence. In the spring of 1776 the conservative Washington declared, "Reconciliation is impracticable. Nothing but independence will save us." Statesmen began to see that longer delay was dangerous, that permanent union turned upon independence, and that, without a government of their own, people would by and by demand back their old constitution, as the English did after Cromwell's death. "The country is not only ripe for independence," said Witherspoon, of New Jersey, debating in Congress, "but is in danger of becoming rotten for lack of it."

Colony after colony now came rapidly into line. Massachusetts gave instructions to her delegates in Congress, virtually favoring independence, in January, 1776. Georgia did the same in February, South Carolina in March. Express authority to "concur in independency" came first from North Carolina, April 12th, and the following May 31st Mecklenburg County in that State explicitly declared its independence of England. On May 1st Massachusetts began to disuse the king's name in public instruments. May 4th, Rhode Island renounced allegiance almost in terms.



Union Flag. The first recognized Continental Standard,
raised for the first time January 2, 1776.

On May 15th brave old Virginia ordered her delegates in Congress to bite right into the sour apple and propose independence. Connecticut, New Hampshire, Delaware, New Jersey, and Pennsylvania took action in the same direction during the following month.

The king's brutal attitude had much to do with this sudden change. The colonists had nursed the belief that the king was misled by his ministers. A last petition, couched in respectful terms, was drawn up by Congress in the summer of 1775, and sent to England. Out of respect to the feelings of good John Dickinson, of Pennsylvania, who still clung to England, this address was tempered with a submissiveness which offended many members. On its being read, Dickinson remarked that but one word in it displeased him, the word "Congress;" to which Colonel Ben Harrison, of Virginia, retorted that but one word in it pleased him, and that "Congress" was precisely the word.

The appeal was idle. The king's only answer was a violent proclamation denouncing the Americans as rebels. It was learned at the same time that he was preparing to place Indians, negroes, and German mercenaries in arms against them. The truth was forced upon the most reluctant, that the root of England's obduracy was in the king personally, and that further supplications were useless. The surprising success of the colonial arms, the shedding of blood at Lexington, Concord, and Bunker Hill--all which, remember, antedated the Declaration--the increase and the ravages of the royal army and navy in America, were all efficient in urging the colonists to break utterly and forever from the mother-country.

The behavior of the Gaspe officers in Narragansett Bay, their illegal seizures, plundering expeditions on shore, and wanton manners in stopping and searching boats, illustrate the spirit of the king's hirelings in America at this time. At last the Rhode Islanders could endure it no longer. Early on the morning of June 9, 1772, Captain Abraham Whipple, with a few boatloads of trusty aides, dropped down the river from Providence to what is now called Gaspe Point, six or seven miles below the city, where the offending craft had run aground the previous evening in giving chase to the Newport-Providence packet-boat, and after a spirited fight mastered the Gaspe's company, put them on shore, and burned the ship. There would be much propriety in dating the Revolution from this daring act.

Nor was this the only case of Rhode Island's forwardness in the struggle. December 5, 1774, her General Assembly ordered Colonel Nightingale to remove to Providence all the cannon and ammunition of Fort George, except three guns, and this was done before the end of the next day. More than forty cannon, with much powder and shot, were thus husbanded for service to come. News of this was carried to New Hampshire, and resulted in the capture of Fort William and Mary at New Castle, December 14, 1774, which some have referred to as the opening act of the Revolution. This deed was accomplished by fourteen men from Durham, who entered the fort at night when the officers were at a ball in Portsmouth. The powder which they captured is said to have done duty at Bunker Hill.

Most potent of all as a cause of the resolution to separate was Thomas Paine's pamphlet, "Common Sense," published

in January, 1776, and circulated widely throughout the colonies. Its lucid style, its homely way of putting things, and its appeals to Scripture must have given it at any rate a strong hold upon the masses of the people. It was doubly and trebly triumphant from the fact that it voiced, in clear, bold terms, a long-growing popular conviction of the propriety of independence, stronger than men had dared to admit even to themselves.



Thomas Paine.

On June 7, 1776, Richard Henry Lee, of Virginia, rose in Congress, and, in obedience to the command of his State, moved a resolution "that the united colonies are, and of right ought to be, free and independent States." John Adams seconded the motion. It led to great debate, which evinced that New York, New Jersey, Pennsylvania, Maryland, and South Carolina were not yet quite ready for so radical a step. Postponement was therefore had till July 1st, a committee meantime being appointed to draft a declaration.

On July 2d, after further long debate, participated in by John Adams, Dickinson, Wilson, and many other of the ablest men in Congress, not all, even now, favorable to the measure, the famous Declaration of Independence was adopted by vote of all the colonies but New York, whose representatives abstained from voting for lack of sufficiently definite instructions. We celebrate July 4th because on that day the document was authenticated by the signatures of the President and Secretary of Congress, and published, Not until August 2d had all the representatives affixed their names. Ellery stood at the secretary's side as the various delegates signed, and declares that he saw only dauntless resolution in every eye. "Now we must hang together," said Franklin, "or we shall hang separately."

The honor of writing the Declaration belongs to Thomas Jefferson, of Virginia, who was to play so prominent a part in the early political history of the United States. At this time he was thirty-three years old. He was by profession a lawyer, of elegant tastes, well read in literature, deeply versed in political history and philosophy. He was chosen to draft the instrument chiefly because of the great ability of other state papers from his pen. It is said that he consulted no books during the composition, but wrote from the overflowing fulness of his mind.

It is an interesting inquiry how far the language of the document was determined by utterances of a like kind already put forth by towns and counties. There had been many of these, and much discussion has occurred upon the question which of them was first. Perhaps the honor belongs to the town of Sheffield, Mass., which so early as January 12, 1773, proclaimed the grievances and the rights of the colonies, among these the right of self-government. Mendon, in the same State, in the same year passed resolutions containing three fundamental propositions of the great Declaration itself: that all men have an equal right to life and liberty, that this right is inalienable, and that government must originate in the free consent of the people. It is worthy of note that the only important change made by Congress in what Jefferson had prepared was the striking out, in deference to South Carolina and Georgia, of a clause reflecting on slavery.

Copies of the immortal paper were carried post-haste up and down the land, and Congress's bold deed was everywhere hailed with enthusiastic demonstrations of joy. The stand for independence wrought powerfully for good, both at home and abroad. At home it assisted vacillating minds to a decision, as well as bound all the colonies more firmly together by committing them irreconcilably to an aggressive policy. Abroad it tended to lift the colonies out of the position of rebels and to gain them recognition among the nations of the earth.

Let us now inquire into the political character of these bodies of people which this Declaration by their delegates had erected into "free and independent States."

Five colonies had adopted constitutions, revolutionary of course, before the decisive manifesto. There was urgent need for such action. The few remaining fragments of royal governments were powerless and decadent. Anarchy was threatening everywhere. Some of the royal governors had fled. In South Carolina the judges refused to act. In other places, as western Massachusetts, they had been forcibly prevented from acting. In most of the colonies only small parts of the old assemblies could be gotten together.

New Hampshire led off with a new constitution in January, 1776. South Carolina followed in March. By the close of the year nearly all the colonies had established governments of their own. New York and Georgia did not formally adopt new constitutions until the next year. In Massachusetts a popular assembly assumed legislative and executive powers from July, 1775, till 1780, when a new constitution went into force. Connecticut and Rhode Island, as we have seen already, continued to use their royal charters--the former till 1818, the latter till 1842.

Nowhere was the general framework of government greatly changed by independence. The governors were of course now elected by the people, and they suffered some diminution of power. Legislatures were composed of two houses, both elective, no hereditary legislators being recognized. All the States still had Sunday laws; most of them had religious tests. In South Carolina only members of a church could vote.

In New Jersey an office-holder must profess belief in the faith of some Protestant sect. Pennsylvania required members of the legislature to avow faith in God, a future state, and the inspiration of the Scriptures. The new Massachusetts constitution provided that laws against plays, extravagance in dress, diet, etc., should be passed. Property qualifications continued to limit suffrage. Virginia and Georgia changed their land laws, abolishing entails and primogeniture.

The sole momentous novelty was that everyone of the new constitutions proceeded upon the theory of popular sovereignty. The new governments derived their authority solely and directly from the people. And this authority, too, was not surrendered to the government, but simply--and this only in part--intrusted to it as the temporary agent of the sovereign people, who remained throughout the exclusive source of political power.

The new instruments of government were necessarily faulty and imperfect. All have since been amended, and several entirely remodelled. But they rescued the colonies from impending anarchy and carried them safely through the throes of the Revolution.

CHAPTER IV.

OUTBREAK OF WAR: WASHINGTON'S MOVEMENTS

By the spring of 1775 Massachusetts was practically in rebellion. Every village green was a drill-ground, every church a town arsenal. General Gage occupied Boston with 3,000 British regulars. The flames were smouldering; at the slightest puff they would flash out into open war.

On the night of April 18th people along the road from Boston to Concord were roused from sleep by the cry of flying couriers--"To arms! The redcoats are coming!" When the British advance reached Lexington at early dawn, it found sixty or seventy minute-men drawn up on the green. "Disperse, ye rebels!" shouted the British officer. A volley was fired, and seven Americans fell dead. The king's troops, with a shout, pushed on to Concord. Most of the military stores, however, which they had come to destroy had been removed. A British detachment advanced to Concord Bridge, and in the skirmish here the Americans returned the British fire.



Map of the United Colonies at the Beginning of the Revolution.

"By the rude bridge that arched the flood,
Their flag to April's breeze unfurled,
Here once the embattled farmers stood,
And fired the shot heard round the world." *



Narrow Pass. Bunker Hill Breed's Hill.

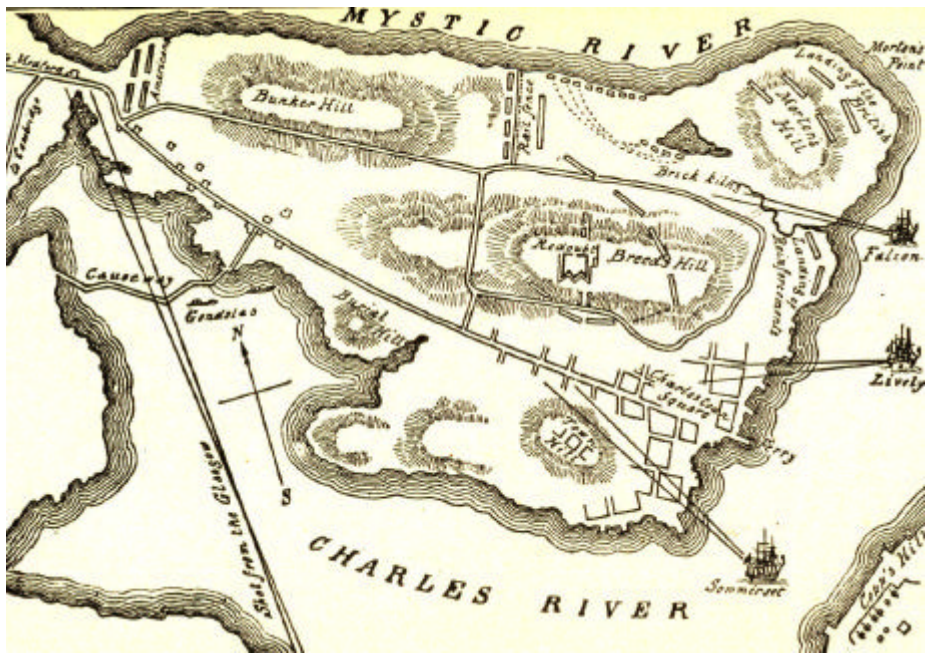
A Profile View of the Heights of Charlestown.

The whole country was by this time swarming with minute-men. The crack of the rifle was heard from behind every wall and fence and tree along the line of march. The redcoats kept falling one by one at the hands of an invisible foe. The march became a retreat, the retreat almost a rout. At sunset the panting troops found shelter in Boston. Out of 1,800 nearly 300 were killed, wounded, or missing. The American loss was about ninety. The war of the rebellion had begun.

* From R. W. Emerson's Concord Hymn, sung at the completion of the Battle Monument near Concord North Bridge, April 19, 1836.

All that day and the next night the tramp of minute-men marching to Boston was heard throughout New England, and by April 20th Gage was cooped up in the city by an American army. May 25th, he received large re-enforcements from England.

On the night of June 16th a thousand men armed with pick and spade stole out of the American camp. At dawn the startled British found that a redoubt had sprung up in the night on Breed's Hill (henceforward Bunker Hill) in Charlestown. Boston was endangered, and the rebels must be dislodged. About half-past two 2,500 British regulars marched silently and in perfect order up the hill, expecting to drive out the "rustics" at the first charge. Colonel Prescott, the commanding American officer, waited till the regulars were within ten rods. "Fire!" A sheet of flame burst from the redoubt. The front ranks of the British melted away, and His Majesty's invincibles retreated in confusion to the foot of the hill. Again they advance. Again that terrible fire. Again they waver and fall back. Once more the plucky fellows form for the charge, this time with bayonets alone.



Plan of Bunker Hill.



A. Boston Battery. B. Charlestown. C. British troops attacking. D. Provincial lines.
Bunker Hill Battle.

From a Contemporary Print.

When they are within twenty yards, the muskets behind the earthworks send forth one deadly discharge, and then are silent. The ammunition is exhausted. The British swarm into the redoubt. The Continentals reluctantly retire, Prescott among the last, his coat rent by bayonets. Joseph Warren, of Boston, the idol of Massachusetts, was shot while leaving the redoubt. The British killed and wounded amounted to 1,054--157 of them being officers; the American loss was nearly 500. The battle put an end to further offensive movements by Gage. It was a virtual victory for the untrained farmer troops, and all America took courage.

Two days before, Congress had chosen George Washington commander-in-chief, and on July 2d he arrived at Cambridge. Washington was forty-three years old. Over six feet in height, and well-proportioned, he combined great dignity with ease. His early life as surveyor in a wild country had developed in him marvellous powers of endurance. His experience in the French and Indian War had given him considerable military knowledge. But his best title to the high honor now thrust upon him lay in his wonderful self-control, sound judgment, lofty patriotism, and sublime courage, which were to carry him, calm and unflinching, through perplexities and discouragements that would have overwhelmed a smaller or a meaner man.

Washington fought England with his hands tied. The Continental government was the worst possible for carrying on war. There was no executive. The action of legislative committees was slow and vacillating, and at best Congress could not enforce obedience on the part of a colony. Congress, too, afraid of a standing army, would authorize only short enlistments, so that Washington had frequently to discharge one army and form another in the face of the enemy. His troops were ill-disciplined, and scantily supplied with clothing, tents, weapons, and ammunition. Skilled officers were few, and these rarely free from local and personal jealousies, impairing their efficiency.

Washington found that the army around Boston consisted of about 14,500 men fit for duty. He estimated the British forces at 11,000. All the fall and winter he was obliged to lie inactive for want of powder.



Joseph Warren.

Meantime he distressed the British as much as possible by a close siege. In the spring, having got more powder, he fortified Dorchester Heights. The city was now untenable, and on March 17, 1776, all the British troops, under command of Howe who had succeeded Gage, sailed out of Boston harbor, never again to set foot on Massachusetts soil.

June 28th, a British fleet of ten vessels opened fire on Fort Moultrie, in Charleston harbor, S. C. The fort, commanded by Colonel Moultrie, returned the fire with remarkable accuracy, and after an engagement of twelve hours the fleet withdrew, badly crippled. This victory gave security to South Carolina and Georgia for three years.

The discomfited fleet sailed for New York, where the British forces were concentrating. The plan was to seize the Middle States, and thus keep North and South from helping one another. August 1st, 2,500 English troops and 8,000 Hessians arrived. The effective British force was now about 25,000. Washington was holding New York City with about 10,000 men fit for duty.

Driven from Long Island by the battle of August 27th, and forced to abandon New York September 15th, Washington retreated up the Hudson, and took up a strong position at White Plains.

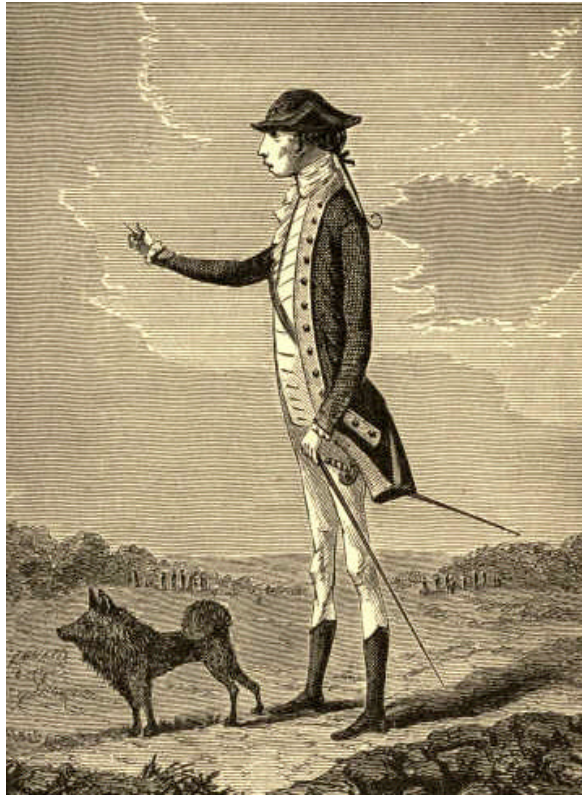


General Howe.

Here the British, attacking, were defeated in a well-fought engagement; but as they were strongly re-enforced on October 30th, Washington fell back to Newcastle. Early in November, guessing that they intended to invade New Jersey and advance on Philadelphia, he threw his main force across the Hudson.



Map of Manhattan Island in 1776, showing the American Defences, etc.



General Charles Lee.

Although intended for a caricature, this is considered an excellent likeness.

The British encamped on the opposite bank of the river. The American army was safe for the present, having secured all the boats and burned all the bridges within seventy miles.

Washington was soon re-enforced, and now had between five and six thousand troops. He determined to strike a bold blow that would electrify the drooping spirits of the army and the country. At Trenton lay a body of 1,200 Hessians. Christmas night Washington crossed the Delaware with 2,400 picked men. The current was swift, and the river full of floating ice; but the boats were handled by Massachusetts fishermen, and the passage was safely made. Then began the nine-mile march to Trenton, in a blinding storm of sleet and hail. The soldiers, many of whom were almost barefoot, stumbled on over the slippery road, shielding their muskets from the storm as best they could. Trenton was reached at eight o'clock on the morning of the 26th. An attack was made by two columns simultaneously. The surprise was complete, and after a half hour's struggle the Hessians surrendered. Nearly 1,000 prisoners were taken, besides 1,200 small arms and six guns. Washington safely retreated across the Delaware.

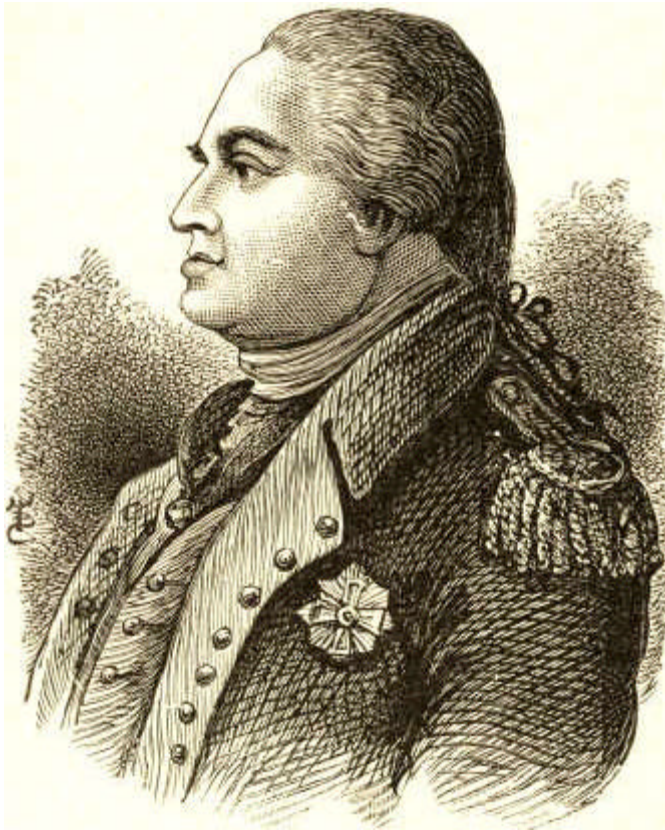
Cornwallis, with 7,000 men, hurried from Princeton to attack the American army. But Washington, on the night of January 2, 1777, leaving his camp-fires burning, slipped around the British army, routed the regiments left at Princeton, and pushing on northward went into winter quarters at Morristown.

The next campaign opened late. It was the last of August when Howe, with 17,000 men, sailed from New York into Chesapeake Bay, and advanced toward Philadelphia. Washington flung himself in his path at Brandywine, September 11th, but was beaten back with heavy loss. September 26th the British army marched into Philadelphia, whence Congress had fled. October 4th, Washington attacked the British camp at Germantown. Victory was almost his when two of the attacking parties, mistaking each other, in the fog, for British, threw the movement into confusion, and Washington had to fall back, with a loss of 1,000 men.

In December the American commander led his ragged army into winter quarters at Valley Forge, twenty-one miles from Philadelphia. It was a period of deep gloom. The war had been waged now for more than two years, and less than nothing seemed to have been accomplished. Distrust of Washington's ability sprang up in some minds. "Heaven grant us one great soul!" exclaimed John Adams after Brandywine. Certain officers, envious of Washington, began to intrigue for his place.

Meanwhile the army was shivering in its log huts at Valley Forge. Nearly three thousand were barefoot. Many had to sit by the fires all night to keep from freezing. One day there was a dinner of officers to which none were admitted who had whole trousers. For days together there was no bread in camp. The death-rate increased thirty-three per cent from week to week.

Just now, however, amid this terrible Winter at Valley Forge, Baron Steuben, a trained German soldier, who had been a pupil of Frederick the Great, joined our army. Washington made him inspector-general, and his rigorous daily drill vastly improved the discipline and the spirits of the American troops. When they left camp in the spring, spite of the hardships past, they formed a military force on which Washington could reckon with certainty for efficient work.



Baron von Steuben.

The British, after a gay winter in Philadelphia, startled by the news that a French fleet was on its way to America, marched for New York, June 18, 1778. The American army overtook them at Monmouth on the 28th; General Charles Lee--a traitor as we now know, and as Washington then suspected, forced into high place by influence in Congress--General Lee led the party intended to attack, but he delayed so long that the British attacked him instead.

The Americans were retreating through a narrow defile when Washington came upon the field, and his Herculean efforts, brilliantly seconded by Wayne, stayed the rout. A stout stand was made, and the British were held at bay till evening, when they retired and continued their march to New York. Washington followed and took up his station at White Plains.

CHAPTER V.

THE NORTHERN CAMPAIGN

At the outbreak of hostilities the thoughts of the colonists naturally turned to the Canadian border, the old battleground of the French and Indian War. Then and now a hostility was felt for Canada which had not slumbered since the burning of Schenectady in 1690.

May 10, 1775, Ethan Allen, at the head of a party of "Green Mountain Boys," surprised Fort Ticonderoga. Crown Point was taken two days later. Two hundred and twenty cannon, besides other much-needed military stores, fell into the hands of the Americans. Some of these heavy guns, hauled over the Green Mountains on oxsleds the next winter, were planted by Washington on Dorchester Heights.

In November, 1775, St. Johns and Montreal were captured by a small force under General Montgomery. The Americans now seemed in a fair way to get control of all Canada, which contained only 700 regular troops. It was even hoped that Canada would make common cause with the colonies. Late in the fall Benedict Arnold led 1,000 men up the Kennebec River and through the wilderness--a terrible journey--to Quebec. Here he was joined by Montgomery. On the night of December 30th, which was dark and stormy, Montgomery and Arnold led their joint forces, numbering some 3,000, against the city. Arnold was to attack the lower town, while Montgomery sought to gain the citadel. Montgomery had hardly passed the first line of barricades when he was shot dead, and his troops retreated in confusion. Arnold, too, was early wounded. Morgan, with 500 of his famous riflemen, forced an entrance into the lower town. But they were not re-enforced, and after a desperate street fight were taken prisoners.

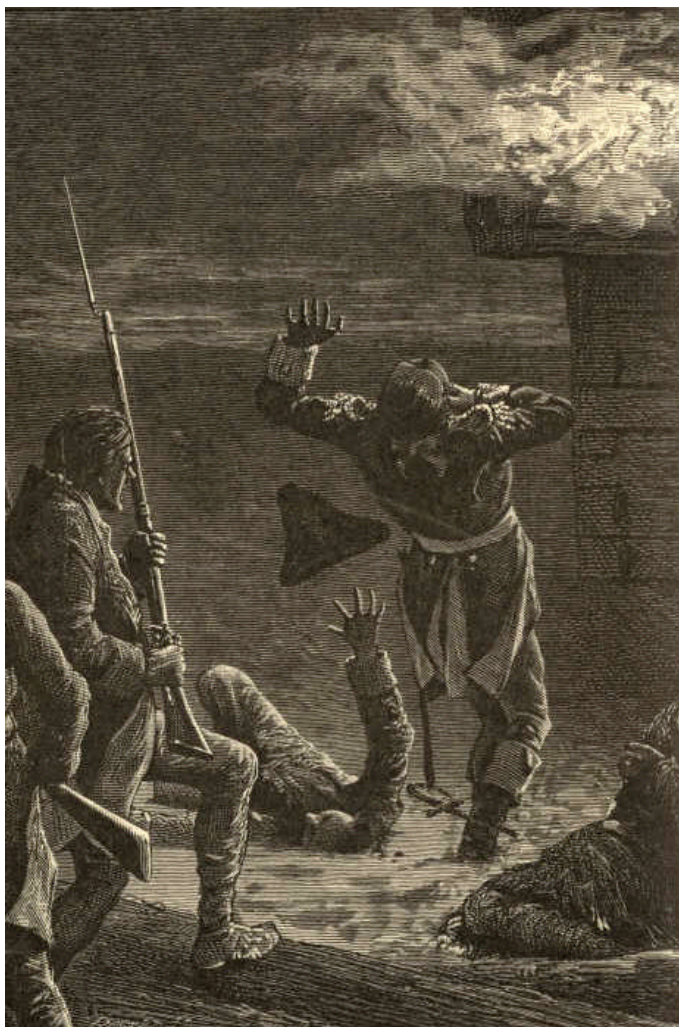
A dreary and useless blockade was maintained for several months; until in May the garrison sallied forth and routed the besiegers. The British were successful in several small engagements during the summer of 1776; and the Americans finally had to fall back to Crown Point and Ticonderoga.



Richard Montgomery.

In June of the next year a splendid expedition set sail from St. Johns and swept proudly up Lake Champlain. Eight thousand British and Hessian troops, under strict discipline and ably officered, forty cannon of the best make, a horde of merciless Indians--with these forces General Burgoyne, the commander of the expedition, expected to make an easy conquest of upper New York, form a junction with Clinton at Albany, and, by thus isolating New England from the Middle and Southern States, break the back of the rebellion.

Ticonderoga was the first point of attack. Sugar Loaf Mountain, which rose six hundred feet above the lake, had been neglected as too difficult of access. Burgoyne's skilful engineers easily fortified this on the night of July 4th, and Fort Ticonderoga became untenable. General St. Clair, with his garrison of 3,000, at once evacuated it, and fled south under cover of the night. He was pursued, and his rear guard of 1,200 men was shattered. The rest of his force reached Fort Edward.



The Death of Montgomery at Quebec.

The loss of Ticonderoga spread alarm throughout the North. General Schuyler, the head of the Northern department, appealed to Washington for re-enforcements, and fell back from Fort Edward to the junction of the Mohawk and Hudson.

Meanwhile Burgoyne was making a toilsome march toward Fort Edward. Schuyler had destroyed the bridges and obstructed the roads, so that the invading army was twenty-four days in going twenty-six miles. Up to this point Burgoyne's advance had been little less than a triumphal march; difficulties now began to surround him like a net.

Burgoyne had arranged for a branch expedition of 700 troops and 1,000 Indians under St. Leger, to sail up Lake Ontario, sweep across western New York, and join the main body at Albany. August 3d, this expedition reached Fort Schuyler, and besieged it. A party of 800 militia, led by General Herkimer, a veteran German soldier, while marching to relieve the fort, was surprised by an Indian ambush. The bloody battle of Oriskany followed. St. Leger's further advance was checked, and soon after, alarmed by exaggerated reports of a second relief expedition under Arnold, he hurried back to Canada.

At Bennington, twenty-five miles east of Burgoyne's line of march, the Americans had a depot of stores and horses. Burgoyne, who was running short of provisions, sent a body of 500 troops, under Baume, to capture these stores, and overawe the inhabitants by a raid through the Connecticut valley. About 2,000 militia hastened to the defence of Bennington. General Stark, who had fought gallantly at Bunker Hill and Trenton, took command. August 16th, Baume was attacked on three sides at once, Stark himself leading the charge against the enemy's front. Again and again his men dashed up the hill where the British lay behind breastworks. After a fight of two hours Baume surrendered, overpowered by superior numbers. Re-enforcements which came up a little later were driven back with considerable loss. The Americans took 700 prisoners and 1,000 stands of arms.



General Herkimer at the Battle of Oriskany.

Burgoyne's situation was becoming dangerous. The failure of St. Leger and the heavy loss at Bennington seriously disarranged his plans. The troops detached to defend the posts in his rear had reduced his force to about 6,000. He was greatly hampered by lack of provisions. Meanwhile the American army had increased to 9,000. Schuyler had been supplanted by Gates, who on September 12th advanced to a strong position on Bemis Heights in the town of Stillwater. The right wing of the army rested on the Hudson, the left on ridges and wood. In front was a ravine. On the 19th Burgoyne advanced to the attack in three columns. That led by General Fraser, which tried to turn the American left, was the first to engage. Arnold's wing, including Morgan's riflemen, met Fraser's skirmishers a mile from the American lines. They were soon forced to fall back; Burgoyne's central column came up, and the fight became general. The battleground was covered by thick woods, with occasional clearings, and the troops fought at close range. Four hours the battle raged hotly. The British artillery was taken and retaken again and again. Thirty-six of the forty-eight British gunners were either killed or wounded. At sunset the Americans withdrew to their fortified lines, leaving Burgoyne in possession of the field. It was a drawn battle, but virtually a victory for the Americans. The British lost about 600, the Americans half as many.



General John Stark.

Burgoyne's situation was now critical in the extreme. In the heart of the enemy's country, his forces melting away while his opponents were increasing, nearly out of provisions and his connections with his base of supplies threatened by a party assailing Ticonderoga, Burgoyne's only hope was that Clinton would force a passage up the Hudson. But the latter, after capturing Forts Clinton and Montgomery early in October, fell back to the lower Hudson and left Burgoyne to his fate.

October 7th, Burgoyne advanced a picked body of 1,500 men to reconnoitre the American lines. Morgan's riflemen were sent out to "begin the game." The fighting soon became even hotter than in the previous battle. In an hour the whole British line was retreating toward the camp. At this point Arnold, whom, because of his preference for Schuyler, Gates had deprived of his command, filled with the fury of battle, dashed upon the field and assumed his old command. The soldiers greeted him with cheers, and he led them on in one impetuous charge after another. The enemy everywhere gave way in confusion, and at dusk the Germans were even driven from their entrenched camp. The British loss was fully 600.



General Horatio Gates.

The next day Burgoyne retreated to Saratoga, followed by Gates. The fine army, which had set out with such high hopes only four months before, was now almost a wreck. Eight hundred were in the hospital. On the 12th the army had but five days' rations. Burgoyne could neither advance nor retreat, and on the 17th he surrendered. The army were allowed free passage to England on condition that they would not re-engage in the war. The Americans got 35 superb cannon and 4,000 muskets. The Sunday after the surrender, Timothy Dwight, afterward President of Yale College, preached to Gates's soldiers from Joel ii. 20, "I will remove far off from you the northern army."

Gates deserved little credit for the defeat of Burgoyne. Put forward by New England influence against Schuyler, the favorite of New York, he but reaped the results of the labors of Herkimer at Oriskany, of Stark at Bennington, and of Schuyler in obstructing Burgoyne's advance and in raising a sufficient army. Even in the two battles of Stillwater Gates did next to nothing, not even appearing on the field. Arnold and Morgan were the soul of the army on both days. Arnold's gallant conduct was at once rewarded by a major-generalship. Schuyler, underrated and even maligned in his day, had to wait for the approval of posterity, which he has now fully obtained.

The surrender of Burgoyne was the most important event of the war up to that time. It was of immense service at home, raising the country out of the despondency which followed upon Brandywine and Germantown. Abroad it disheartened England, and decided France to acknowledge the independence of America and to send military aid. From the end of this year, 1777, victory over England was a practical certainty.

CHAPTER VI.

THE SOUTHERN CAMPAIGNS

After the summer of 1778 little of military importance occurred at the North. July and November of that year were marked by bloody Indian massacres at Wyoming, Pa., and Cherry Valley, N. Y., the worst in all that border warfare which was incessant from the beginning to the end of the Revolution. In August an unsuccessful attempt to regain Newport was made by General Sullivan, co-operating with a French fleet under D'Estaing. In the spring and summer of 1779, Clinton, who lay at New York with a considerable army, closely watched by Washington, sent out to Connecticut and the coasts of Virginia a number of plundering expeditions which did much damage. "Mad Anthony Wayne" led a brilliant attack against Stony Point on the Hudson, captured the British garrison, and destroyed the fortifications. This year was also marked by a great naval victory. Paul Jones lashed his vessel, the *Bonhomme Richard*, to the British *Serapis*, off the northeast coast of England, and after a desperate fight of three hours forced the *Serapis* to surrender.

But the brunt of the war now fell on the South, where the British, unsuccessful in the Northern and Middle States, hoped for an easy conquest. The capture of Savannah in December, 1778, and of Augusta the next month, laid Georgia prostrate. The royal government was re-instated by Prevost, the British general. Our General Lincoln, who had been placed in command of the Southern army, assisted by D'Estaing with his fleet, besieged Savannah, but on October 9, 1779, was repulsed with heavy loss.

In the spring of 1780 Clinton arrived from New York with a fleet and troops. Charleston, S. C., was besieged by land and sea. Lincoln was compelled to surrender with his whole army. Beaufort, Ninety-Six, and Camden capitulated in rapid succession. Marauding expeditions overran the State. President Andrew Jackson carried to his grave scars of hurts, one on his head, another on his hand, given him by Tarleton's men when he was a boy at Waxhaw. The patriots lay helpless. The loyalists organized as militia and joined the British. Clinton, elated by success, hoped to force the entire population into allegiance to the king.



John Paul Jones's Medal.

"Joanni Pavlo Jones" "Classis Praefecto." Comitia American"

The estates of patriots were sequestered. Any Carolinian found in arms against the king might be, and multitudes were, hung for treason. Clinton even issued a proclamation requiring all inhabitants to take active part on the royalist side.



John Paul Jones's Medal (Reverse).

"Hostivm Navibvs" "Captis Avtfvcatts"

"Ad Oram Scotiae XXIII Sept."

"MDCCLXXVIII."

"Dupre E"

Sumter, Marion, and other leaders, gathering around them little companies of bold men, carried on a guerilla warfare which proved very annoying to the British. They would sally forth from their hiding-places in the swamps, surprise some British outpost or cut off some detachment, and retreat with their booty and prisoners before pursuit could be made.

But the British army in South Carolina and Georgia was 7,000 strong. Help must come from without. And help was coming. Washington detached from his scanty army 2,000 Maryland troops and the Delaware regiment--all veterans--and sent them south under De Kalb, a brave officer of German blood, who had seen long service in France. Virginia, though herself exposed, nobly contributed arms and men. Gates, the laurels of Saratoga still fresh upon his brow, was, against Washington's judgment, appointed by Congress to succeed Lincoln.

Cornwallis, whom the return of Clinton to New York had left in command, lay at Camden, S. C. Gates, as if he had but to look the Briton in the eye to beat him, pompously assumed the offensive. On August 15th he made a night march to secure a more favorable position near Camden. Cornwallis happened to have chosen the same night for an attack upon Gates. The two armies unexpectedly met in the woods, nine miles from Camden, early in the morning of the 16th. Gates's force, increased by North Carolina militia, was between 3,000 and 4,000. Cornwallis had about 2,000.

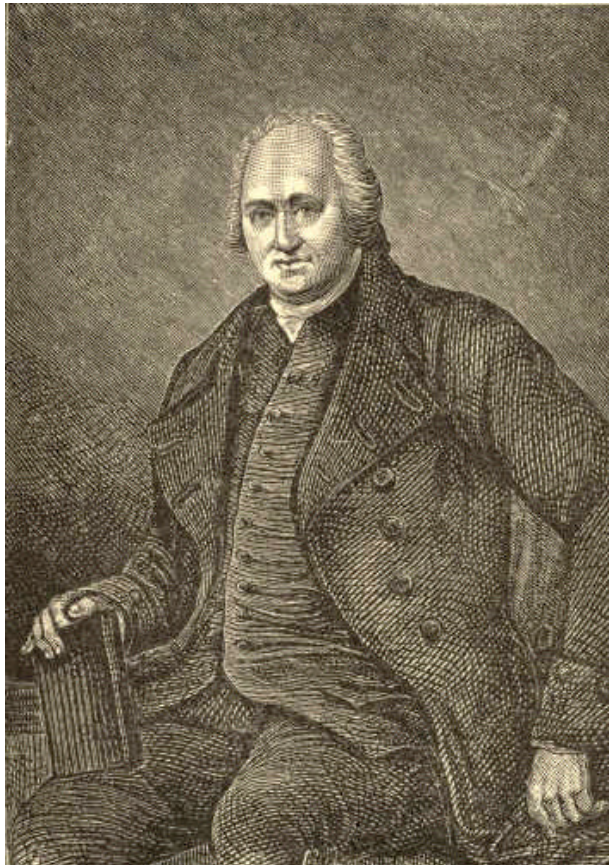


General Sullivan.

The American position was strong, a swamp protecting both flanks, but at the first bayonet charge of the British veterans the raw militia threw away their guns and "ran like a torrent." The Maryland and Delaware Continentals stood their ground bravely, but were finally obliged to retreat. De Kalb fell, with eleven wounds.

This heroic foreigner had been sent hither by Choiseul before the Revolution to report to the French minister on American affairs, and at the outbreak of war had at great cost cast in his lot with our fathers. Sent south to aid Lincoln, he arrived only in time to be utilized by Gates. De Kalb was the hero of Camden. Wounded and his horse shot from under him, on foot he led his stanch division in a charge which drove Rawdon's men and took fifty prisoners. Believing his side victorious he would not yield, though literally ridden down by Cornwallis' dragoons, till his wounds exhausted him. Two-fifths of his noble division fell with him.

The whole army was pursued for miles and completely scattered. Arms, knapsacks, broken wagons, dead horses strewed the line of retreat. The Americans lost 900 killed and as many more prisoners. The British loss was less than 500. Gates, who had been literally borne off the field by the panic-stricken militia, rode in all haste two hundred miles north to Hillsborough, N. C, where he tried to organize a new army.



General Lincoln.

The gloom created at the North by this defeat was deepened by the startling news that Benedict Arnold, the hero of Saratoga, had turned traitor. Smarting under a reprimand from Washington for misconduct, Arnold agreed with Clinton to surrender West Point. The plot was discovered by the capture of Clinton's agent, Major Andre, who was hung as a spy. Arnold escaped to the British lines.

There was now no organized American force in the Carolinas, and Cornwallis began a triumphant march northward. The brave mountaineers of North Carolina and Virginia rose in arms. October 7th, 1,000 riflemen fell upon a detachment of 1,100 British, strongly posted on King's Mountain, N. C., and after a sharp struggle killed and wounded about 400, and took the rest prisoners. In this battle fell one of the Tory ancestors of the since distinguished American De Peyster family.

The King's Mountain victory filled the patriots with new hope and zeal, and kept the loyalists from rising to support the British. Cornwallis marched south again.



General Marion in Camp.

Gates was now removed and General Nathaniel Greene placed in charge of the Southern department. Greene was one of the most splendid figures in the Revolution. Son of a Rhode Island Quaker, bred a blacksmith, ill-educated save-by private study, which in mathematics, history, and law he had carried far, he was in 1770 elected to the legislature of his colony. Zeal to fight England for colonial liberty lost him his place in the Friends' Society. Heading Rhode Island's contingent to join Washington before Boston at the first shock of Revolutionary arms, he was soon made brigadier, the initial step in his rapid promotion. Showing himself an accomplished fighter at Trenton, Princeton, Germantown, Monmouth, and the battle of Rhode Island, and a first-rate organizer as quartermaster-general of the army, he had long been Washington's right-hand man; and his superior now sent him south with high hopes and ringing words of recommendation to the army and people there.



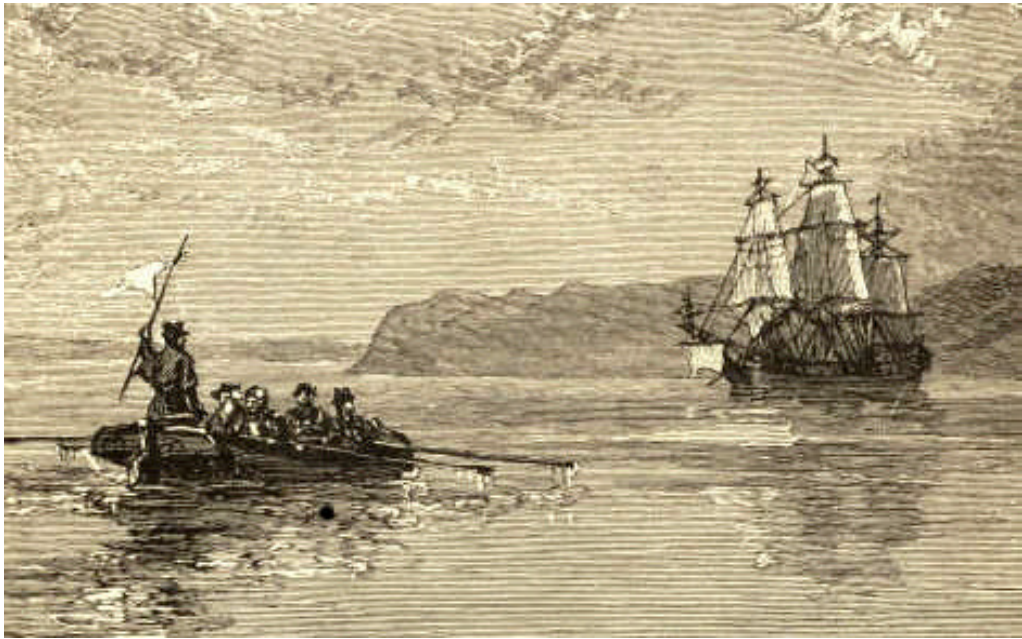
Marquis de Lafayette.

Greene's plan of campaign was the reverse of Gates's. He meant to harass and hinder the enemy at every step, avoiding pitched battles. January 17, 1781, a portion of his army, about 1,000 strong, under the famous General Daniel Morgan, of Virginia, another hero of Saratoga, was attacked at Cowpens, S. C., by an equal number of British under the dashing Tarleton. The British, riddled by a terrible cross-fire from Morgan's unerring riflemen, followed up by a bayonet charge, fled, and were for twenty-four miles pursued by cavalry. The American loss was trifling. Tarleton lost 300 in killed and wounded, and 500 prisoners, besides 100 horses, 35 wagons, and 800 muskets.



Benedict Arnold.

Cornwallis began a second march northward. Greene's force was too weak to risk a battle. His soldiers were poorly clad, and most of them were without tents or shoes. He therefore skillfully retreated across North Carolina, chased by Cornwallis. Twice the rivers, rising suddenly after Greene had crossed, checked his pursuers. But on March 15th, re-enforced to about 4,000, the Quaker general offered battle to Cornwallis at Guilford Court-House, N. C. He drew up his forces on a wooded hill in three lines one behind the other. The first line, consisting of raw North Carolina militia, fled before the British bayonet charge, hardly firing a shot. The Virginia brigade constituting the second line made a brave resistance, but was soon driven back. On swept the British columns, flushed with victory, against the third line.



Arnold's Escape.

Here Greek met Greek. The Continentals stood their ground like the veterans they were. After a long and bloody fight the British were driven back. The fugitives, however, presently rallied under cover of the artillery, when Greene, fearing to risk more, withdrew from the field. The British lost 500; the Americans, 400, besides a large part of the militia, who dispersed to their homes. Cornwallis, with his "victorious but ruined army," retreated to the southern part of the State. The last of April he forsook Carolina, and marched into Virginia with 1,400 men.

Greene, his force reduced to 1,800, carried the war into South Carolina. Defeated at Hobkirk's Hill, near Camden, and compelled by the approach of General Rawdon to raise the siege of Ninety-Six, he retreated north. Meantime Marion and Lee had brought about the evacuation of Camden and Augusta. Rawdon soon evacuated Ninety-Six, and moved toward the coast, followed by Greene.

A ceaseless guerilla warfare was kept up, attended with many barbarities. Slave-stealing was a favorite pursuit on both sides. It is noteworthy that the followers of Sumter, fighting in the cause of freedom, were paid largely in slaves. The whole campaign was marked by severities unknown at the North. The British shot as deserters all who, having once accepted royal protection, were taken in arms against the king. In a few cases Americans dealt similarly with Americans fighting for the British, but in general their procedure was infinitely the more humane.



General Nathaniel Greene.

The battle of Eutaw Springs practically ended the war in the South. The British were victorious, but all the advantages of the battle accrued to the Americans. The British loss was nearly 1,000; the American, 600. In ten months Greene had driven the British from all Georgia and the Carolinas except Wilmington, Charleston, and Savannah.

Destiny decreed that Washington should strike the last blow for his country's freedom on the soil of his own State. Cornwallis found himself in Virginia, the last of May, at the head of 7,000 troops. He ravaged the State, destroying \$10,000,000 worth of property. Lafayette, pitted against him with 3,000 men, could do little. In August Cornwallis withdrew into Yorktown, and began fortifications. Lafayette's quick eye saw that the British general had caged himself. Posting his army so as to prevent Cornwallis's escape, he advised Washington to hasten with his army to Virginia. Meanwhile a French fleet blocked up the mouth of Chesapeake Bay and of James River and York River, cutting off Cornwallis's escape by water. The last of September Washington's army, accompanied by the French troops under Rochambeau, appeared before Yorktown. Clinton, deceived by Washington into the belief that New York was to be attacked, was still holding that city with 18,000 men. The American army, 16,000 strong--7,000 French--began a regular siege. Cornwallis was doomed.



Surrender of Cornwallis at Yorktown.



General Daniel Morgan.

Two advanced redoubts of the British works were soon carried by a brilliant assault in which the French and the American troops won equal honors. On the 19th Cornwallis surrendered. The captive army, numbering 7,247, marched with cased colors between two long lines of American and French troops, and laid down their arms.

The news of Cornwallis's surrender flew like wild-fire over the country. Everywhere the victory was hailed as virtually ending the war. Bonfires and booming cannon told of the joy of the people. Congress assembled, and marching to church in a body, not as a mere form, we may well believe, gave thanks to the God of battles, so propitious at last.

CHAPTER VII.

PEACE

The peace party and spirit in England increased month by month. Burgoyne's surrender had dissipated the hope of speedily suppressing the rebellion. And as the war dragged on and Englishmen by bitter experience came to realize the bravery, endurance, and national feeling of the Americans, the conviction spread that three millions of such people, separated from the mother-country by three thousand miles of boisterous ocean, could never be conquered by force. Discouragement arose, too, from the ill conduct of the war. There was no broad plan or consistency in management. Generals did not agree or co-operate, and were changed too often. Clinton and Cornwallis hated each other. Burgoyne superseded Carleton, a better man. But for Lord Germain's "criminal negligence" in waiting to go upon a visit before sending the proper orders, Clinton might have met and saved Burgoyne.

There were enormous and needless expenses. By 1779 England's national debt had increased 63,000,000 pounds; by 1782 it had doubled. Rents were declining. The price of land had fallen one-third. Hence the war became unpopular with the landed aristocracy. British manufacturers suffered by the narrowing of their foreign markets. American privateers, prowling in all seas, had captured hundreds of British merchantmen. English sentiment, too, revolted at certain features of the war. Ravaging and the use of mercenaries and Indians were felt to be barbarous. Time made clearer the initial error of the government in invoking war over the doubtful right of taxing America. An increasing number of lawyers took the American view. Practical men figured out that each year of hostilities cost more than the proposed tax would have yielded in a century.

In February, 1778, Parliament almost unanimously adopted proposals to restore the state of things which existed in America before the war, at the same time declaring its intention not to exercise its right of taxing the colonies. Washington spoke for America when he said, "Nothing but independence will now do." The proposals were rejected by Congress and by the States separately.

England's difficulties were greatly increased by the help extended to America from abroad. France, eager for revenge on England, early in the war lent secret aid by money and military supplies. Later, emboldened by the defeat of Burgoyne, the French Government recognized the United States as an independent nation. By a treaty, offensive and defensive, the two nations bound themselves to fight together for that independence, neither to conclude a separate peace.

The benefit from this treaty was moral and financial rather than martial. At Yorktown, to be sure, the French forces rendered invaluable aid. Without De Grasse's French fleet at the mouths of the York and James rivers, the British might have relieved Cornwallis by sea. But Congress needed money more than foreign soldiers, and without France's liberal loans it is difficult to see how the government could have struggled through.

Spain, too, joined the alliance of France and the United States and declared war against England, though from no love for the young republic. This action hastened the growth of public opinion in England against the continuance of the American war. In the House of Commons, Lord Cavendish made a motion for ordering home the troops. Lord North, prime minister, threw out hints that it was useless to continue the war. But George III., summoning his ministers, declared his unchanging resolution never to yield to the rebels, and continued prodding the wavering North to stumble on in his stupid course.

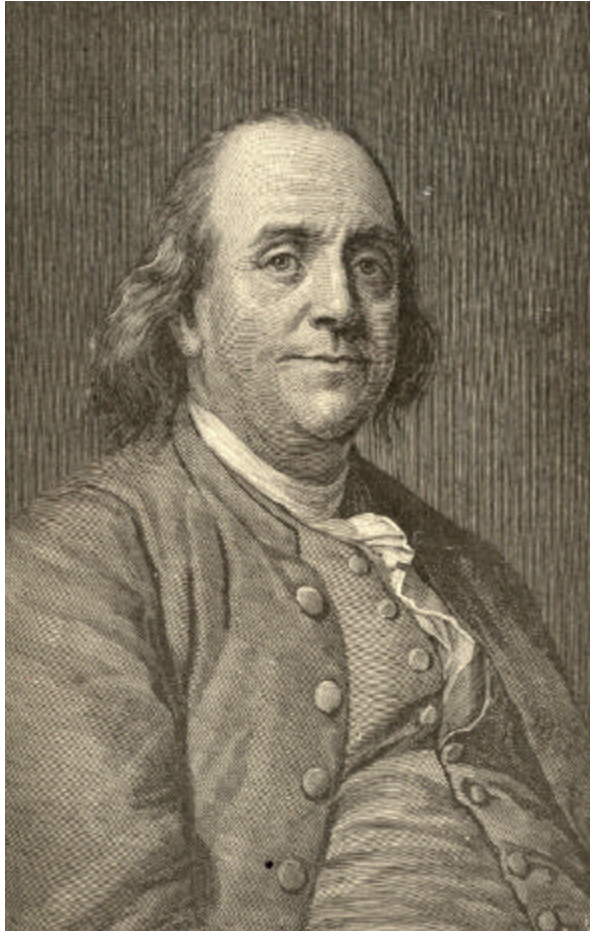
It was struggling against fate. The next year saw Holland at war with England, while Catherine, Empress of Russia, was actively organizing the Armed Neutrality, by which all the other states of Europe leagued together to resist England's practice of stopping vessels on the high seas and searching them for contraband goods.



Lord Cornwallis.

England was now involved in four wars, without money to carry them on. North's majorities in Parliament grew steadily smaller. No doubt much of the opposition was simply factious and partisan, but it had, after all, solid basis in principle. England was fighting her own policy--economically, for she was destined to free trade, and politically, inasmuch as the freedom which our fathers sought was nothing but English freedom.

The surrender of Cornwallis tipped the scale. Lord North, when he heard the news, paced the room in agony, exclaiming again and again, "O God, it is all over!" The House of Commons, without even a division, resolved to "consider as enemies to His Majesty and the country" all who should advise a further prosecution of the war. North resigned, and Shelburne, Secretary of State in the new ministry, hastened to open peace negotiations with Franklin at Paris.



Benjamin Franklin.

Benjamin Franklin, now venerable with years, had been doing at the court of Versailles a work hardly less important than that of Washington on the battlefields of America. By the simple grace and dignity of his manners, by his large good sense and freedom of thought, by his fame as a scientific discoverer, above all by his consummate tact in the management of men, the whilom printer, king's postmaster-general for America, discoverer, London colonial agent, delegate in the Continental Congress, and signer of the Declaration of Independence, had completely captivated elegant, free-thinking France. Learned and common folk, the sober and the frivolous alike, swore by Franklin. Snuff-boxes, furniture, dishes, even stoves, were gotten up *a la Franklin*. The old man's portrait was in every house. That the French Government, in spite of a monarch who was half afraid of the rising nation beyond sea, had given America her hearty support, was in no small measure due to the influence of Franklin. And his skill in diplomacy was of the greatest value in the negotiations now pending.

These were necessarily long and tedious, but Jay, Franklin's colleague, made them needlessly so by his finical refusal to treat till England had acknowledged our independence by a separate act.

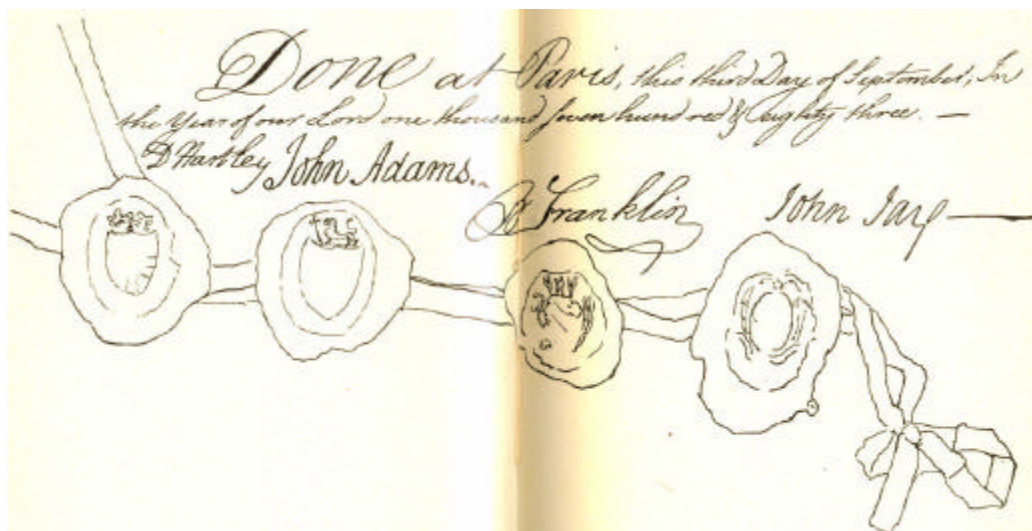
This, indeed, jeopardized peace itself, since Shelburne's days of ministerial power were closing, and his successor was sure to be less our friend. Jay at last receded, a compromise being arrived at by which the treaty was to open with a virtual recognition of independence in acknowledging Adams, Franklin, and Jay as "plenipotentiaries," that is, agents of a sovereign power. Boundaries, fishery rights, and the treatment of loyalists and their property were the chief bones of contention.

As the negotiations wore on it became apparent that Spain and France, now that their vengeance was sated against England by our independence, were more unfriendly to our territorial enlargement than England itself. There still exists a map on which Spain's minister had indicated what he wished to make our western bound. The line follows nearly the meridian of Pittsburgh. This attitude of those powers excused our plenipotentiaries, though bound by our treaty with France not to conclude peace apart from her, for making the preliminary arrangements with England privately.

At last, on November 30, 1782, Franklin, Jay, and John Adams set their signatures to preliminary articles, which were incorporated in a treaty of peace between Great Britain and the United States, France, and Spain, signed at Paris on September 3, 1783. David Hartley signed for England. Our Congress ratified on February 14, 1784.

The treaty recognized the independence of the United States. It established as boundaries nearly the present Canadian line on the north, the Mississippi on the west, and Florida, which now returned to Spain and extended to the Mississippi, on the south. Despite the wishes of Spain, the free navigation of the Mississippi, from source to mouth, was guaranteed to the United States and Great Britain. Fishery rights received special attention. American fishermen were granted the privilege of fishing, as before the war, on the banks of Newfoundland, in the Gulf of St. Lawrence, and in all other places in the sea where the inhabitants of both countries had been accustomed to fish.

Liberty was also granted to take fish on such parts of the coast of Newfoundland as British fishermen should use, and on the coasts, bays, and creeks of all other British dominions in America. American fishermen could dry and cure fish on the unsettled parts of Nova Scotia, Labrador, and the Magdalen Islands. America agreed, for the protection of British creditors, that debts contracted before the war should be held valid, and should be payable in sterling money. It was also stipulated that Congress should earnestly recommend to the several States the restitution of all confiscated property belonging to loyalists.



Done at Paris, this third Day of September,
In the Year of our Lord one thousand and seven hundred & eighty three.--
D. Hartley, John Adams, B. Franklin, John Jay

Facsimile of Signatures to Treaty of Peace.

Peace came like a heavenly benediction to the country and the army, exhausted by so long and so fierce a struggle. No general engagement took place after the siege of Yorktown; but the armies kept close watch upon each other, and minor skirmishes were frequent. Washington's 10,000 men were encamped near the Hudson, to see that Clinton's forces in New York did no harm. In the South, Greene's valiant band, aided by Wayne and his rangers, without regular food or pay, kept the British cooped up in Charleston and Augusta.

Congress in due time declared cessation of hostilities, and on April 19, 1783, just eight years from the battle of Lexington, Washington read the declaration at the headquarters of his army. The British had evacuated Charleston the previous December. In July, Savannah saw the last of the redcoats file out, and the British troops were collected at New York. On November 25th, Sir Guy Carleton, who had superseded Clinton, embarked with his entire army, besides a throng of refugees, in boats for Long Island and Staten Island, where they soon took ship for England. "The imperial standard of Great Britain fell at the fort over which it had floated for a hundred and twenty years, and in its place the Stars and Stripes of American Independence flashed in the sun.

Fleet and army, royal flag and scarlet uniform, coronet and ribbon, every sign and symbol of foreign authority, which from Concord to Saratoga and from Saratoga to Yorktown had sought to subdue the colonies, vanished from these shores. Colonial and provincial America had ended, national America had begun."

The American troops took possession of New York amid the huzzas of the people and the roar of cannon. On November 25th, Washington with his suite, surrounded by grateful and admiring throngs, made a formal entry into the city whence he had been compelled to flee seven years before.

The time had now come when the national hero might lay down the great burden which he had borne with herculean strength and courage through so many years of distress and gloom. On December 4th he joined his principal officers at the popular Fraunces's Tavern, near the Battery, to bid them farewell. Tears filled every eye. Even Washington could not master his feelings, as one after another the heroes who had been with him upon the tented field and in so many moments of dreadful strife drew near to press his hand.

They followed him through ranks of parading infantry to the Whitehall ferry, where he boarded his barge, and waving his hat in a last, voiceless farewell, crossed to the Jersey shore.

Arrived at Annapolis after a journey which had been one long ovation, the saviour of his country appeared before Congress, December 23d, to resign the commission which he had so grandly fulfilled. His address was in noble key, but abbreviated by choking emotion. The President of Congress having replied in fitting words, Washington withdrew, and continued his journey to the long-missed peace and seclusion of his Mount Vernon home.

CHAPTER VIII.

AMERICAN MANHOOD IN THE REVOLUTION

It would be foolish to say that the Revolutionary soldiers never quailed. Militia too often gave way before the steady bayonet charge of British regulars, at times fleeing panic-stricken. Troops whose term of service was out would go home at critical moments. Hardships and lack of pay in a few instances led to mutiny and desertion. But the marvel is that they fought so bravely, endured so much, and complained so little. One reason was the patriotism of the people at large behind them. Soldiers who turned their backs on Boston, leaving Washington in the lurch, were refused food along the road home. Women placed rifles in the hands of husbands, sons, or lovers, and said "Go!"

The rank and file in this war, coming from farm, work-bench, logging-camp, or fisher's boat, had a superb physical basis for camp and field life. Used to the rifle from boyhood, they kept their powder dry and made every one of their scanty bullets tell. The Revolutionary soldier's splendid courage has glorified a score of battle-fields; while Valley Forge, with its days of hunger and nights of cold, its sick-beds on the damp ground, and its bloody footprints in the snow, tell of his patient endurance.

At Bunker Hill an undisciplined body of farmers, ill-armed, weary, hungry and thirsty, calmly awaited the charge of old British campaigners, and by a fire of dreadful precision drove them back. "They may talk of their Mindens and their Fontenoys," said the British general, Howe, "but there was no such fire there." At Charleston, while the wooden fort shook with the British broadsides, Moultrie and his South Carolina boys, half naked in the stifling heat, through twelve long hours smoked their pipes and carefully pointed their guns.

At Long Island, to gain time for the retreat of the rest, five Maryland companies flew again and again in the face of the pursuing host. At Monmouth, eight thousand British were in hot pursuit of the retreating Americans. Square in their front Washington planted two Pennsylvania and Maryland regiments, saying, "Gentlemen, I depend upon you to hold the ground until I can form the main army." And hold it they did.

Heroism grander than that of the battlefield, which can calmly meet an ignominious death, was not lacking. Captain Nathan Hale, a quiet, studious spirit, just graduated from Yale College, volunteered to enter the British lines on Long Island as a spy. He was caught, and soon swung from an apple tree in Colonel Rutgers's orchard, a corpse. Bible and religious ministrations denied him, his letters to mother and sister destroyed, women standing by and sobbing, he met his fate without a tremor. "I only regret," comes his voice from yon rude scaffold, "that I have but one life to give for my country." It is a shame that America so long had no monument to this heroic man.

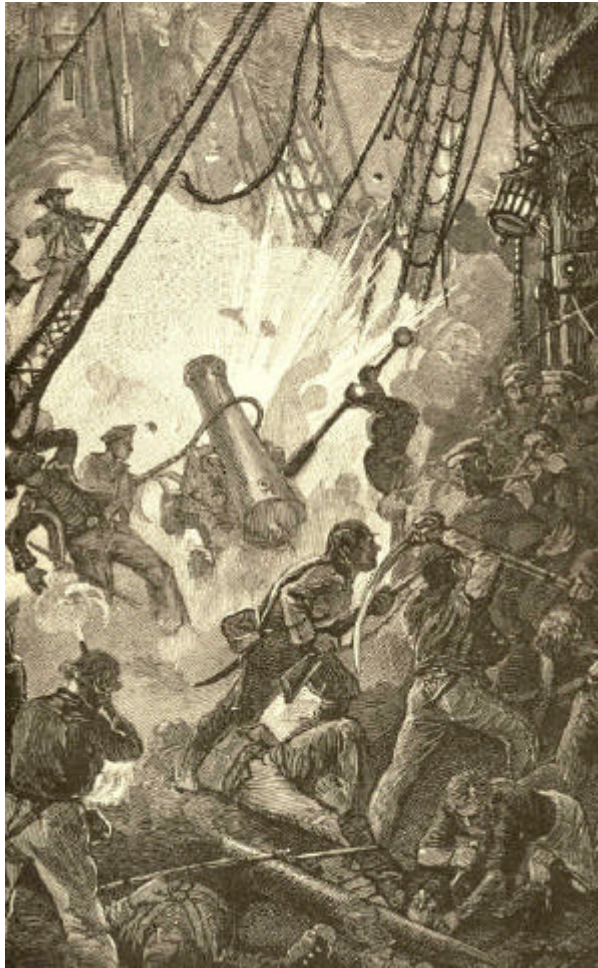


John Paul Jones.

One almost rejoices that the British captain, Cunningham, author of the cruelty to Hale, himself met death on the gallows, in London, 1791. How different from Hale's the treatment bestowed upon Andre, the British spy who fell into our hands. He was fed from Washington's table, and supported to his execution by every manifestation of sympathy for his suffering.

The stanch and useful loyalty of the New England clergy in the Revolution has been much dwelt upon--none too much, however. With them should be mentioned the Rev. James Caldwell, Presbyterian pastor at Elizabeth, N. J., who, when English soldiers raided the town, and its defenders were short of wadding, tore up his hymn-book for their use, urging: "Give them Watts, boys, give them Watts."

No fiercer naval battle was ever fought than when Jones, in the old and rotten *Bon Homme Richard*, grappled with the new British frigate *Serapis*. Yard-arm to yardarm, port-hole to port-hole, the fight raged for hours. Three times both vessels were on fire. The *Serapis's* guns tore a complete breach in the *Richard* from main-mast to stern. The *Richard* was sinking, but the intrepid Jones fought on, and the *Serapis* struck.



Fight between the Bon Homme Richard and the Serapis.

As the roll of Revolutionary officers is called, what matchless figures file past the mind's eye! We see stalwart Ethan Allen entering Ticonderoga too early in the morning to find its commander in a presentable condition, and demanding possession "in the name of Almighty God and the Continental Congress"--destined, himself, in a few months, to be sailing down the St. Lawrence in irons, bound for long captivity in England. We behold gallant Prescott leisurely promenading the Bunker Hill parapet to inspirit his men, shot and shell hurtling thick around. There is Israel Putnam--"Old Put" the boys dubbed him. He was no general, but we forgive his costly blunders at Brooklyn Heights and Peekskill as we think of him leaving plough in furrow at the drum-beat to arms, and speeding to the deadly front at Boston, or with iron firmness stemming the retreat from Bunker Hill. Young Richard Montgomery might have been next to Washington in the war but for Sir Guy Carleton's deadly grape-shot from the Quebec walls the closing moments of 1775. Buried at Quebec, his remains were transferred by the State of New York, July 8, 1818, to their present resting-place in front of St. Paul's, New York City, the then aged widow tearfully watching the funeral barge as it floated past Montgomery Place on the Hudson.



General Anthony Wayne.

During a four years' apprenticeship under Washington, General Greene had caught more of his master's spirit and method than did any other American leader, and one year's separate command at the South gave him a martial fame second only to Washington's own.

In him the great chief's word was fulfilled, "I send you a general." A naked, starving army, an empty military chest, the surrounding country impoverished and full of loyalists--these were his difficulties. Three States practically cleared of the royal army in ten months--this was his achievement. He retreated only to advance, was beaten only to fight again. One hardly knows which to admire most, his tireless energy and vigilance, his prudence in retreat, his boldness and vigor in attack, his cheerful courage in defeat, or his mingled kindness and firmness toward a suffering and mutinous army.

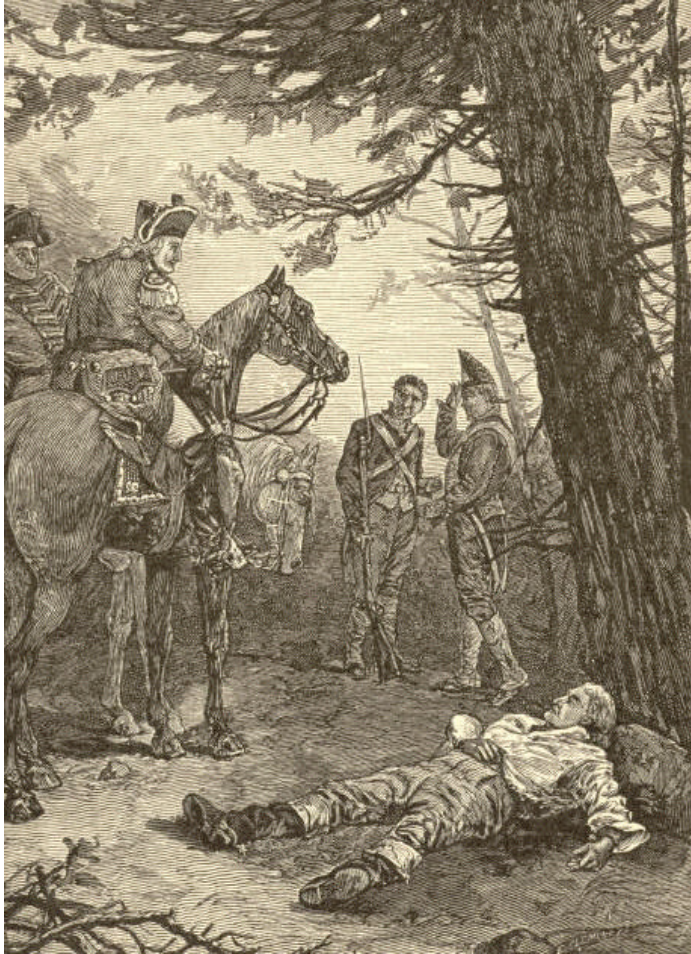
John Stark, eccentric but true, famous for cool courage--how stubbornly, with his New Hampshire boys, he held the rail fence at Bunker Hill, and covered the retreat when ammunition was gone! But Stark's most brilliant deed was at Bennington. "There they are, boys--the redcoats, and by night they're ours, or Molly Stark's a widow." Those "boys," without bayonets, their artillery shooting stones for balls, were little more than a mob. But with confidence in him, on they rush, up, over, sweeping Baume's Hessians from the field like a tornado. The figure of General Schuyler comes before us--quieter but not less noble, an invalid, set to hard tasks with little glory. His magnanimous soul forgets self in country as he cheerfully gives all possible help to Gates, his supplanter, and puts the torch to his own grain-fields at Saratoga lest they feed the foe.



The Encounter between Tarleton and Colonel Washington.

And matchless Dan Morgan of Virginia, with his band of riflemen, tall, sinewy fellows, in hunting-shirts, leggins, and moccasins, each with hatchet, hunter's knife, and rifle, dead sure to hit a man's head every time at two hundred and fifty yards. It was one of these men who shot the gallant Briton, Fraser, at Bemis's Heights. Morgan became the ablest leader of light troops then living. How gallantly he headed the forlorn hope under the icy walls of Quebec, where he was taken prisoner, and at Saratoga with his shrill whistle and stentorian voice called his dauntless braves where the fight was thickest! But Cowpens was Morgan's crowning feat. Inspiring militia and veterans alike with a courage they had never felt before, he routs Tarleton's trained band of horse, and then, skilful in retreat as he had been bold in fight, laughs at baffled Cornwallis's rage.

Gladly would one form fuller acquaintance with other Revolutionary leaders: Stirling, Sullivan, Sumter, Mad Anthony Wayne, of Monmouth and Stony Point fame, Glover with his brave following of Marblehead fishermen, who, able to row as well as shoot, manned the oars that critical night when General Washington crossed to Trenton.



DeKalb Wounded at Camden.

But space is too brief. Colonel Washington, the dashing cavalryman, was the Custer of the Revolution. All the patriot ladies idolized him. In a hot sword-fight with the Colonel, Tarleton had had three fingers nearly severed. Subsequently in conversation with a South Carolina lady Tarleton said: "Why do you ladies so lionize Colonel Washington? He is an ignorant fellow. He can hardly write his name." "But you are a witness that he can make his mark," was the reply.

DeKalb was an American, too--by adoption. It is related that he expostulated with Gates for fighting so unprepared at Camden, and that Gates intimated cowardice. "Tomorrow will tell, sir, who is the coward," the old fellow rejoined. And tomorrow did tell. As the battle reddened, exit Gates from Camden and from fame. We have recounted elsewhere how like a bull De Kalb held the field.

A monster British grenadier rushed on him, bayonet fixed. DeKalb parried, at the same time burying his sword in the grenadier's breast so deep that he was unable to extract it. Then seizing the dead man's weapon he fought on, thrusting right and left, till at last, overpowered by numbers, he slipped and fell, mortally hurt.

Among the civilian heroes of the Revolution, Robert Morris, the financier, deserves exceeding praise. Now turning over the lead ballast of his ships for bullets, now raising \$50,000 on his private credit and sending it to Washington in the nick of time, now leading the country back to specie payment in season to save the national credit, the Philadelphia banker aided the cause as much as the best general in the field.

Faithful and successful envoys as Jay and John Adams were, the Revolution brought to light one, and only one, true master in the difficult art of diplomacy--Franklin. Wise with a lifetime's shrewd observation, venerable with years, preceded by his fame as scientist and Revolutionary statesman, grand in his plain dignity, the Philadelphia printer stood unabashed before the throne of France, and carried king and diplomats with an art that surprised Europe's best-trained courtiers. Never missing an opportunity, he yet knew, by delicate intuition, when to speak and when to hold his tongue. Through concession, intrigue, and delay, his resolute will kept steady to its purpose. To please by yielding is easy. To carry one's point and be pleasing still, requires genius. This Franklin did--how successfully, our treaty of alliance with France and our treaty of peace with England splendidly attested.

Towering above Revolutionary soldier, general, and statesman stands a figure summing up in himself all these characters and much more. That figure is George Washington, the most perfect human personality the world has known. Washington's military ability has been much underrated.

He was hardly more First in Peace than First in War. That he had physical courage and could give orders calmly while bullets whizzed all about, one need not repeat. He was strategist and tactician too. Trenton and Yorktown do not cover his whole military record. With troops inferior in every single respect except natural valor, he out-generalled Howe in 1776, and he almost never erred when acting upon his own good judgment instead of yielding to Congress or to his subordinates. His movements on the Delaware even such a captain as Frederick the Great declared "the most brilliant achievements in the annals of military action." Washington advised against the attempt to hold Fort Mifflin, which failed; against the Canada campaign, which failed; against Gates for commander in the South, who failed; and in favor of Greene for that post, who succeeded. His army was indeed driven back in several battles, but never broken up.

At Monmouth his plan was perfect, and it seems that he must have captured Clinton but for the treason of Charles Lee, set, by Congress's wish, to command the van. Indeed, of Washington's military career, "take it all in all, its long duration, its slender means, its vast theatre, its glorious aims and results, there is no parallel in history." [footnote: Winthrop, Washington Monument Oration. February 23, 1885.]

Yet we are right in never thinking of the Great Man first as a soldier, he was so much besides. Washington's consummate intellectual trait was sound judgment, only matched by the magnificent balance which subsisted between his mental and his moral powers. "George had always been a good son," his mother said. Nature had endowed him with intense passions and ambitions, but neither could blind him or swerve him one hair from the line of rectitude as he saw it. And he made painful and unremitting effort to see it and see it correctly. He was approachable, but repelled familiarity, and whoever attempted this was met with a perfectly withering look.

He rarely laughed, and he was without humor, though he wrote and conversed well. He had the integrity of Aristides. His account with Congress while general shows scrupulousness to the uttermost farthing. To subordinate, to foe, even to malicious plotters against him, he was almost guiltily magnanimous. He loved popularity, yet, if conscious that he was right, would face public murmuring with heart of flint. Became the most famous man alive, idolized at home, named by every tongue in Europe, praised by kings and great ministers, who compared him with Caesar, Charlemagne, and Alfred the Great, his head swam not, but with steadfast heart and mind he moved on in the simple pursuit of his country's weal. "In Washington's career," said Fisher Ames, "mankind perceived some change in their ideas of greatness; the splendor of power, and even the name of conqueror had grown dim in their eyes." Lord Erskine wrote him: "You are the only being for whom I have an awful reverence."

"Until time shall be no more," said Lord Brougham, "will a test of the progress which our race has made in Wisdom and Virtue be derived from the veneration paid to the immortal name of Washington." And Mr. Gladstone: "If among all the pedestals supplied by history for public characters of extraordinary nobility and purity I saw one higher than all the rest, and if I were required at a moment's notice to name the fittest occupant for it, my choice would light upon WASHINGTON." [footnote: See Winthrop's Oration for these and other encomia.]

CHAPTER IX.

THE OLD CONFEDERATION

The Revolutionary Congress was less a government than an exigency committee. It had no authority save in tacit general consent. Need of an express and permanent league was felt at an early date. Articles of Confederation, framed by Dickinson, of Pennsylvania, were adopted by Congress in November, 1777. They were then submitted to the State Legislatures for ratification. By the spring of 1779 all the States but Maryland had given their approval. Upon the accession of the latter, on March 1, 1781, the articles went into effect at once.

The Confederation bound the States together into a "firm league of friendship" for common defence and welfare, and this "union" was to be "perpetual." Each State retained its "sovereignty" and "independence," as well as every power not "expressly delegated" to the central Government. Inhabitants of each State were entitled to all the privileges of citizens in the several States. Criminals fleeing from one State to another were to be returned.

Congress was composed of delegates chosen annually, each State being represented by not less than two or more than seven. Each State had but one vote, whatever the number of its delegates.

Taxation and the regulation of commerce were reserved to the State Governments. On the other hand, Congress alone could declare peace or war, make treaties, coin money, establish a post-office, deal with Indians outside of the States, direct the army, and appoint generals and naval officers. Many other things affecting all the States alike, Congress alone could do. It was to erect courts for trial of felonies and piracies on the high seas, and appoint judges for the settlement of disputes between the States. It was to make estimates for national expenses, and request of each State its quota of revenue.

To amend the Articles, the votes of the entire thirteen States were demanded. Important lesser measures--such as those regarding war or peace, treaties, coinage, loans, appropriations--required the consent of nine States. Upon other questions a majority was sufficient. A committee, composed of one delegate from each State, was to sit during the recess of Congress, having the general superintendence of national affairs.

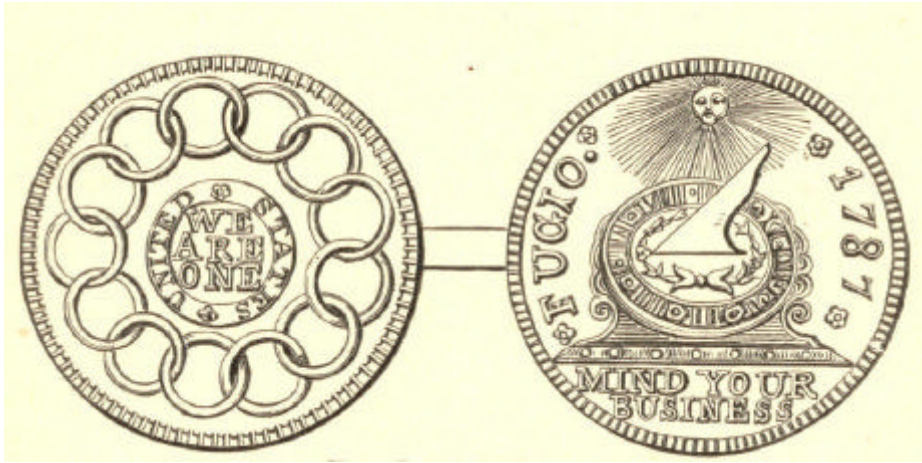
The faults of the Confederation were numerous and great. Three outshadowed the rest: Congress could not enforce its will, could not collect a revenue, could not regulate commerce.

Congress could not touch individuals; it must act through the State Governments, and these it had no power to coerce. Five States, for instance, passed laws which violated the treaty provision about payment of British creditors; yet Congress could do nothing but remonstrate. Hence its power to make treaties was almost a nullity. European nations did not wish to treat with a Government that could not enforce its promises.

Congress could make requisition upon the States for revenue, but had no authority to collect a single penny. The States complied or not as they chose. In October, 1781, Congress asked for \$8,000,000; in January, 1783, it had received less than half a million. Lack of revenue made the Government continually helpless and often contemptible.

Yet in spite of their looseness and other faults, the adoption of the Articles of Confederation was a forward step in American public law. Their greatest value was this: they helped to keep before the States the thought of union, while at the same time, by their very inefficiency, they proved the need of a stronger government to make union something more than a thought. The years immediately after the war were an extremely critical period.

The colonies had indeed passed through the Red Sea, but the wilderness still lay before them. The great danger which had driven them into union being past, State pride and jealousy broke out afresh. "My State," not "my country," was the foremost thought in most minds.



The Franklin Penny.

"United States" "We Are One"

"Fugio" "1787" "Mind Your Business"

There was serious danger that each State would go its own way, and firm union come, if at all, only after years of weakness and disaster, if not of war. The unfriendly nations of Europe were eagerly anticipating such result. At this juncture the Articles of Confederation, framed during the war when union was felt to be imperative, did invaluable service. They solemnly committed the States to perpetual union. Their provisions for extradition of criminals and for inter-State citizenship helped to break down the barriers between State and State.

Congress, by discharging its various duties on behalf of all the States, kept steadily before the public mind the idea of a national government, armed with at least a semblance of authority.

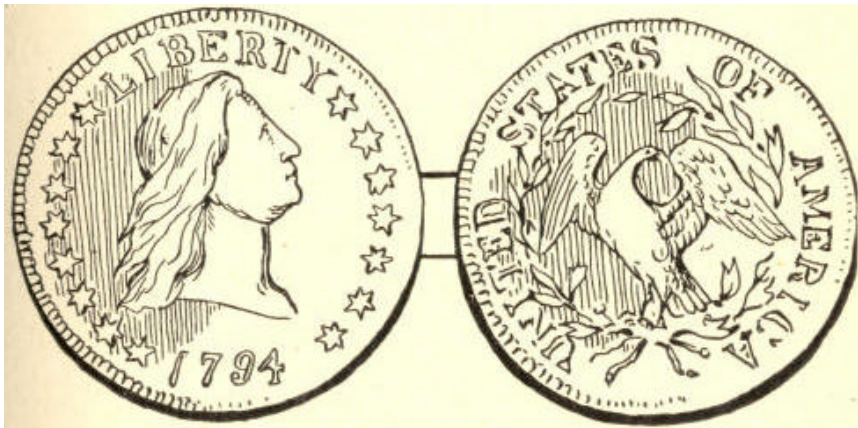
The war had cost about \$150,000,000. In 1783 the debt was \$42,000,000--\$8,000,000 owed in France and Holland, and the rest at home. The States contributed in so niggardly a way that even the interest could not be paid. Five millions were owing to the army. Deep and ominous discontent spread among officers and men. An obscure colonel, supposed to be the agent of more prominent men, wrote to Washington, advocating a monarchy as the only salvation for the country, and inviting him to become king. In the spring of 1783 an anonymous address, of menacing tone, was circulated in the army, calling upon it for measures to force its rights from an ungrateful country.

That the army disbanded quietly at last, with only three months' pay, in certificates depreciated nine-tenths, was due almost wholly to the boundless influence of Washington. How powerless the Government would have been to resist an uprising of the army, was shown by a humiliating incident. In June, 1783, a handful of Pennsylvania troops, clamoring for their pay, besieged the doors of Congress, and that august body had to take refuge in precipitate flight.

The country suffered greatly for lack of uniform commercial laws. So long as each State laid its own imposts, and goods free of duty in one State might be practically excluded from another, Congress could negotiate no valuable treaties of commerce abroad.

The chief immediate distress was from this wretchedness of our commercial relations, whether foreign or between the States at home. If our fathers would be independent, king and parliament were determined to make them pay dearly for the privilege. Accordingly Great Britain laid tariffs upon all our exports thither.

What was much harder to bear, an order of the king in council, July 2, 1783, utterly forbade American ships to engage in that British West-Indian trade which had always been a chief source of our wealth.



Dollar of 1794.

The First United States Coin.

"Liberty" "1794" "United States of America"

The sole remedy for these abuses in dealing with England at that time was retaliation, but Congress had no authority to take retaliatory steps, while the separate States could not or would not act sufficiently in harmony to do so. If one imposed customs duties, another would open wide its ports, filling the markets of the first with British goods by overland trade, so that the customs law of the first availed nothing.

If Pennsylvania and New York laid tariffs on foreign commodities, New Jersey and Connecticut people, in buying imported articles from Philadelphia or New York, were paying taxes to those greater States. North Carolina was in the same manner a forced tributary to South Carolina and Virginia, as were portions of Connecticut and Massachusetts to Rhode Island.

We also needed a complete system of courts, departments for foreign and Indian affairs, and an efficient executive. The single vote for each State was unfair, allowing one-third of the people to defeat the will of the rest. The article requiring the consent of nine States made it almost impossible to get important measures through Congress. Delegates should not have been paid by their respective States. In consequence of this provision, coupled with other things, Congress decreased in numbers and importance. In November, 1783, less than twenty delegates were present, representing but seven States, and Congress had to appeal to the recreant States to send back their representatives before the treaty of peace could be ratified.

But the one grand defect of the Confederation, underlying all others, was lack of power. The Government was an engine without steam. The States, just escaped from the tyranny of a king, would brook no new authority strong enough to endanger their liberties. The result was a thin ghost of a government set in charge over a lot of lusty flesh-and-blood States.

The Confederation, however, did one piece of solid work worthy of everlasting praise. The Northwest Territory, embracing what is now Ohio, Indiana, Illinois, Michigan, and Wisconsin, had been ceded to the Union by the States which originally claimed it. July 13, 1787, Congress adopted for the government of the territory the famous Ordinance of 1787. It provided for a governor, council, and judges, to be appointed by Congress, and a house of representatives elected by the people.

Its shining excellence was a series of compacts between the States and the territory, which guaranteed religious liberty, made grants of land and other liberal provisions for schools and colleges, and forever prohibited slavery in the territory or the States which should be made out of it. Thus were laid broad and deep the foundation for the full and free development of humanity in a region larger than the whole German Empire.

The passing of the Ordinance was probably due in large measure to the influence of the Ohio Company, a colonist society organized in Boston the year before. It was composed of the flower of the Revolutionary army, and had wealth, energy, and intelligence. When its agent appeared before Congress to arrange for the purchase of five million acres of land in the Ohio Valley, a bill for the government of the territory, containing neither the antislavery clause nor the immortal principles of the compacts, was on the eve of passage.

The Company, composed mostly of Massachusetts men, strongly desired their future home to be upon free soil. Their influence prevailed with Congress, eager for revenue from the sale of lands, and even the Southern members voted unanimously for the remodelled ordinance. The establishment of a strong and enlightened government in the territory led to its rapid settlement. Marietta, O., was founded in April, 1788, and other colonies followed in rapid succession.

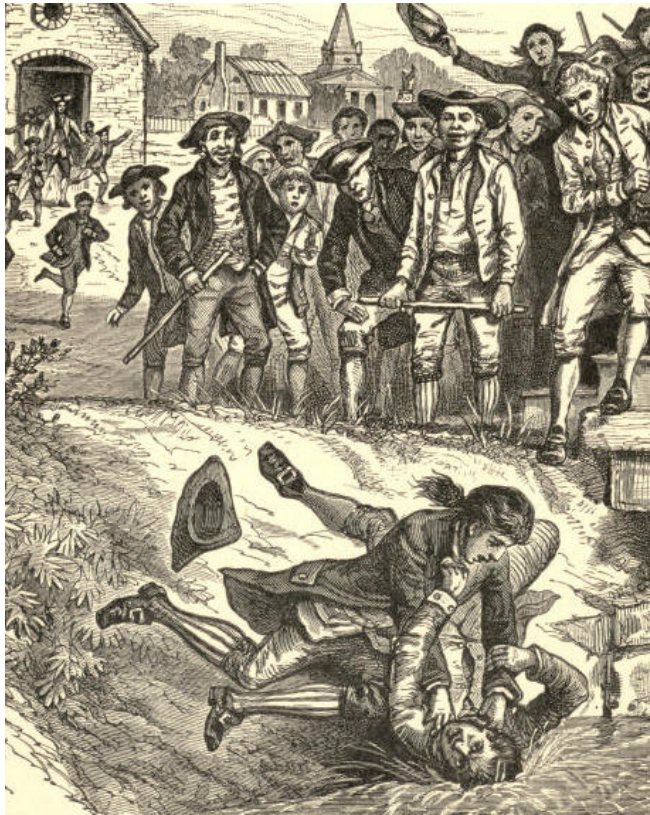
CHAPTER X.

RISE OF THE NEW CONSTITUTION

The anarchy succeeding the Revolution was as sad as the Revolution itself had been glorious. The Articles of Confederation furnished practically no government with which foreign nations could deal; England still clung to the western posts, contrary to the treaty of peace, with no power anywhere on this side to do more than protest; the debt of the confederacy steadily piled up its unpaid interest; the land was flooded with irredeemable paper money, state and national; the confederacy's laws and constitution were ignored or trampled upon everywhere; and the arrogance and self-seeking of the several States surpassed everything but their own contemptible weakness.

In 1786 Shays' rebellion broke out in Massachusetts. Solid money was very scarce, and paper all but worthless, yet many debts contracted on a paper basis were pressed for payment in hard money. The farmers swore that the incidence of taxes upon them was excessive, and upon the merchants too light. But the all-powerful grievance was the sudden change from the distressing monetary injustice during the Revolution, with the consequent increase of debts, to a rigid enforcement of debtors' claims afterward. At this period men were imprisoned for debt, and all prisons were frightful holes, which one would as lief die as enter. Meetings were held to air the popular griefs, and grew violent.

In August the court-house at Northampton was seized by a body of armed men and the court prevented from sitting. Similar uprisings occurred at Worcester, Springfield, and Concord. The leader in these movements was Daniel Shays, a former captain in the continental army. Governor Bowdoin finally called for volunteers to put down the rebellion, and placed General Lincoln in command.

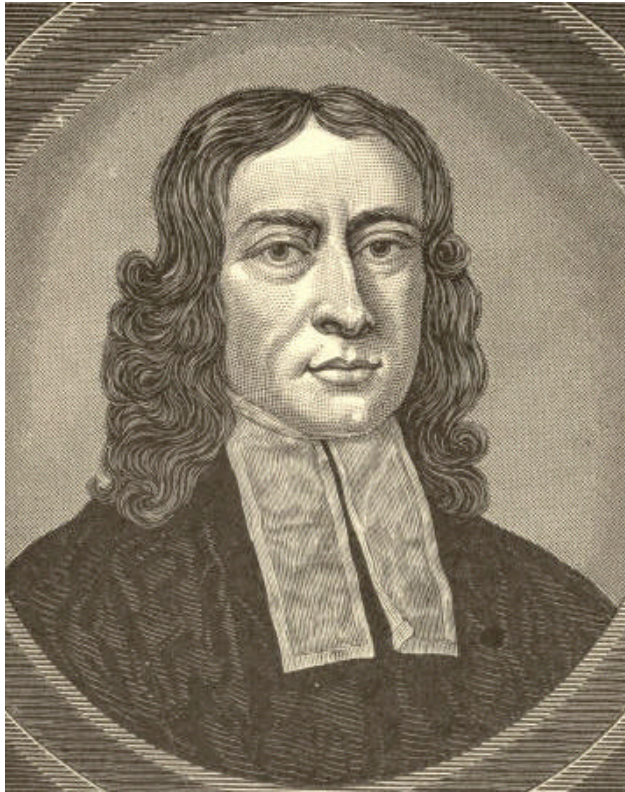


A Scene at Springfield, during Shays' Rebellion, when the mob attempted to prevent the holding of the Courts of Justice.

After several minor engagements, in which the insurgents were worsted, the decisive action took place at Petersham, where, in February, 1787, the rebels were surprised by Lincoln. A large number were captured, many more fled to their homes, and the rest withdrew into the neighboring States. Vermont and Rhode Island alone offered them a peaceful retreat, the other States giving up the fugitives to Massachusetts.

The Shays commotion, for a long time shaking one of the stanchest States in the Confederation, well showed the need of a far stronger central government than the old had been or could be made. Other influences concurred to the same conviction. Washington's influence, which took effect mainly through his inspired letter to the States on leaving the army, was one of these. National feeling was also furthered by the spread of two religious sects, the Baptists and the Methodists, up and down the continent, whose missionary preachers, ignoring State lines and prejudices, helped to destroy the latter in their hearers.

During the Revolution, American Methodism had been an appanage of England. Wesley had discountenanced our effort at independence, and when war broke out, all the Methodist preachers left the country, save Asbury, who secreted himself somewhere in Delaware, waiting for better days. But in 1784 this zealous body of Christians was organized as an American affair, its clergy and laity after this displaying loyalty of the most approved kind.



John Wesley.

Schemes had been mooted looking to a changed political order. A proposition for a convention of the States to reform the Confederation passed the New York Legislature in July, 1782, under the influence of Alexander Hamilton; another passed that of Massachusetts, July, 1783, urged by Governor Bowdoin; but because of too great love for state independence and too little appreciation as yet of the serious nature of the crisis, both motions failed of effect.

The idea of reform which found most favor, the only one which at first had any chance of getting itself realized, was that of giving Congress simply the additional power of regulating commerce. Even so moderate a proposal as this had many enemies, especially in the South. Greatly to her credit therefore as a Southern State, the purpose of amending the old Articles in the direction indicated was first taken up in earnest by Virginia.

Her Legislature, soon after opening session in October, 1785, listened to memorials from Norfolk, Suffolk, Portsmouth, and Alexandria, upon the gloomy prospects of American trade, which led to a general debate upon the subject. In this, Mr. Madison, by a speech far exceeding in ability any other that was made, began that extended and memorable career of efforts for enlarged function in our central government which has earned him the title of the Father of the Constitution.

The result of this discussion was a bill directing the Virginia delegation in Congress to propose amendment to the constitution giving to Congress the needed additional power. The enemies of the bill, however, succeeded in so modifying it by limiting the proposed grant of power to a period of thirteen years, that Madison and its other abettors turned against it and voted to lay it on the table.

There was in existence at this very time a joint commission representing Virginia and Maryland, which had been raised for the purpose of determining what jurisdiction each of the two States had over the Potomac and in Chesapeake Bay. Madison was one of the Virginia commissioners. A meeting had been held on March 17, 1785, at which the commissioners agreed in their report to transcend their instructions and to recommend to the two States uniform monetary and commercial regulations entire, including common export and import duties. They thus reported, adding the still further recommendation that commissioners to work out the details of such a plan be appointed each year till it should be completed. The Maryland Legislature adopted the report, adding the proposition that Delaware and Pennsylvania also should be invited to enter the system and to send commissioners.

When the commissioners' report, with Maryland's action thereon, came before the Virginia Legislature, Madison moved, as a substitute for the mutilated bill which had been tabled previously, that the invitation to take part in the commission go to *all* the States. The motion passed by a large majority.

Thus originated the Annapolis Convention of 1786. Nine States appointed delegates; all but Connecticut, Maryland, and the two Carolinas; but of the nine only Virginia, Delaware, Pennsylvania, New Jersey, and New York actually sent them. As the powers granted the commissioners presupposed a deputation from each of the States, those present, after mature deliberation, deemed it inadvisable to proceed, drawing up instead an urgent address to the States to take "speedy measures" for another, fuller, convention to meet on the second Monday of May, 1787, for the same purposes as had occasioned this one. Such was the mode in which the memorable Federal Convention came about. Its seat was Philadelphia.

The second Monday of May, 1787, which should have witnessed the opening, was the 14th, but on that day too few deputies had assembled. So late as the 25th only nine States were represented. They, however, effected an organization on the 25th and chose officers. On the 28th eleven States were present, so that on the next day business began in earnest. Governor Randolph read and expounded the Virginia plan for a new government, and Charles Pinckney the South Carolina plan. Both of these were referred to a committee of the whole to sit next day.

This Virginia plan was substantially the work of Madison, and was the earliest sketch of the present Constitution of the United States. With the Pinckney plan, it was worked over, debated, and amended in the committee of the whole, until June 13th, on which day the committee rose and reported to the Convention nineteen resolutions based almost wholly upon the Virginia plan. These were the text for all the subsequent doings of the Convention.

The so-called New Jersey plan was brought forward on June 15th, the gist of it being a recurrence to the foolish idea of merely repairing the Confederation that then was. Its strength, which was slight, consisted in its accord with the letter of the credentials which the delegates had brought. It was, however, emphatically rejected, the Convention stretching instructions, ignoring the old government, and proceeding to build from the foundations. On July 24th and 26th the resolutions, now increased to twenty-three, were put in the hands of a committee of detail to be reported back in the form of a constitution. They reappeared in this shape on August 6th, and this new document was henceforth the basis of discussion. On September 8th a new committee was appointed to revise style and arrangement, and brought in its work September 13th, after which additions and changes were few. The Constitution received signature September 17th.

The Federal Convention of 1787 was the most remarkable gathering in all our national history thus far. Sixty-five delegates were elected, but as ten never attended, fifty-five properly made up the body. Even these were at no time all present together. From July 5th to August 13th New York was not represented. Rhode Island was not represented at all. Washington was President; Franklin, aged eighty-one, the oldest member; Gillman, of New Hampshire, aged twenty-five, the youngest. Each State sent its best available talent, so that the foremost figures then in American political life were present, the chief exceptions being John Adams, Jefferson--both abroad at the time--Samuel Adams, not favorable to the Convention, John Jay, and Patrick Henry. Eight of the members had signed the great Declaration, six the Articles of Confederation, seven the Annapolis appeal of 1786. Washington and a good half dozen others had been conspicuous military leaders in the Revolution. Five had been or still were governors of their respective States. Nearly all had held important offices of one sort or another. Forty of the fifty-five had been in Congress, a large proportion of them coming to the Convention directly from the congressional session just ended in New York.

It is interesting to note how high many from this Constituent Assembly rose after the adoption of the paper which they had indited. Washington and Madison became Presidents, Gerry Vice-President, Langdon senator and President of the Senate, with duty officially to notify him who was already First in War that the nation had made him also First in Peace. Langdon was candidate for Vice-President in 1809. Randolph was the earliest United States Attorney-General, Hamilton earliest Secretary of the Treasury, M'Henry third Secretary of War, succeeding General Knox. Dayton was a representative from New Jersey in the II^d, III^d, IVth, and Vth Congresses, being Speaker during the last, then senator in the VIth, VIIth, and VIIIth. Ellsworth and Johnson were Connecticut's first pair of senators, Johnson passing in 1791 to the presidency of Columbia College, Ellsworth to the national chief-justiceship to succeed Jay.

Rutledge was one of the first associate justices of the Supreme Court. Subsequently, in July, 1795, Washington nominated him for chief justice, and he actually presided over the Supreme Court at its term in that year; but, for his ill-mannered denunciation of Jay's treaty, the Senate declined to confirm him. Wilson and Patterson also each held the position of associate justice on the supreme bench of the nation.

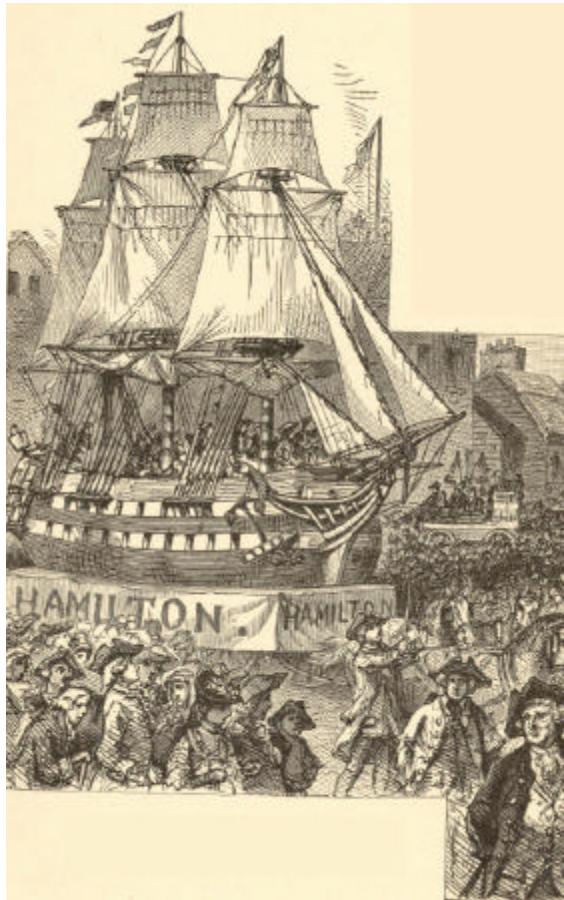
Rufus King, after the adoption of the Constitution, removed to New York. He was a senator from that State between 1789 and 1795, and again between 1813 and 1826; and Minister to England from 1796 to 1803, and again after 1826 till his failing health compelled his resignation. He was the federalist candidate for Vice-President in 1804 and 1808, and for President in 1816. Sherman of Connecticut, Gillman of New Hampshire, and Baldwin of Georgia, went into the House of Representatives and were promoted thence to the Senate.

Robert Morris of Pennsylvania, Gouverneur Morris, now again of New York, Caleb Strong of Massachusetts, William Patterson of New Jersey, Richard Bassett of Delaware, Alexander Martin and Blount of North Carolina, Charles Pinckney and Butler of South Carolina, and Colonel Few of Georgia, all became senators. Madison, Gerry, Fitzsimmons of Pennsylvania, Carroll of Maryland, and Spaight and Williamson of North Carolina, all wrought well in the House, but did not reach the Senate. Charles Cotesworth Pinckney was nominated for the Presidency in 1800, on the ticket with John Adams, again in 1804, and still again in 1808.

Jared Ingersoll was the federalist candidate for Vice-President in 1812, on the ticket with De Witt Clinton, against Madison and Gerry. Yates rose to be Chief Justice of the State of New York, Lansing to be its Chancellor. Gerry and Strong of Massachusetts, Patterson of New Jersey, Bassett of Delaware, Spaight and Davie of North Carolina, and Charles Pinckney of South Carolina, became Governors of their States, as did Alexander Martin, of North Carolina, a second time.

Having received final revision and signature, the Constitution was transmitted, with a commendatory letter from Washington, to the old Congress. Suggestions were added relating to the mode of launching it. Congress was requested to lay the new Great Charter before the States, and, so soon as it should have been ratified by nine of them, to fix the date for the election by these of presidential electors, the day for the latter to cast their votes, and the time and place for commencing proceedings under the revised constitution. Congress complied. The debates of the Convention, only more hot, attended ratification, which was carried in several States only by narrow majorities.

Delaware was the first to ratify, December 7, 1787. Pennsylvania and New Jersey soon followed, the one on the 12th of the same month, the other on the 18th. Delaware and New Jersey voted unanimously; Pennsylvania ratified by a vote of forty-six to twenty-three. During the first month of the new year, 1788, Georgia and Connecticut ratified, on the 2d and 9th respectively.



Celebrating the Adoption of the Constitution in New York.

New Hampshire next took up the question, but adjourned her convention to await the action of Massachusetts. In this great State the people were divided almost equally. Of the western counties the entire population that had sympathized or sided with Shays was bitter against the Constitution. The larger centres and in general the eastern part of the State favored it. The vote was had on February 6th, and showed a majority of only 19 out of 355 in favor of the Constitution.

The good work still remained but half done. It was a crisis. Accordingly, early in this year, Hamilton, Madison, and Jay published their weighty articles, since collected in the immortal volume known as "The Federalist." These discussions seemed to have much effect. Maryland ratified on April 28th, and South Carolina on May 23d. New Hampshire fell into line, the necessary ninth State to ratify, June 21st. Thus the Constitution became binding, yet it was still painfully uncertain what the action of Virginia and New York would be.

In both States the Constitution was opposed by many of the most influential men, and after a long and heated canvass adoption occurred in Virginia by a majority of only ten in a vote of 168; in New York by the narrow majority of two. Even now North Carolina and Rhode Island remained aloof. The former, not liking the prospect of isolation, came into the Union November 21, 1789, after the new government had been some time at work. Rhode Island, owing to her peculiar history in the matter of religious liberty, which she feared a closer union would jeopardize, as well as to the strength of the paper-money fanaticism within her borders, was more obdurate. The chief difficulty here was to get the legislature to call a convention. The New York *Packet* of February 20, 1790, in a letter from Rhode Island, tells how this was accomplished. Among the anti-adoptionists in the senate was a rural clergyman who, prompted by his conscience, or, as one account runs, by exhortation and the offer of a conveyance by an influential member of the adoption party, was, when Sunday came, absent upon his sacred work.

The occasion was seized for a ballot. The senate was a tie, but the Governor threw the casting vote for a convention. This was called as soon as possible, and on May 29, 1790, Rhode Island, too, at the eleventh hour, made the National Constitution her own. Not only had a MORE PERFECT UNION been formed at last, but it included all the Old Thirteen States.

PART SECOND

THE UNITED STATES UNDER THE CONSTITUTION

PERIOD I.

THE UNITED STATES AND THE FRENCH REVOLUTION

1789-1814

CHAPTER I.

THE NEW GOVERNMENT

Notified on July 2, 1788, that nine States had voted approval of the Constitution, Congress, on September 13th, set the first Wednesday in January, 1789, for the choice of electors, the first in February for their ballot, and the first in March for putting the new government in motion. The first Wednesday in March, 1789, happening to fall on the 4th, this date has since remained as the initial one for presidencies and congresses.

The First Congress had no quorum in either branch on March 4th, and did not complete its organization till April 6th. Washington was inaugurated on April 30th, in New York, where the First Congress, proceeding to execute the Constitution, held its entire first session. Its second session was in Philadelphia, the seat of Congress thence till the second session of the VIth Congress, 1800, since which time Congress has always met in Washington.

The inauguration of our first President was an imposing event. As the hero moved from his house on Franklin Square, through Pearl Street to Broad, and through Broad to Federal Hall, corner of Wall Street, people thronged every sidewalk, door-way, window, and roof along the entire line of march. About him on the platform after his arrival stood John Adams, Alexander Hamilton, Baron Steuben, Generals St. Clair and Knox, Roger Sherman, and Chancellor Livingston. Washington advanced to the rail, placed his hand upon his breast, and, bowing low, said audibly, as the Chancellor in his robes solemnly recited the words, "I swear, so help me God," reverently kissing the Bible as if to add solemnity to his oath.

"It is done," cried the Chancellor; "long live George Washington, President of the United States!" The great crowd repeated the cry. It was echoed outside in the city, off into the country, far north, far south, till the entire land took up that watchword, which his own generation has passed on to ours and to all that shall come, Long live George Washington!

Let us study for a moment the habitat of the people over which the new Chief Magistrate was called to bear sway. By the census of 1790, the population of the thirteen States and of the territory belonging to the Union numbered 3,929,214. It resided almost wholly on the Atlantic coast from Maine to Florida. Not more than five per cent of it was west of the mountains. The line of inner settlement, now farther, now nearer, ran at an average distance from the coast of two hundred and fifty-five miles.

The coast land of Massachusetts, southern New England, and New York was the most densely covered. The Hudson Valley was well peopled as far as Albany. Farms and hamlets were to be met all the way from New York across New Jersey to the Delaware, and far up the Delaware Valley westward from that river. Maine, still belonging to Massachusetts, had few settlements except upon her coast and a little way inland along her great rivers. Vermont, not yet a State and claimed by both New Hampshire and New York, was well filled up, as was all New Hampshire but the extreme north.

The westward movement of population took mainly four routes, the Mohawk and Ontario, the Upper Potomac, the Southwestern Virginia, and the Western Georgia. The Mohawk Valley was settled, and pioneers had taken up much land on Lake Ontario and near the rivers and lakes tributary to it. Elmira and Binghamton had been begun.

Pennsylvania settlers had pressed westward more or less thickly to the lower elevations of the Alleghanies, while beyond, in the Pittsburgh regions, they were even more numerous. What is now West Virginia had squatters here and there. Virginian pioneers had also betaken themselves southwestward to the head of the Tennessee. North and South Carolina were inhabited as far west as the mountains, though the population was not dense. In Northern Kentucky, along the Ohio, lay considerable settlements, and in Tennessee, where Nashville now is, there was another centre of civilization. In the Northwest Territory, Detroit, Vincennes, Kaskaskia, Prairie du Chien, Mackinac, and Green River were outposts, at each of which a few white men might have been found.

The following table shows pretty nearly the population of the several States about the end of the Revolution:

New Hampshire	102,000
Massachusetts	330,000
Rhode Island [1783]	51,869
[2,342 of them negroes, 464 mulattoes, 525 Indians.]	
Connecticut [1782]	208,870
New York [1786]	215,283
New Jersey[1785]	138,934
[10,500 of them negroes.]	
Pennsylvania	330,000
Delaware	37,000
Maryland	250,000
[80,000 of them negroes.]	
Virginia	532,000
[280,000 of them negroes.]	
North Carolina	224,000
[60,000 of them negroes.]	
South Carolina	188,000
[80,000 of them negroes.]	
Georgia [rough estimate]	80,000
[20,000 of them negroes.]	

Another table exhibits approximately the number of houses in the principal cities of the country in 1785-86. It was customary then in estimating population to allow seven persons to each house. This multiplier is probably too large rather than too small.

	Houses.	Population, multiplying number of houses by seven.
Portsmouth, N. H	450	3,150
Newburyport	510	3,570
Salem, Mass	730	5,210
Boston	2,200	15,400
Providence	560	3,920
Newport	790	5,530
Hartford	300	2,100
New Haven	400	2,800
New York	3,340	23,380
Albany and suburbs	550	3,850
Trenton	180	1,260
Philadelphia and suburbs	4,500	31,500
Wilmington	400	2,800
Baltimore	1,950	13,650
Annapolis	260	1,820
Frederick, Md.	400	2,800
Alexandria	300	2,100
Richmond	310	2,170
Petersburg	280	1,960
Williamsburg	230	1,610
Charleston	1,540	10,780
Savannah	200	1,400

The first New York City Directory appeared in 1786. It had eight hundred and forty-six names, not going above Roosevelt and Cherry Streets on the East side, or Dey Street on the West. There were then in the city three Dutch Reformed churches, four Presbyterian, three Episcopal, two German Lutheran, and one congregation each belonging to the Catholics, Friends, Baptists, Moravians, and Jews. In 1789 the Methodists had two churches, and the Friends two new Meetings. The houses in the city were generally of brick, with tile roofs, mostly English in style, but a few Dutch. The old Fort, where the provincial governors had resided, still stood in the Battery. The City Hall was a brick structure, three stories high, with wings, fronting on Broad Street. Want of good water greatly inconvenienced the citizens, as there was no aqueduct yet, and wells were few. Most houses supplied themselves by casks from a pump on what is now Pearl Street, this being replenished from a pond a mile north of the then city limits. New York commanded the trade of nearly all Connecticut, half New Jersey, and all Western Massachusetts, besides that of New York State itself.

In short it did the importing for one-sixth of the population of the Union. Pennsylvania and Maryland made the best flour. In the manufacture of iron, paper, and cabinet ware, Pennsylvania led all the States.

Over this rapidly growing portion of the human race in its widely separated homes there was at last a central government worthy the name. The old Articles of Confederation had been no fundamental law, not a foundation but a homely botch-work of superstructure, resembling more a treaty between several States than a ground-law for one. In the new Constitution a genuine foundation was laid, the Government now holding direct and immediate relations with each subject of every State, and citizens of States being at the same time citizens of the United States. Hitherto the central power could act on individuals only through States. Now, by its own marshals, aided if need were by its army, it could itself arrest and by its own courts try and condemn any transgressor of its laws.

But if the State relinquished the technical sovereignty which it had before, it did not sink to the level of an administrative division, but increased rather in all the elements of real dignity and stability. Over certain subjects the new constitution gave the States supreme, absolute, and uncontrollable power. The range of this supreme state prerogative is, in fact, wider on the whole than that of national. For national action there must be demonstrable constitutional warrant, for that of States this is not necessary. In more technical phrase: to the United States what is not granted is denied, to the State what is not denied is granted. It is a perpetual reminder of original state sovereignty, that no State can without its consent be deprived of its equal suffrage in the Senate. Each State also must have at least one representative. States cannot be sued by private persons or corporations. Even upon subjects constitutionally reserved for national law, if Congress has not legislated state statute is valid.

Precisely as its advocates had prophesied, this revised order worked well, bringing a blessed new feeling of security. On commerce and business it conferred immense benefits, which rapidly became disseminated through all classes of the population. The sense and appearance of unity and consequent strength which the land had enjoyed in the early days of the Revolution came back in greater completeness, and was most gratifying to all. There was still a rankling hatred toward England, and men hostile to central government on other grounds were reconciled to it as the sole condition of successful commercial or naval competition with that country.

The consequence was a wide-spread change of public feeling in reference to the Constitution very soon after its adoption. Bitterest hostility turned to praise that was often fulsome, reducing to insignificance an opposition that had probably comprised a popular majority during the very months of ratification. Many shifted their ground merely to be on the popular side. With multitudes Washington's influence had more weight than any argument.

The Constitution's unfortunate elasticity of interpretation also for the time worked well. People who had fought it saw how their cherished views could after all be based upon it. All parties soon began, therefore, to swear by the Constitution as their political Bible. The fathers of the immortal paper were exalted into demigods. Fidelity to the Constitution came to be pre-eminently the watchword of those till now against its adoption. They in fact shouted this cry louder than the Federalists, who had never regarded it a perfect instrument of government. It came to pass ere long that nothing would blast a public measure so instantly or so completely as the cry of its unconstitutionality.



Map Showing the Progressive Acquisitions of Territory by the United States

Few can form any idea of the herculean work performed by the First Congress in setting up and starting our present governmental machinery. The debt which we owe the public men of that time is measureless. With such care and wisdom did they proceed, that little done by them has required alteration, the departments having run on decade after decade till now essentially in their original grooves. The Senate formed itself into its three classes, so that one-third of its members, and never more than this, should retire at a time. Four executive departments were created, those of State, the Treasury, War, and the Attorney-Generalship. The first occupants were, respectively, Jefferson, Hamilton, Knox, and Randolph.

Of the present departments of government the post-office alone has come down from colonial times, Benjamin Franklin having been general superintendent thereof under the British Government. He was re-appointed by the second Continental Congress, in July, 1775. The First Congress under the Constitution erected a general post-office, but its head attained the dignity of a regular cabinet officer not till about 1830, and then only by custom. To begin with, in fact, there was strictly no cabinet in the modern sense. Washington's habit was to consult his ministers separately.

Under the Articles of Confederation there had been a treasury board of several commissioners, and a superintendent of finance. The new arrangement, making one man responsible, was a great improvement. A law was passed forbidding the Secretary of the Treasury to be concerned in trade or commerce, that is, to be a merchant. The late A. T. Stewart, appointed by President Grant to the office, was rejected as ineligible under this law. Yet no department of our Government has had a finer record than the Treasury.

Not only had the First Congress to vote revenue, but to make provision for the collection of this. Revenue districts had to be mapped out, the proper officers appointed, and light-houses, buoys, and public piers arranged for along the whole coast.

Salaries were to be fixed, and a multitude of questions relating to the interpretation and application of the Constitution to be solved by patient deliberation. The United States Mint was erected, and our so felicitous monetary system, based upon the decimal principle along with the binary, established in place of the desperate monetary chaos prevailing before. Hitherto there were four sorts of colonial money of account all differing from sterling, while Mexican dollars and numberless other forms of foreign money were in actual circulation.

The noblest part of all this work was the organization of the federal judiciary, through an act drawn up with extraordinary ability by Oliver Ellsworth of Connecticut. A Chief Justice--the first one was John Jay--and five associates were to constitute the Supreme Court. District courts were ordained, one per State and one each for Kentucky and Maine, not yet States; also three circuit courts, the eastern, the middle, and the southern; and the jurisdiction of each grade was accurately fixed.

As yet there were no special circuit judges, nor, excepting the temporary ones of 1801, were there till some eighty years later. Clerks, marshals, and district-attorneys were part of this first arrangement. Originally the Attorney-General was little but an honorary officer. He kept his practice, had no public income but his fees, and resided where he pleased.

As his title implies, the Secretary of War was to have charge of all the nation's means of offence and defence, there being until April 30, 1796, no separate secretary for the navy. We had indeed in 1789 little use for such a functionary, not a war-vessel then remaining in Government's possession. In 1784 our formidable navy consisted of a single ship, the *Alliance*, but the following year Congress ordered her sold.

The senators most active in the creations just reviewed were Langdon, King, and Robert Morris, besides Ellsworth. In the House, Madison outdid all others in toil as in ability, though worthily seconded by distinguished men like Fisher Ames, Gerry, Clymer, Fitzsimmons, Boudinot, and Smith.

The three Connecticut representatives, Sherman, Trumbull, and Wadsworth, made up perhaps the ablest state delegation in the body.

CHAPTER II.

FEDERALISM AND ANTI-FEDERALISM

Early in the life of our Constitution two parties rose, which, under various names, have continued ever since. During the strife for and against adoption, those favoring this had been styled Federalists, and their opponents, Anti-Federalists. After adoption--no one any longer really antagonizing the Constitution--the two words little by little shifted their meaning, a man being dubbed Federalist or Anti-Federalist according to his preference for strong national government or for strong state governments. The Federalist Party gave birth to the Whig Party, and this to the modern Republican Party. The Anti-Federalists came to be called "Republicans," then "Democratic-Republicans," then simply "Democrats."

The central plank of the federalist platform was vigorous single nationality. In aid of this the Federalists wished a considerable army and navy, so that the United States might be capable of ample self-defence against all foes abroad or at home. Partly as a means to this, partly to build up national feeling, unity, self-respect, and due respect for the nation abroad, they sought to erect our national credit, which had fallen so low, and to plant it on a solid and permanent basis. As still further advancing these ends they proposed so to enforce regard for the national authority and laws and obedience to them, that within its sphere the nation should be absolutely and beyond question paramount to the State.

In many who cherished them these noble purposes were accompanied by a certain aristocratic feeling and manner, a carelessness of popular opinion, an inclination to model governmental polity and administration after the English, and an impatience with what was good in our native American ideas and ways, which, however natural, were unfortunate and unreasonable.

Puffed up with pride at its victory in carrying the Constitution against the opposition of the ignorant masses, this party developed a haughtiness and a lack of republican spirit amounting in some cases to deficient patriotism.

The early Federalists were of two widely different stripes. There were among them Washington, Adams, Hamilton, and Jay; and there were the interested and practical advocates of the same, made up of business men and the wealthy and leisurely classes, who, without intending to be selfish, were governed in political sympathy and action mainly by their own interests.

The greatest early Anti-Federalists were Jefferson, Madison, and Randolph, all of whom had been ardent for the Constitution. The party as a whole, indeed, not only acquiesced in the re-creation of the general Government, but was devotedly friendly to the new order.

But while Republicans admitted that a measure of governmental centralization was indispensable, they prized the individual State as still the main pillar of our political fabric, and were hence jealous of all increased function at the centre. It became more and more their theory that the States, rather than the individuals of the national body politic, had been the parties to the Constitution, so making this to be a compact like the old Articles, and the government under it a confederacy as before 1789.

Another issue divided the parties, that between the strict and the more free interpretation of the Constitution--between the close constructionists and the liberal constructionists. The question dividing them was this: In matters relating to the powers of the general Government, ought any unclear utterance of the Constitution to be so explained as to enlarge those powers, or so as to confine them to the narrowest possible sphere? Each of the two tendencies in construction has in turn brought violence to our fundamental law, but the sentiment of nationality and the logic of events have favored liberality rather than narrowness in interpreting the parchment.

When in charge of the government, even strict constructionists have not been able to carry out their theory. Thus Jefferson, to purchase Louisiana, was obliged, from his point of view, to transcend constitutional warrant; and Madison, who at first opposed such an institution as unconstitutional, ended by approving the law which chartered the Second United States Bank.

The Federalists used to argue that Article I, Section VIII., the part of the Constitution upon which debate chiefly raged, could not have been intended as an exhaustive statement of congressional powers. The Government would be unable to exist, they urged, to say nothing of defending itself and accomplishing its work, unless permitted to do more than the eighteen things there enumerated.

They further insisted that plain utterances of the Constitution presuppose the exercise by Congress of powers not specifically enumerated, explicitly authorizing that body to make all laws necessary for executing the enumerated powers "and *all other powers* vested in the Government of the United States or in any department or officer thereof."

In reply the Anti-Federalists made much of the titles "United States," "Federal," and the like, in universal use. They appealed to concessions as to the nature of our system made by statesmen of known national sympathies. Such concessions were plentiful then and much later. Even Webster in his immortal reply to Hayne calls ours a government of "strictly limited," even of "enumerated, specified, and particularized" powers. Two historical facts told powerfully for the anti-federalist theory. One was that the government previous to 1789 was unquestionably a league of States; the other was that many voted for the present Constitution supposing it to be a mere revision of the old. Had the reverse been commonly believed, adoption would have been more than doubtful.

CHAPTER III.

DOMESTIC QUESTIONS OF WASHINGTON'S ADMINISTRATIONS

I. *Tariff*.--Upon declaring their independence the United States threw open their ports, inviting trade from all nations. During the Revolution foreign commerce had become an important interest, and at its close the inclination of all, the more so from memory of England's accursed navigation acts, would have been to leave it untrammelled. Several motives, however, induced resort to a restrictive policy which, beginning with 1789, and for years expected to be temporary, has been pursued with little deviation ever since. Of course the Government needed revenue, and the readiest means of securing this was a tax on imports. Rates were made low, averaging until 1808 only 11-1/4 per cent. As a consequence the revenues were large.

The movers of this first tariff, especially Hamilton, also wished by means of it to make the central Government felt as a positive power throughout the land. It had this effect. All custom-houses passed to the United States, and United States officers appeared at every port, having an authority, in its kind, paramount to that of state functionaries.

A stronger consideration still was to retaliate against England. In spite of America's political independence the old country was determined to retain for her merchant marine its former monopoly here. Orders in council practically limited all the commerce of England and her remaining colonies with this country to English ships, although, from the relations of the two lands and the nature of their productions, our chief foreign trade must still be with England. There was no way to meet this selfish policy but to show that it was a game which we too could play.

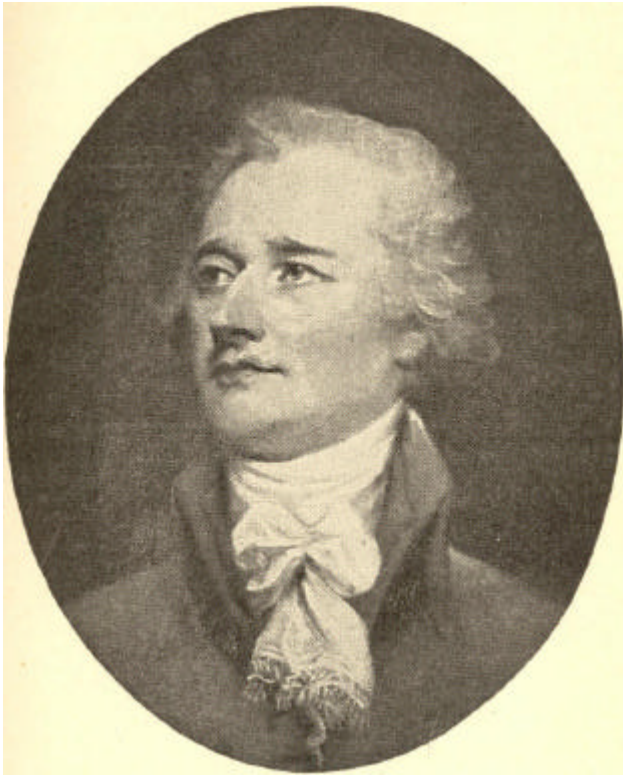
Besides, however we behaved toward the mother-land, we needed to be prepared for war, because it was evident that George III. and his ministers had only too good a will to reduce us again to subjection if opportunity offered. Should we, by taxing imports, become independent in the production of war material, a fresh struggle for life would be much more hopeful than if we continued dependent upon foreign lands for military supplies.

II. *Funding the Debt.*--In the first years after they had set up their new constitution the people of this country staggered under a terrible financial load. Besides the current expenses of Government, there were: 1, the federal debt due abroad, over thirteen million dollars, including arrears; 2, the federal debt held at home, about forty-two and one-half million; 3, the state revolutionary debts, aggregating nearly twenty-five million. Each of these sums was largely made up of unpaid interest.

The foreign debt Congress unanimously determined to pay in full. In respect to the domestic federal debt two opinions prevailed. Hamilton was for liquidating this also to the last copper. But these securities had mostly changed hands since issue, so that dollar for dollar payment would not advantage original holders but only speculators. As soon as Hamilton's recommendation became public this class of paper rose from about fifteen cents per dollar to fifty cents, and enterprising New York firms hurried their couriers, relay horses, and swift packets to remote parts of the Union to buy it up. Madison, supported by a strong party, proposed, therefore, to pay only original debtors at par, allowing secondary holders barely the highest market value previous to the opening of the question in Congress. He was overruled, however, and this part of the debt, too, was ordered paid according to its literal terms.

Even the motion that the United States should assume and discharge the state debts finally prevailed, though against most violent and resolute opposition. This came especially from Virginia, who had gone far in the payment of her own war debt, and thought it unjust to have to help the delinquent States. Her objection was strengthened by the fact that most of the debt was owned in the North. The victory was secured by what is now termed a "deal," northern votes being promised in favor of a southern location for the national capital, in return for enough southern votes to pass the bill assuming state debts.

These gigantic measures had origin in the mind of Hamilton. To many they appeared and appear today like a grand government job. But they worked well, laying the foundation of our national credit. Interest arrears and back installments of the foreign debt were to be paid at once with the proceeds of a fresh loan, supplemented by income from customs and tonnage. The remaining debt was to be refunded. Federal stocks shot up in value, moneyed interests became attached to the Government, and the nation began to be looked to as a more reliable bulwark of sound finance than any of the States.

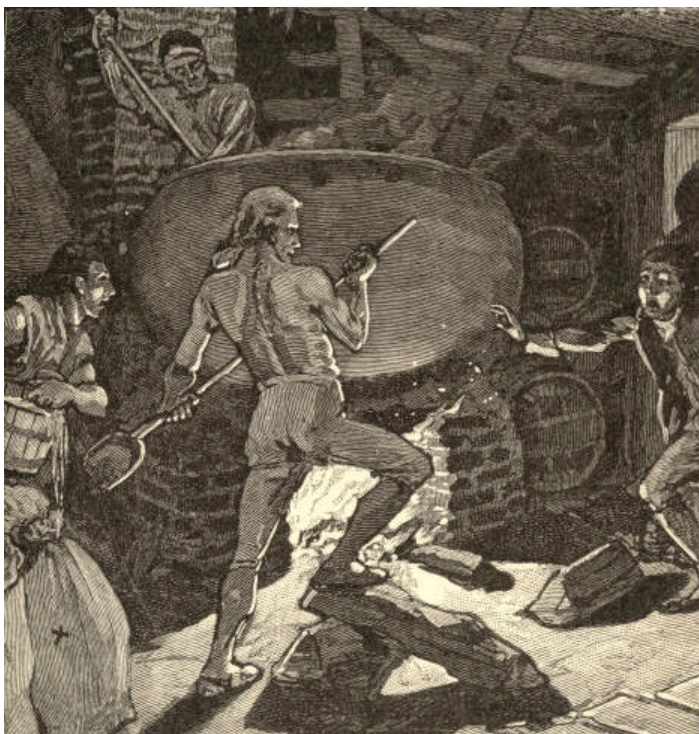


Alexander Hamilton.

From a painting by John Trumbull in the Trumbull Gallery at Yale College.

III. *The Excise.*--Unexpectedly productive as the tariff had proved, public income still fell short of what these vast operations required. Direct taxation or a higher tariff being out of the question, Hamilton proposed, and Congress voted, an excise on spirits, from nine to twenty-five cents a gallon if from grain, from eleven to thirty if from imported material, as molasses. Excise was a hated form of tax, and this measure awakened great opposition in Maryland, Virginia, North Carolina, and New England, and most of all in Pennsylvania, in whose western counties distilling was the staple industry.

Here, far from the seats of power, even the state government had asserted itself little. The general Government was defied. A meeting in Washington County voted to regard as an enemy any person taking office under the excise law. September 6, 1791, a revenue officer was tarred and feathered. Other such cases followed. Secret societies were formed to oppose the law. Whippings and even murders resulted. At last there was a veritable reign of terror. The President proceeded slowly but with firmness, accounting this a good opportunity vividly to reveal to the people the might of the new Government.



Illicit Distillers warned of the Approach of Revenue Officers.

Militia and volunteers were called out, who arrived in the rebellious districts in November, 1794. Happily, their presence sufficed. The opposition faded away before them, not a shot being fired on either side.

IV. *The Bank.*--The Secretary of the Treasury pleaded for a United States Bank as not only profitable to Government but indispensable to the proper administration of the national finances. Congress acquiesced, yet with so violent hostility on the part of many that before approving the Charter Act Washington required the written opinions of his official advisers. Jefferson powerfully opposed such an institution as unconstitutional, his acute argument being the arsenal whence close constructionists have gotten their weapons ever since. Randolph sided with Jefferson, Knox with Hamilton. The President at last signed, agreeing with Hamilton in the view that Congress, being the agent of a sovereignty, is not, within any sphere of action constitutionally open to it, shut up to specific or enumerated modes of attaining its ends, but has choice among all those that nations customarily use.

The Supreme Court has proceeded on this doctrine ever since. The bank proved vastly advantageous. Three-fourths of every private subscription to its stock had to be in government paper, which raised this to par, while it naturally became the interest of all stockholders to maintain and increase the stability and credit of the Government.

CHAPTER IV.

RELATIONS WITH ENGLAND

In 1789 France adopted a constitution. Provoked at this, the friends of absolute monarchy withdrew from France, and incited the other powers of Europe to interpose in effort to restore to Louis XVI. his lost power. The result was that Louis lost his head as well as his power, and that France became a republic. War with all Europe followed, which elevated that matchless military genius, Napoleon Bonaparte, first to the head of France's armies, then to her throne, to be toppled thence in 1814, partly by his own indiscretions, partly by the forces combined against him.

From the beginning to the end of this revolutionary period abroad, European politics determined American politics, home as well as foreign, causing dangerous embarrassment and complications.

War having in February, 1793, been declared by England and France against each other, what attitude the United States should assume toward each became a pressing question. Washington's proclamation of neutrality, April 22, 1793, in effect, though not so meant, annulled our treaty of 1778 with France, which bound us to certain armed services to that monarchy in case of a rupture between her and England. Washington's paper alleged that "the duty and interests of the United States" required impartiality, and assumed "to declare the disposition of the United States to observe" this.

"The proclamation," wrote Jefferson, "was in truth a most unfortunate error. It wounds the popular feelings by a seeming indifference to the cause of liberty. And it seems to violate the form and spirit of the Constitution by making the executive magistrate the organ of the 'disposition' 'the duty' and 'the interest' of the nation in relation to war and peace--subjects appropriated to other departments of the Government."

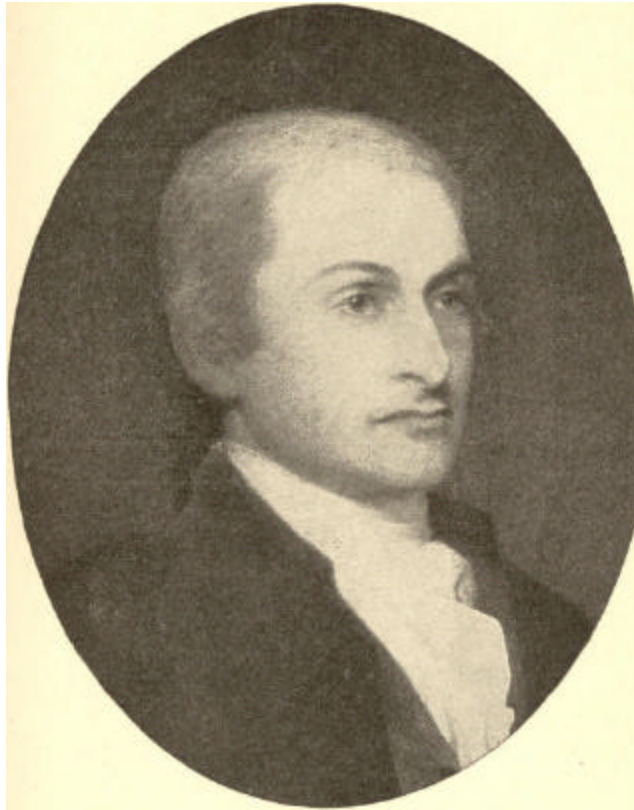
"On one side," says Mr. Rives, in his "Life of Madison," "the people saw a power which had but lately carried war and desolation, fire and sword, through their own country, and, since the peace, had not ceased to act toward them in the old spirit of unkindness, jealousy, arrogance, and injustice; on the other an ally who had rendered them the most generous assistance in war, had evinced the most cordial dispositions for a liberal and mutually beneficial intercourse in peace, and was now set upon by an unholy league of the monarchical powers of Europe, to overwhelm and destroy her, for her desire to establish institutions congenial to those of America."

The more sagacious opponents of the administration believed true policy as well as true honesty to demand rigid and pronounced adherence to the letter of the French treaty. They were convinced from the outset that France would vanquish her enemies, and that close alliance with her was the sure and the only sure way to coerce either Great Britain to justice or Spain to a reasonable attitude touching the navigation of the Mississippi; while by offending France, they argued, we should be forced to wrestle single-handed with England first, then with victorious France, meantime securing no concession whatever from Spain.

This was a shrewd forecast of the actual event. The Federalists, destitute of idealism, proved to have been overawed by the prestige of England and to have underestimated the might which freedom would impart to the French people. After Napoleon's great campaign of 1796-97, Pitt seeks peace, which the French Directory feels able to decline. In 1802 the Peace of Amiens is actually concluded, upon terms dictated by France. Had we been still in France's friendship, the two republics might have compelled England's abandonment of that course which evoked the war of 1812. As it was, ignored by England, to whom, as detailed below, we cringed in consenting to Jay's treaty, we were left to encounter the French navy alone, escaping open and serious war with France only by a readiness to negotiate which all but compromised our dignity. The Mississippi we had at last to open with money.

The federalist leaning toward Great Britain probably did not, to so great an extent as was then alleged and widely believed, spring from monarchical feeling. It was due rather to old memories, as pleasant as they were tenacious, that would not be dissociated from England; to the individualistic tendencies of republicanism, alarming to many; and to conservative habits of political thinking, the dread of innovation and of theory. The returned Tories had indeed all become Federalists, which fact, with many others, lent to this attitude the appearance of deficient patriotism, of sycophancy toward our old foe and persecutor.

Great Britain had refused to surrender the western posts according to the peace treaty of 1783, unjustly pleading in excuse the treatment of loyalists by our States. Not only the presence but the active influence of the garrisons at these posts encouraged Indian hostilities. England had also seized French goods in American (neutral) vessels, though in passage to the United States, and treated as belligerent all American ships plying between France and her West Indian colonies, on the ground that this commerce had been opened to them only by the pressure of war. The English naval officers were instructed to regard bread-stuffs as contraband if bound for France, even though owned by neutrals and in neutral ships; such cargoes, however, to be paid for by England, or released on bonds being given to land them elsewhere than in France. In this practice England followed France's example, except that she actually paid for the cargoes, while France only promised.



John Jay.

From a painting by S. F. B. Morse in the Yale College Collection.

Worst of all, Britain claimed and acted upon the right to press into her naval service British-born seamen found anywhere outside the territory of a foreign State, halting our ships on the high seas for this purpose, often leaving them half-manned, and sometimes recklessly and cruelly impressing native-born Americans--an outrageous policy which ended in the war of 1812. The ignorance and injustice of the English admiralty courts aggravated most of these abuses.

Genet's proceedings, spoken of in the next chapter, which partly public sentiment, partly lack of army and navy, made it impossible for our Government to prevent, enraged Great Britain to the verge of war. After the British orders in council of November 6, 1793, intended to destroy all neutral commerce with the French colonies, and Congress's counter-stroke of an embargo the following March, war was positively imminent. The President resolved to send Jay to England as envoy extraordinary, to make one more effort for an understanding.

The treaty negotiated by this gentleman, and ratified June 24, 1795 (excepting Article XII., on the French West India trade), was doubtless the most favorable that could have been secured under the circumstances; yet it satisfied no one and was humiliating in the extreme. The western posts were indeed to be vacated by June 1, 1796, though without indemnity for the past, but a British right of search and impressment was implicitly recognized, the French West Indian trade not rendered secure, and arbitrary liberty accorded to Great Britain in defining contraband. Opposition to ratification was bitter and nearly universal. The friends of France were jubilant. Jay was burned in effigy, Washington himself attacked. The utmost that Hamilton in his powerful "Letters of Camillus" could show was that the treaty seemed preferable to war. Plainly we had then little to hope and much to fear from war with Great Britain, yet even vast numbers of Federalists denounced the pact as a base surrender to the nation's ancient tyrant, and wished an appeal to arms.

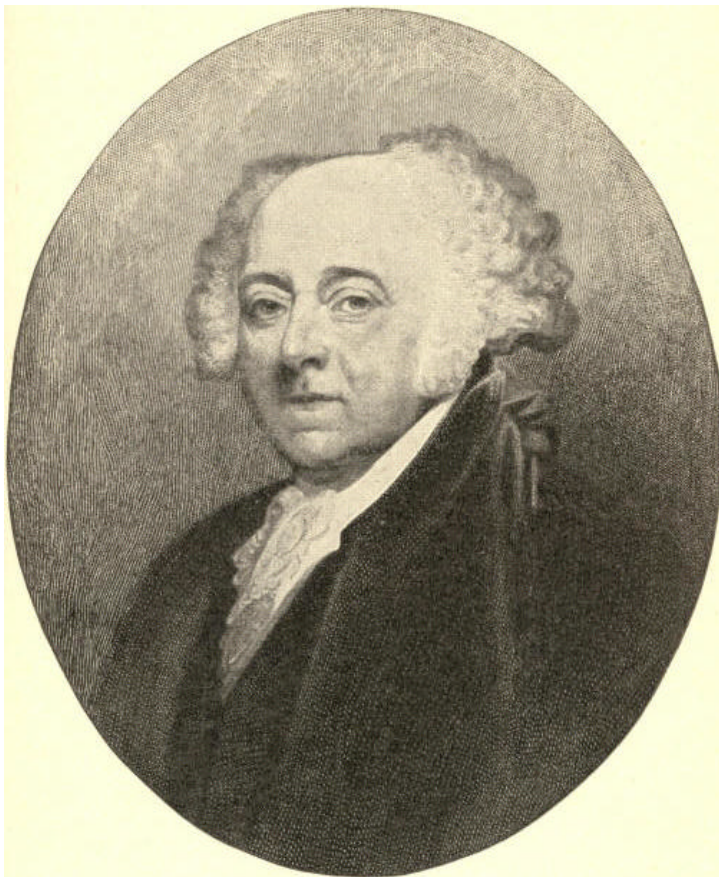
Fisher Ames's eloquence decided the House for the treaty. An invalid, with but a span of life before him, he spoke as from the tomb. "There is, I believe," so ran his peroration, "no member who will not think his chance to be a witness of the consequences (should the treaty fail of ratification) greater than mine. If, however, the vote should pass to reject, and a spirit should rise, as it will, with the public disorders, to make confusion worse confounded, even I, slender and almost broken as my hold on life is, may outlive the Government and Constitution of my country!"

It was the most delicate crisis of Washington's presidency, and no other American then alive, being in his place, could have passed through it successfully. After the fury gradually subsided, men for a long time acquiesced rather than believed in the step which had been taken. In the end the treaty proved solidly advantageous, rather through circumstances, however, than by its intrinsic excellence.

CHAPTER V.

RELATIONS WITH THE FRENCH REPUBLIC

At its beginning all Americans hailed the Revolution in France with joy, but its terrible excesses, when they appeared, produced here the same effect as in England, of alienating everyone conservatively inclined. This included the mass of the Federalist party. On the contrary, most of the Republicans, now more numerous, now less, actuated partly by true insight into the struggle, and partly by the magic of the words "revolution" and "republic," favored the revolutionists with a devotion which even the Reign of Terror in France scarcely shook. It was in consequence of this attitude on its part that the party came to be dubbed "democratic-republican" instead of "republican," the compound title itself giving way after about 1810 to simple "democratic."



John Adams

From a copy by Jane Stuart, about 1874, of a painting by her father, Gilbert Stuart, about 1800--in possession of Henry Adams.

Hostility to England, the memory of France's aid to us in our hour of need, the doctrine of "the rights of man," then so much in vogue, the known sympathies of Jefferson and Madison, who were already popular, and, alas, a mean wish to hamper the administration, all helped to swell the ranks of those who swung their hats for France. A far deeper motive with the more thoughtful was the belief that neutrality violated our treaty of 1778 with France, a conclusion at present beyond question. Politically our policy may have been wise, morally it was wrong.

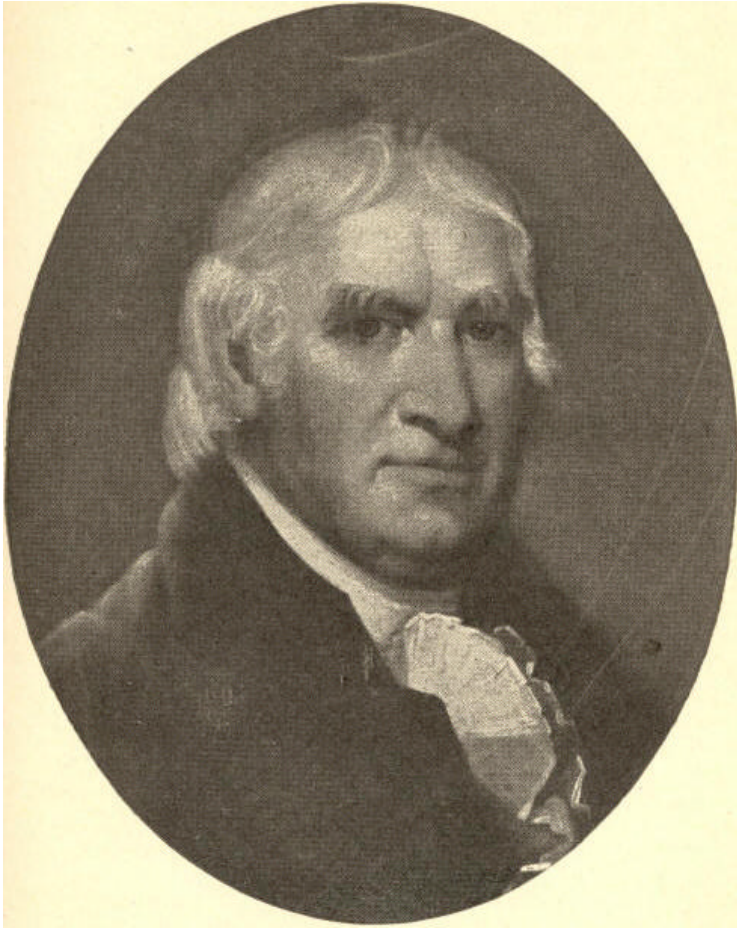
The administration, at least its honored head, was doubtless innocent of any intentional injustice; and it could certainly urge a great deal in justification of its course. The form and the aims of the French Government had changed since the treaty originated, involving a state of things which that instrument had not contemplated.

France herself defied international law and compact, revolutionizing and incorporating Holland and Geneva, and assaulting our commerce. And war with England then threatened our ruin. Yet the pleading of these considerations in that so trying hour, even had they been wholly pertinent, could not but seem to Frenchmen treason to the cause of liberty. As to many Federalists, trucklers to England, such a charge would have been true.

France was not slow to reciprocate in the matter of grievances. In fact, so early as May, 1793, before the proclamation of neutrality could have been heard of in that country, orders had been issued there, wholly repugnant to the treaty (which had ordained that neutral ships could carry what goods they pleased--free ships, free goods), to capture and condemn English merchandise on American vessels. Provisions owned by Americans and *en route* to England were also to be forfeited as contraband. Even the most reasonable French officials seemed bent on treating our country as a dependency of France.

We see this in the actions of Genet, the first envoy to America from the French constitutional monarchy, accredited hither by a ministry of high-minded Republicans while Louis XVI. still sat upon his throne. Genet arrived in Charleston in 1793, before our neutrality had been proclaimed. Immediately, before presenting his credentials to our Government, he set about fitting out privateers, manning them with Americans, and sending them to prey upon British ships, some of which they captured in American waters. All this was in utter derogation of the treaty, which only guaranteed shelter to *bona fide* French vessels. Under a law of the French National Convention, Genet assumed to erect the French consulates in this country into so many admiralty courts for the trial of British prizes. We could not have allowed this without decidedly violating international law at least in spirit. He also devised and partly arranged expeditions of Americans, to start, one from Georgia to invade Florida, another from Kentucky to capture New Orleans, both as means of weakening Spain, which up to this time and for several years later was France's foe.

But Genet's worst gall came out in his conduct toward Washington. Him he insulted, challenging his motives and his authority for his acts and threatening to appeal from him to the people. He tried to bully and browbeat the whole cabinet as if they had been so many boys. So ludicrous did he make himself by such useless bluster, that his friends, at first numerous and many of them influential, gave him the cold shoulder, and the ardor for France greatly cooled. At length Washington effected his removal, the more easily, it would seem, as he was not radical enough for the Jacobins, who had now succeeded to the helm in France. The officious Frenchman did not return to his own country, but settled down in New York, marrying a daughter of Governor Clinton. He was succeeded by Adet.



George Clinton.
From a painting by Ezra Ames.

Upon learning that the United States had ratified Jay's treaty, France went insane with rage. A declaration of war by us could not have angered her more. Adet was called home and the alliance with America declared at an end. Barras dismissed Mr. Monroe, our minister, in a contemptuous speech, and Charles Cotesworth Pinckney, sent as Monroe's successor, was not only not received but ordered from the land. New and worse decrees went forth against American commerce. Our ships were confiscated for carrying English goods though not contraband. Arbitrary and unheard-of tests of neutrality were trumped up, wholly contrary to the treaty, which indeed was now denounced. American sailors found serving, though compelled, on British armed vessels, were to be condemned as pirates.

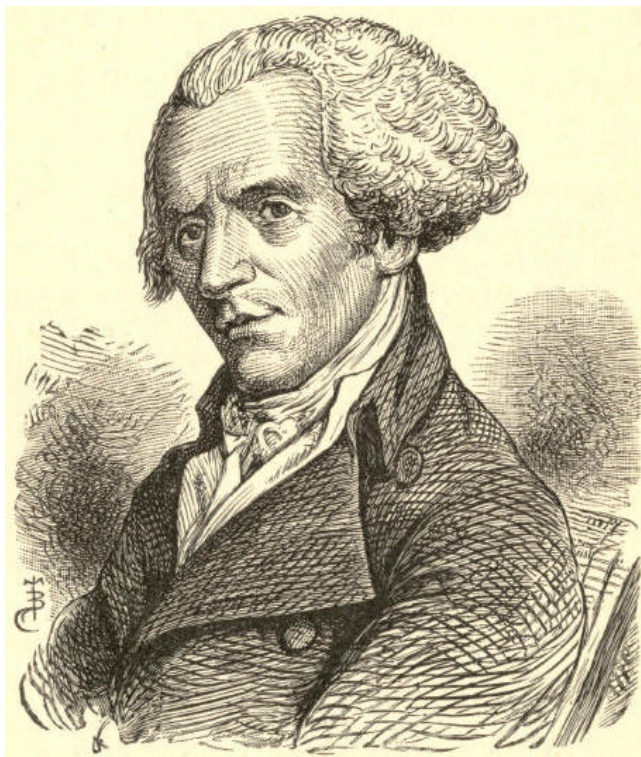
These brutal measures, coupled with Napoleon's increasing power, begot in America the belief, even among Republicans, that France's struggle was no longer for liberty but for conquest. The insolence of the French Government waxed insufferable. President Adams, to a special session of the Vth Congress, on May 19, 1797, announced the insult to the nation in the person of Pinckney, and urged preparation for war.



John Marshall.

A goodly loan, a direct tax, and a provisional army, Washington again leader, were readily voted. Our Navy Department was created at this time. The navy was increased, and several captures were made of French vessels guilty of outrage. Adams, however, to make a last overture for peace, despatched John Marshall and Elbridge Gerry to the aid of Pinckney, the three to knock once more at France's doors for a becoming admission. In vain. The only effect was a new chapter of French mendacity and insolence, furthering America's wish and preparations for war. Napoleon's recent Italian victories, terrifying Europe, had puffed up France with pride. Talleyrand assumed to arraign us as criminals, and what was worse, pressed us, through his agents, to buy his country's forgiveness with gold. "You must pay money," our envoys were told, and "a good deal of it, too."

All this was duly made known at Philadelphia, and the President assured Congress that no terms were obtainable from France "compatible with the safety, honor, and general interest of the nation." The opposition thought this an exaggeration, and called for the despatches, expecting refusal or abridgment. The President sent every word.



Elbridge Gerry

Confusion seized the Republicans. Federalists were again in the ascendant, the VIth Congress being much more strongly federalist than the Vth. For once proud, reserved John Adams was popular, and anti-French feeling irresistible. "Millions for defence but not a cent for tribute," echoed through the land. Hosts of Republicans went over to the administration side. Patriotism became a passion. Each night at the theatre rose a universal call for the "President's March" [footnote: The music was that of our "Hail Columbia."] and "Yankee Doodle," the audience rising, cheering, swinging hats and canes, and roaring "*encore*." The black cockade, American, on all hands supplanted the tricolor cockade worn by the "Gallomaniacs;" and bands of "Associated Youth," organizing in every town and city, deluged the President with patriotic addresses.

Seeing that we could not be bullied and that the friends of France here were Americans first; ashamed, on their publication, of the indignities which he had offered our envoys, and after all not wishing war with what he saw to be potentially another naval power like England, the sly Talleyrand neatly receded from his arrogant demands, and expressed a desire to negotiate.

CHAPTER VI.

THE DECLINE OF THE FEDERALIST PARTY

The heat of the nation's wrath evoked by this conflict with France betrayed the Federalists in Congress into some pieces of tyrannical legislation. These were especially directed against refugees from France, lest they should attempt to reenact here the bloody drama just played out there. Combinations were alleged, without proof, to exist between American and French democrats, dangerous to the stability of this Government.

A new naturalization act was passed, requiring of an immigrant, as prerequisite to citizenship, fourteen years of residence instead of the five heretofore sufficient. Next came three alien acts, empowering the President, at his discretion, without trial or even a statement of his reasons, to banish foreigners from the land; any who should return unbidden being liable to imprisonment for three years, and cut off from the possibility of citizenship forever.

A "sedition act" followed, to fine in the sum of \$5,000 each and to imprison for five years any persons stirring up sedition, combining to oppose governmental measures, resisting United States law, or putting forth "any false, scandalous, or malicious writings" against Congress, the President, or the Government.

To President Adams's credit, he was no abettor of these hateful decrees, and did little to enforce them. The sedition law, however, did not rest with him for execution, and was applied right and left. Evidently its champions were swayed largely by political motives. Matthew Lyon, a fiery Republican member of Congress from Vermont, had, in an address to his constituents, charged the President with avarice and with "thirst for ridiculous pomp and foolish adulation," He was convicted of sedition, fined \$1,000, and sentenced to four months in prison. This impoverished him, as well as took him from his place in Congress for most of a session. Adams refused pardon, but in 1840 Congress paid back the fine to Lyon's heirs.

It is now admitted that these measures were unconstitutional, as invading freedom of speech and of the press, and assigning to the Federal Judiciary a common-law jurisdiction in criminal matters. But they were also highly unwise, subjecting the Federalist Party to the odium of fearing free speech, of declining a discussion of its policy, and of hating foreigners. The least opposition to the party in power, or criticism of its official chiefs, became criminal, under the head of "opposing" the Government. A joke or a caricature might send its author to jail as "seditious." It was surely a travesty upon liberty when a man could be arrested for expressing the wish, as a salute was fired, that the wadding might hit John Adams behind. Even libels upon government, if it is to be genuinely free, must be ignored--a principle now acted upon by all constitutional States.

But the Federalists were blind to considerations like these. As Schouler well remarks: "A sort of photophobia afflicted statesmen, who, allowing little for the good sense and spirit of Americans, or our geographical disconnection with France, were crazed with the fear that this Union might be, like Venice, made over to some European potentate, or chained in the same galley with Switzerland or Holland, to do the Directory's bidding. That, besides this unfounded fear, operated the desire of ultra-Federalists to take revenge upon those presses which had assailed the British treaty and other pet measures, and abused Federal leaders; and the determination to entrench themselves in authority by forcibly disbanding an opposition party which attracted a readier support at the polls from the oppressed of other countries, no candid writer can at this day question."

It was next the turn of the Republicans to blunder. In November, 1798, the Kentucky Legislature passed a series of resolutions, drawn up by John Breckenridge upon a sketch by Jefferson, in effect declaring the alien and sedition acts not law, but altogether void and of no force. In December the Virginia Legislature put forth a similar series by Madison, milder in tone and more cautiously expressed, denouncing those acts as "palpable and alarming infractions of the Constitution." A year after their first utterance, the Kentucky law-makers further "resolved that the several States who formed (the Constitution), being sovereign and independent, have the unquestionable right to judge of its infraction; and that a nullification by those sovereignties, of all unauthorized acts done under color of that instrument, is the rightful remedy." Virginia again declared it a State's right "to interpose" in such cases.

These resolutions were intended to stir reflection and influence opinion, and, if possible, elicit a concurrent request to Congress from the various States to repeal the obnoxious acts. They do not hint at the use of force. Their execration of the hated laws is none too strong, and their argument as a whole is masterly and unanswerable. But at least those of Kentucky suggest, if they do not contain, a doctrine respecting the Constitution which is untenable and baneful, in kernel the same that threatened secession in Jackson's time and brought it in Buchanan's. The State, as such, is not a party to the Constitution. Still less is the Legislature. Nor is either, but the Supreme Court, the judge whether in any case the fundamental law has been infringed.

Procuring the resolutions, however, proved a crafty political move. The enormity of the despicable acts was advertised as never before, while the endorsement of them by federalist legislators went upon record. Petitions for repeal came in so numerous and numerously signed that the VIth Congress could not but raise a committee to consider such action. It reported adversely, and the report was accepted, the majority in the House, fifty-two to forty-eight, trying contemptuously to cough down every speaker lifting his voice on the opposite side.

This sullen obstinacy in favor of a miserable experiment sealed the doom of Federalism. In vain did the party orators plead that liberty of speech and the press is not license, but only the right to utter "the truth," that hence this liberty was not abridged by the acts in question, and that aliens had no constitutional rights, but enjoyed the privileges of the land only by favor. The fact remained, more and more appreciated by ordinary people, that a land ruled by such maxims could never be free.

So a deep distrust of Federalism sprung up, as out of sympathy with popular government. It was furthered by the attachment of prominent Federalists to England. Several of them are on record as ready to involve the United States in an expedition planned by one Miranda, to conquer Spanish America in aid of Great Britain, Spain and ourselves being perfectly at peace.

The federalist chieftains were too proud, ignoring too much the common voter. They often expressed doubt, too, as to the permanence of popular institutions. Federalism had too close affinity with Puritanism to suit many outside New England. And then--deadly to the party even had nothing else concurred--there was a quarrel among its leaders. Hamilton, the Essex Junto (Pickering, Cabot, Quincy, Otis), and their supporters were set against Adams and his friends. This rivalry of long standing was brought to a head by Adams's noble and self-sacrificing independence in accepting France's overtures for peace, when Hamilton, Pickering, King, and all the rest, out of private or party interest rather than patriotism, wished war.

Toward 1800, Democracy bade fair soon to come into power, but the Federalists learned no wisdom. Rather were they henceforth more factious than ever, opposing Jefferson and Madison even when they acted on purely federalist principles. Tooth and nail they fought against the acquisition of Louisiana, the War of 1812, and the protective tariff of 1816, which was carried by Republicans. A worse spirit still was shown in their disunion scheme of 1804, after the purchase of Louisiana, and in the Hartford Convention of 1814. Federalism had further lost ground by its mean and revolutionary devices on resigning power in 1801, first to make Burr President instead of Jefferson, and, failing in this, to use its expiring authority in creating needless offices for its clients.

In consequence of such ill-advised steps, federalist strength waned apace. In 1804 Connecticut, Delaware, and Maryland alone chose federalist electors, the last only two such. In 1808 these were joined by the remaining New England States, North Carolina also casting three federalist votes. In 1812, indeed, Clinton received eighty-nine votes to Madison's one hundred and twenty-eight; but in 1816 again only Massachusetts, Connecticut, and Delaware were federalist.

In 1820 not a State had a federalist majority. State elections in Maryland, North Carolina, Delaware, and Connecticut commonly went federalist till 1820, and in Massachusetts till 1823, when the Republicans swept this commonwealth too, Essex County and all.

Yet Federalism did not die without fixing its stamp indelibly upon our institutions. Not to mention the Whig and the modern Republican Parties, close reproductions of it, or the public credit, its child, methods of administration passed with little change from Adams to Jefferson and his successors, and federalist principles modified the entire temper, and directed in no small degree the action, of the Democratic Party while in power. The nation was exalted more, state rights subordinated, and the Constitution construed ever more broadly. Thus there was silently and gradually imparted to our governmental fabric a consistency and a solidity which were of incalculable worth against storms to come.

CHAPTER VII.

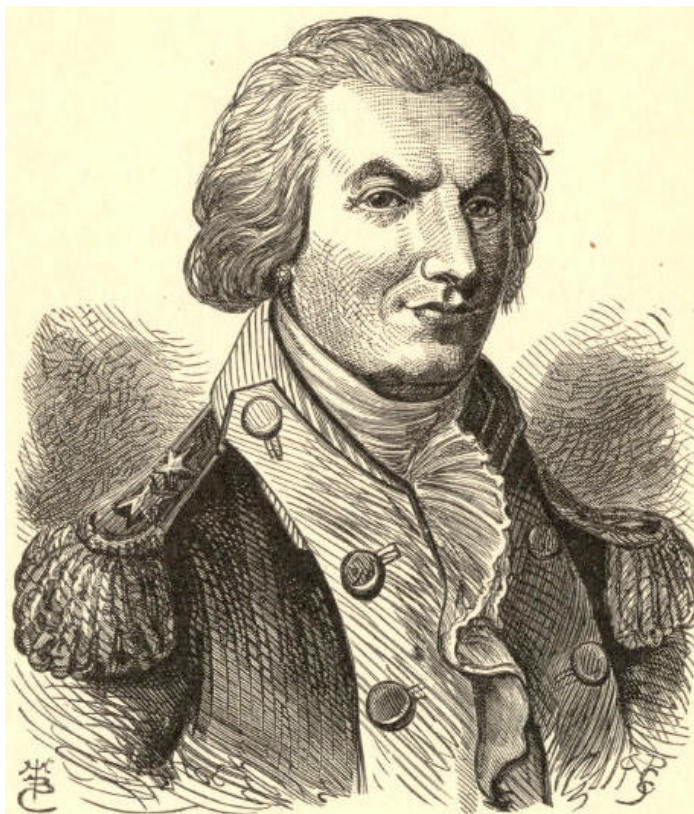
THE WEST

A simple resolution of the Continental Congress in 1780 has proved of the highest consequence for the subsequent development of our country. It declared that all territorial land should be national domain, to be disposed of for the common benefit of the States, with the high privilege of itself growing into States coequal with the old Thirteen. The treaty of 1783 carried this domain north to the Lakes, west to the Mississippi. The Ohio divided it into a northwestern and a southwestern part. The land to the west of themselves Virginia and North Carolina claimed, and it became Kentucky and Tennessee, respectively, erected into statehood, the one June 1, 1792, the other June 1, 1796, these being the fifteenth and sixteenth States in order.

Vermont, admitted in 1791, was the fourteenth. Virginia never released Kentucky till it became a State. The Tennessee country, ceded to the United States by North Carolina in 1784, the cession revoked and afterward repeated, had already, under the name of Frankland, enjoyed for some time a separate administration. The nucleus of Kentucky civilization was on the northern or Ohio River border, that of Tennessee in the Cumberland Valley about Nashville; but by 1800 the borders of these two oases had joined.

United States land has since broadened westward to the Pacific, over the infinite areas which in 1800 belonged to Spain. From an early period there have been, as now, unorganized territory and also partially organized and fully organized territories, the last being inchoate States, ready to be admitted to full membership in the Union when sufficiently populous, on condition of framing each for itself a republican constitution.

The great ordinance of 1787, re-enacted by the First Congress, forever sealing the same to civil and religious liberty, opened the Northwest for immediate colonization, twenty thousand people settling there in the next two years.



General Arthur St. Clair.

The territory was organized and General St. Clair made governor. In 1788 Marietta was founded, named from Marie Antoinette, also Columbia near the mouth of the Little Miami.

In the same year Losantiville, subsequently called Fort Washington, and now Cincinnati, was laid out, the first houses having gone up in 1780. Louisville, settled so early as 1773, contained in 1784 over one hundred houses. Emigrants in hundreds and thousands yearly poured over the mountains and down the Ohio. By the census of 1790 there were 4,280 whites northwest of this river, 1,000 at Vincennes, 1,000 on the lands of the Ohio Company, 1,300 on Symmes's purchase between the Great and the Little Miami, Cincinnati being part of this purchase. In 1800 these numbers had much increased. The settlements which had Pittsburgh for a nucleus had also greatly extended, reaching the Ohio. Northern and Central Pennsylvania west of the Susquehanna Valley was yet a wilderness. St. Louis, in Spanish hands, but to become French next year, had been founded, and opposite it were the beginnings of what is now Alton, Ill.

The centre of United States population in 1790 was twenty-three miles east of Baltimore. It has since moved westward, not far from the thirty-ninth parallel, never more than sixteen miles north of it, or three to the south. In 1800 it was eighteen miles west of Baltimore; in 1810 it was forty-three miles northwest by west of Washington; in 1820, sixteen miles north of Woodstock, Va.; in 1830, nineteen miles west-southwest of Moorfield, W. Va.; in 1840, sixteen miles south of Clarksburg, same State; in 1850, twenty-three miles southeast of Parkersburg, same State; in 1860, twenty miles south of Chillicothe, O.; in 1870, forty-eight miles east by north of Cincinnati; in 1880, eight miles west by south of that city; in 1890, twenty miles east of Columbus, Ind., west by south of Greensburg. It has never since been so far north as in 1790, and it has described a total westward movement of four hundred and fifty-seven miles.

The land system of the United States was at first a bad one, intended to secure immediate revenue from the sale of immense pieces at auction, on long credit, at very few points, the land to find its way into the hands of actual settlers only through mercenary speculators. The honest pioneer was therefore at the mercy of these land-sharks, greedy and unpatriotic in the extreme.

The western movement aroused the Indians, of whom there were, in 1790, from 20,000 to 40,000 north of the Ohio. The idea of amalgamating or even civilizing these people had long been practically given up. Settlers agreed in denouncing them as treacherous, intractable, bloodthirsty, and faithless. So incessant and terrific were their onslaughts, the Ohio Valley had come to be known as "the dark and bloody ground." The British, still occupying the western posts, used their influence to keep up and intensify Indian hostility to the United States settlers and Government.

In September, 1790, Governor St. Clair sent Harmar against the Indians on the Miami and Maumee. He had about fifteen hundred men, two-thirds of them militia. The expedition was ill-managed from the first, and, after advancing as far as the present Fort Wayne, came back with great loss to itself, having exasperated rather than injured the red men. Harmar, chagrined, soon resigned.

The Indians south of the Ohio were perhaps twice as numerous as those north, and partly civilized. The Chickasaws and Choctaws, nearest the Mississippi, gave little trouble. Not so the Cherokees and Creeks, whose seats were nearer the whites. The Creeks claimed parts of Tennessee, Georgia, and the Carolinas, justified herein by acts of the Continental Congress. However, the whites invaded this territory, provoking a fierce war, wherein the Cherokees allied themselves with the Creeks of Alabama and Georgia. This brave tribe had border troubles of its own with Georgia. These various hordes of savages, having the Florida Spaniards to back them with counsel, arms, and ammunition, were a formidable foe, which might have annihilated Georgia but for aid from the general Government.

McGillivray, the half-breed chief of the Creeks, was enticed to New York, where the kindness of Washington and the evident desire of Congress to deal with his people fairly, resulted in a treaty, August 13, 1790, which secured peace to the Southwest for a long time.

Touching the northwestern redskins, Harmar's defeat had convinced Washington that mild measures were not yet the thing. A larger force was fitted out against them under St. Clair in person, whom, as an old Revolutionary comrade, Washington still trusted. General Butler was second in command. The two thousand regulars and one thousand militia rendezvoused at Cincinnati in the autumn of 1791. Part object of the expedition was to build a military road, with forts at intervals, all the way to the upper Wabash. Progress was therefore slow.

A fort was constructed on the present site of Hamilton, O.; then one to the northwest, near Greenville, O., close to the present Indiana line. From here the army pressed northwesterly still farther.

St. Clair was heroic, but incompetent through age and the gout. Some of his militia deserted. Chills and fever shook the remainder of his too slender host. His orders were not well obeyed. On November 9th, encamping by a small branch of the Wabash, St. Clair's force was most vehemently attacked by Indians, under the redoubtable Joseph Brant or Thayendanegea--famed for his bloody exploits against us during the Revolution--and well-nigh annihilated. Five high officers, including Butler, were killed, and as many more sank from wounds. Cannons, guns, accoutrements, in fact the whole equipment of the army, were lost. After a four hours' fight St. Clair, sick but brave as a tiger, horse after horse shot beneath him, part of the time carried in a litter, his gray locks streaming in the breeze, put himself at the head of the five hundred who remained unscathed, and hewed his way through walls of savages to the rear. Six o'clock that night found the survivors back at Greenville, twenty-nine miles from the scene of carnage. Had the Indians pursued instead of stopping to mutilate the slain, every soul must have perished.



Joseph Brant or Thayendanegea.

The announcement of this disaster called forth in the East a universal howl of rage at the unfortunate commander. Even Washington went beside himself: "To suffer that army to be cut to pieces, hacked, butchered, tomahawked, by a surprise--the very thing I guarded him against! O God! O God, he is worse than a murderer! How can he answer it to his country? The blood of the slain is upon him, the curse of widows and orphans, the curse of Heaven." St. Clair came East to explain. Hobbling into Washington's presence, he grasped his hand in both his own and sobbed aloud. He was continued as governor, but had to resign his major-generalship, which passed to Anthony Wayne.

Wayne was every inch a warrior. Cautiously advancing over the road St. Clair's fugitives had reddened with their blood, he reached Fort Jefferson, at Greenville, in June, 1793. Next year he advanced to the junction of the Au Glaize with the Maumee. The Indians fleeing, he pursued to the foot of the Maumee Rapids, where he encountered them encamped by a fort which the English, defying the treaty, still held, fifty miles inside our lines.

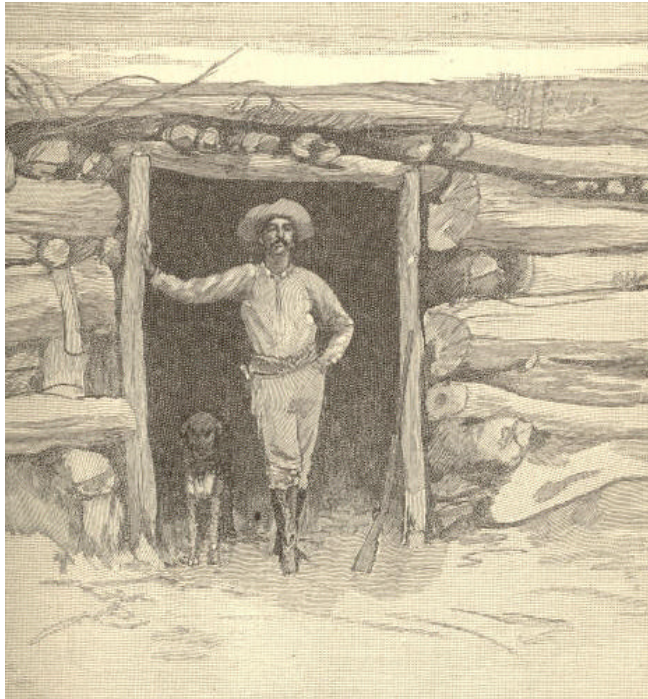
Wayne, agreeably to Washington's policy, tried to treat. Failing, he attacked, routed the enemy, and mercilessly ravaged the country, burning crops and villages. Building Fort Wayne as an advanced post, he came back and made his headquarters at Fort Jefferson. The Indians' spirit and opposition were at last broken. Their delegates flocked to Wayne, suing for peace. Captives were surrendered. The whole Ohio Territory now lay open to peaceful occupation, and emigrants crowded northward from the Ohio in great companies.

The pioneer bought land wherever he found a vacant spot that pleased him, building his hut, breaking up any open land for crops, and as rapidly as possible clearing for more. His white neighbors, if any were near, lent their assistance in this work. His rough dwelling of logs, with one room, floored with puncheon, caulked with mud, and covered with bark or thatch, however uncomfortable from our point of view, made him a habitable home.

When this primitive mansion was no longer sufficient, he was usually able to rear another out of hewn logs, with glass windows and a chimney. Then he felt himself an aristocrat, and who will deny that he was so? A large family grew up around him, neighbors moved in, the forest disappeared, the savages and wild beasts that at first harassed him slunk away, while the fruitful soil, with such exchanges and mail privileges as were speedily possible, yielded him all the necessities and many of the comforts of life.

So rapid was the increase of population henceforth, that Congress, in 1800, divided the territory, the line running north from the junction of the Kentucky with the Ohio. All west of this was to be known as the Indiana Territory, William Henry Harrison its governor, and a territorial legislature to follow so soon as a majority of the inhabitants should desire.

On February 19, 1803, Ohio became a State. Mainly through Governor Harrison's exertions a better system of marketing public land was begun, in healthy contrast with the old. It allowed four land-offices in Ohio and Indiana.



Dugout of a Southwestern Pioneer

Lands once offered at auction and not sold could be pre-empted directly by private individuals on easy terms. Actual settlement and cultivation were thus furthered, speculation curbed, and the government revenues vastly increased.

We have spoken mostly of the Northwest. The present States of Alabama and Mississippi north of 31 degrees, except a narrow strip at the extreme north owned by South Carolina, were claimed by Georgia, but the part of this territory south of 32 degrees 30 minutes the United States also claimed, as having before the Revolution been separated from Georgia by the king and joined to West Florida, so that it, like the Northwest, passed to the United States at the treaty of 1783. This section was organized in 1798 as the Mississippi Territory. In 1802 Georgia relinquished all claim to the northern part as well, which Congress added to the Mississippi Territory. At this date there were settlements along the Mississippi bluffs below the Yazoo bottom.



Robert Fulton

CHAPTER VIII.

SOCIAL CULTURE AT THE TURN OF THE CENTURY

In 1800 the population of our land was 5,305,482, of whom 896,849 were slaves. New York City had 60,489; Philadelphia, 40,000; Boston, 24,937; Baltimore, 23,971; Charleston, 18,712; Providence, 7,614; Washington, 3,210. The population of Vermont, Northern and Western New York, and the Susquehanna Valley of Pennsylvania had grown considerably more dense since 1790. The social life, ideas, and habits of the rural districts had not altered much from those prevalent in colonial days, but in the more favored centres great improvements, or, at any rate, changes, might have been marked.

Even far in the country framed buildings were now the most common, the raising of one being a great event. The village school gave a half holiday. Every able-bodied man and boy from the whole country-side received an invitation--all being needed to "heave up," at the boss carpenter's pompous word of command, the ponderous timbers seemingly meant to last forever. A feast followed, with contests of strength and agility worthy of description on Homer's page.

Skating was not yet a frequent pastime, nor dancing, save in cities and large towns. Balls every pious New Englander abhorred as sinful. The theatre was similarly tabooed--in Massachusetts, so late as 1784, by law. New York and Philadelphia frowned upon it then, though jolly Baltimore already gave it patrons enough. When, in 1793, yellow fever desolated Philadelphia, one theory ascribed the affection to the admission of the theatre. In other cities passion for the theatre was growing, and even Massachusetts tolerated it by an act passed in 1793. President Washington, while in New York, oftener than many thought proper, attended the old, sorrily furnished play-house in John Street, the only one which the city could then boast.



Fulton's First Experiment with Paddle-wheels.

John Adams also went now and again. Both were squinted at through opera-glasses, which were just coming into use and thought by the crowd to be infinitely ridiculous. Good hours were kept, as the play began at five.

All sorts of shows, games, and sports which the country could afford or devise were immensely popular, the most so, and the roughest, in the South. Horse-racing, cock-fighting, shooting matches, at all which betting was high, were there fashionable, as well as most brutal man-fights, in which ears were bitten off and eyes gouged out.

President Thomas Jefferson was exceedingly fond of menageries and circuses, his diary abounding in such entries as: "pd for seeing a lion 21 months old 11-1/2 d.;" "pd seeing a small seal .125 ;" "pd seeing elephant .5;" "pd seeing elk .75 ;" "pd seeing Caleb Phillips a dwarf .25;" "pd seeing a painting .25."

Lotteries were universal, and put to uses which now seem excessively queer. Whenever a bridge or a public edifice, as a schoolhouse, was to be built, a street paved or a road repaired, the money was furnished through a lottery. In the same way manufacturing companies were started, churches aided, college treasuries replenished. It was with money collected through a lottery that Massachusetts first encouraged cotton spinning; that the City Hall of New York was enlarged, the Court House at Elizabeth rebuilt, the Harvard University library increased, and many pretentious buildings put up at the Federal City. [footnote: McMaster's *United States*, 588.]

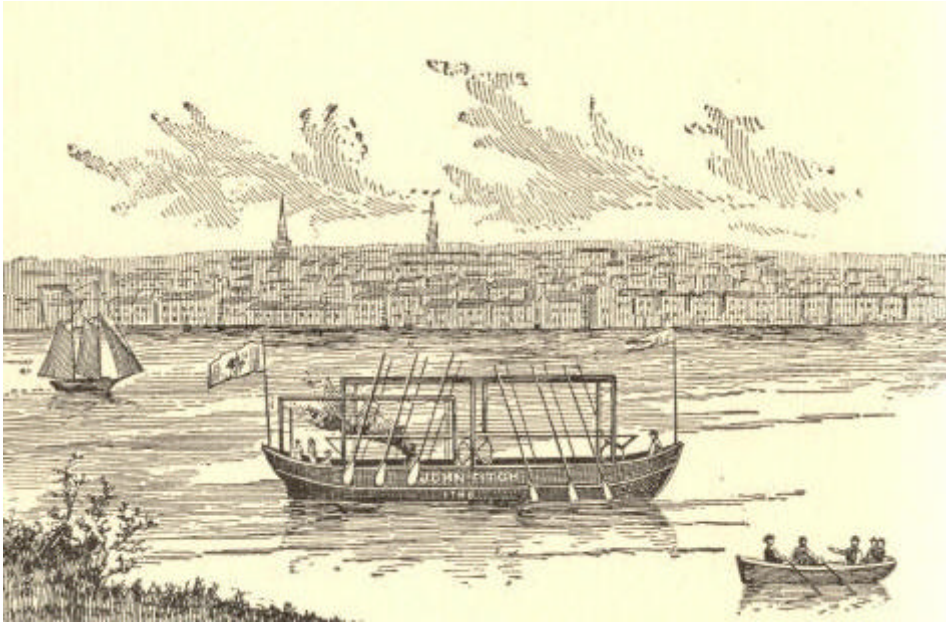


Departure of the Clermont on her First Voyage.

This was but a single form of the sporting mania. The public stocks, as well as the paper of the numerous canals, turnpikes, and manufacturing corporations now springing up, were gambled in a way which would almost shock Wall Street today.

Anthracite coal had been discovered and was just beginning to be mined, but on account of the plentifulness of wood was not for a long time largely used. The first idea of steam navigation was embodied in an English patent taken out by Jonathan Hulls in 1736. The initial experiment of the kind in this country was by William Henry, on the Conestoga River, Pennsylvania, in 1763. John Fitch navigated the Delaware steam-wise in 1783-84. In 1790 one of Fitch's steam paddle-boats made regular trips between Philadelphia and Trenton for four months. In 1785-86 Oliver Evans experimented in this direction, as did Rumsey, in Virginia, in 1787.

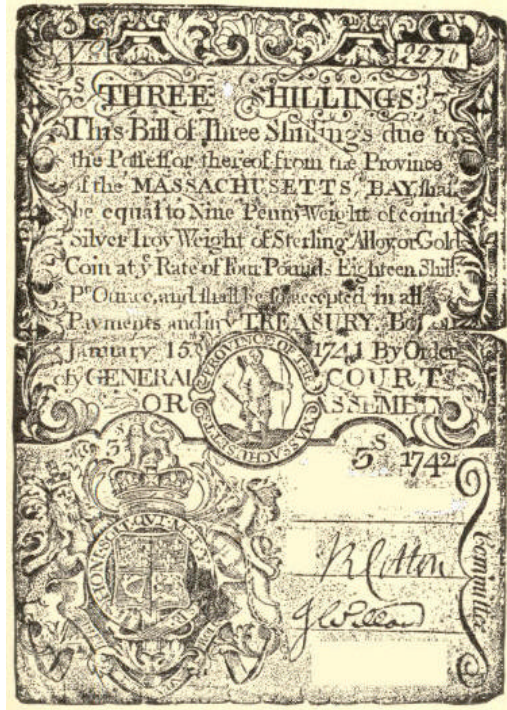
One Morey ran a stern-wheeler of his own make from Hartford to New York in 1794. Chancellor Livingston built a steamer on the Hudson in 1797. It was only in 1807 that Fulton finished his "Clermont" and made a passage up the Hudson to Albany from New York.



John Fitch's Steamboat at Philadelphia.

It took thirty-three hours, and was the earliest thoroughly successful steam navigation on record. He subsequently built the "Orleans" at Pittsburgh. It was completed and made the voyage to New Orleans in 1811. No steamboat ruffled the waters of Lake Ontario till 1816.

The pioneer steam craft on Lake Erie was launched at Black Rock, May 28, 1818. It is recorded as wonderful that in less than two hours it had gotten fifteen miles from shore.

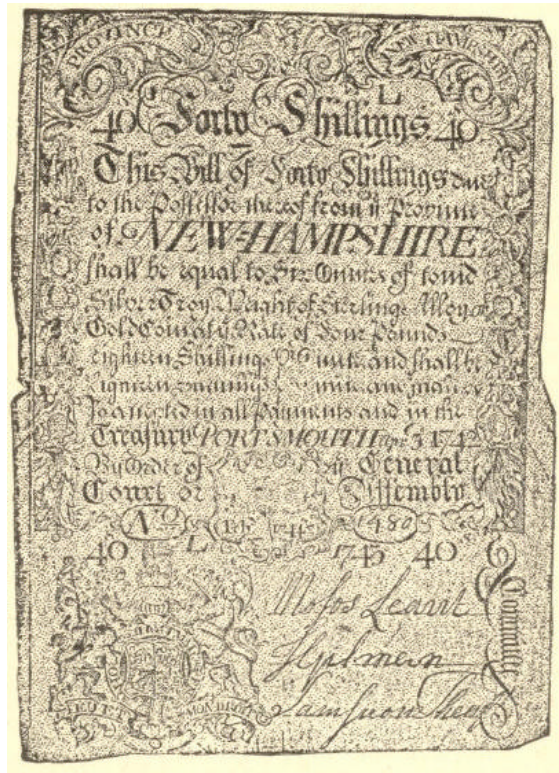


Massachusetts Bill of Three Shillings in 1741.

At the North the muster or general training was, for secular entertainment, the day of days, when the local regiment came out to reveal and to perfect its skill in the manual and in the evolutions of the line.

Side-shows and a general good time constituted for the crowds its chief interest. Cider, cakes, pop-corn, and candy drained boys' pockets of pennies, those who could afford the fun going in to see the one-legged revolutionary soldier with his dancing bear, the tattooed man, the ventriloquist, or the then "greatest show on earth." College commencements, too, at that time usually had all these festive accompaniments, and many a boy debated whether to spend his scant change here or at the muster. In New England, Christmas was not observed; it was hardly known, in fact, Thanksgiving taking its place, proclaimed with the utmost formality by the Governor some weeks in advance.

Intemperance was still terribly common; worst in the newer sections of the country. There is extant a message of William Henry Harrison, while Governor of Indiana Territory, to his legislature, against this evil, urging better surveillance of public-houses. "The progress of intemperance among us," it runs, "outstrips all calculation, and the consequences of its becoming general I shudder to unfold.



New Hampshire Bill of Forty Shillings in 1742.

Poverty and domestic embarrassment and distress are the present effects, and prostration of morals and change of government must inevitably follow. The virtue of the citizens is the only support of a Republican Government. Destroy this and the country will become a prey to the first daring and ambitious chief which it shall produce."

To counteract this and other vices, which were justly viewed as largely the results of ignorance, philanthropic people were at this period establishing Sunday-schools, following the example of Robert Raikes, who began the movement at Gloucester, England, in 1781. They had been already introduced in New England, but were now making their way in Philadelphia and elsewhere. The first Methodist bishop, Asbury, zealously furthered them. They had, to begin with, no distinctive religious character, and churches even looked upon them with disfavor; but their numbers increased and their value became more apparent until the institution was adopted by all denominations.

Before 1800 the new United States coinage, with nearly the same pieces as now, had begun to circulate, but had had little success at that date in driving out the old foreign coins of colonial times. Especially were there still seen Spanish dollars, halves, quarters, fifths or pistareens, and eighths--the last being the Spanish "real," "ryall," or "royall," worth twelve and a half cents--and sixteenths or half-reals, worth six and one-quarter cents each. Many of these pieces were sadly worn, passing at their face value only when the legend could be made out.



Massachusetts Twopence of 1722.

Sometimes they were heated to aid in this. Many were so worn that a pistareen would bring only a Yankee shilling, sixteen and two-thirds cents; the half-pistareen, only eight cents; the real, ten; the half-real, five.

The denominations of the colonial money of account were also still in daily use, and, indeed, might be heard so late as the Civil War. The "real," twelve and one-half cents, was in New York a shilling, being one-twentieth of the pound once prevalent in the New York colony. In New England it was a "nine-pence," constituting nearly nine-twelfths, or nine of the twelve pence of an old New England shilling of sixteen and two-thirds cents. Twenty such shillings had been required for the New England pound, which was so much more valuable than the pound of the New York colony. But neither one or any colonial pound was the equivalent of the pound sterling.



Pine Tree Twopence.

"IN MASATHVSET"

"NEW ENGLAND" "1662"

Pine Tree Threepence.

"MASATHVSET"

"NEW ENGLAND" "1652" "III"

In the middle colonies, including Pennsylvania, the pound had possessed still a different value, the Spanish dollar, in which the Continental Congress kept its accounts, there equalling ninety pence. This is why those accounts stand in dollars and ninetieths, a notation so puzzling to many.

A "real" would here be about one-eleventh of ninety pence, hence called the "eleven-penny-piece," shortened into "levy." Dividing a levy by two would give five (and a fraction); hence the term "five-penny-piece," "fippenny," or "fip," for the half-real or six and one-quarter cent piece. There are doubtless yet people in Virginia and Maryland who never say "twenty-five cents," but instead, "two levies and a fip."



Pine Tree Sixpence.

General intelligence had improved, partly from the greater number, better quality, and quicker and fuller distribution of newspapers. Correspondents were numerous. Intelligent persons visiting at a distance from home were wont to write long letters to their local newspapers, containing all the items of interest which they could scrape together.

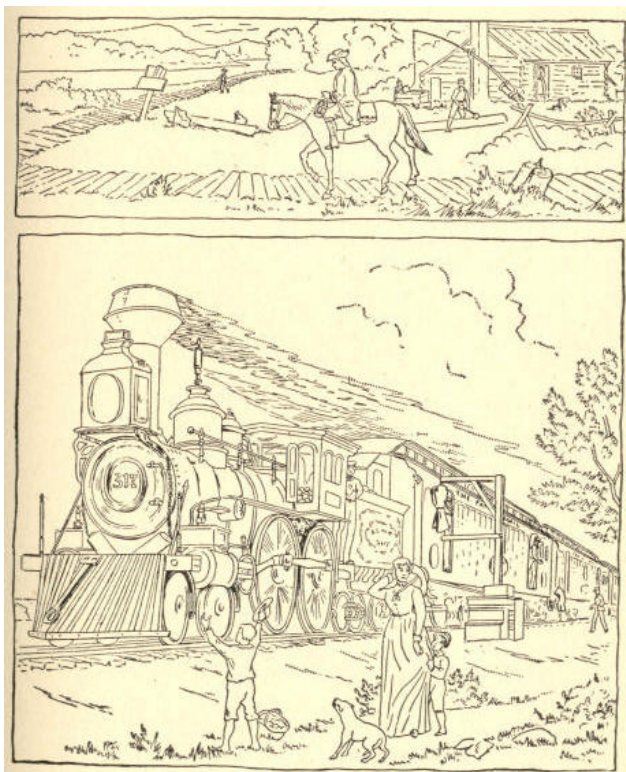
Papers sprung up at every considerable hamlet. Even the Ohio Valley did not lack. Perhaps four and a half million copies a year were issued in the whole country by 1800. They were admitted now--not so, however, under the original postal law--as a regular part of the mails, and thus found their way to nearly all homes.



Pine Tree Shilling.

The news which they brought was often old news, of course, post riders requiring twenty-nine and one-half hours between Philadelphia and either New York or Baltimore; but they were read with none the less avidity. Its first mail reached Buffalo in 1803, on horseback. Mail went thither bi-weekly till 1806, then weekly.

Postal rates were high, ranging for letters from six cents for thirty miles to twenty-five for four hundred and fifty miles or over.



Postal Progress, 1776-1876.

So late as 1796 New York City received mails from North and from South, and sent mails in both directions, only twice weekly between November 1st and May 1st, and but thrice weekly the rest of the year. In 1794 the great cities enjoyed carriers, who got two cents for each letter delivered. In 1785 there were two dailies, *The Pennsylvania Packet* and *The New York Advertiser*, but, as yet, no Sunday paper appeared, nor any scientific, religious, or illustrated journal, nor any devoted to literature or trade. *The New York Medical Repository* began in 1797, the first scientific periodical in America. In 1801 seventeen dailies existed. Paper was scarce and high, so that appeals were published in most of the news sheets imploring people to save their rags.

The press was more violently partisan and indecently personal than now. To oppose the federalist *United States Gazette* the republican *National Gazette* had been started, which, with brilliant meanness, assailed not only Washington's public acts, but his motives and character. Him, and still more Adams, Hamilton, and the other leading Federalists, it, in nearly every issue, charged with conspiracy to found a monarchy.

Republican journals reeked with such doggerel as:

"See Johnny at the helm of State,
Head itching for a crown;
He longs to be, like Georgy, great,
And pull Tom Jeffer downy."

[footnote: 2 McMaster, 383]

Federalists were not behind in warfare of this sort. Jefferson was the object of their continual and vilest slander. In New England, the stronghold of Federalism, nearly every Sunday's sermon was an arraignment of the French, and impliedly of their allies, the Republicans. [footnote: 2 McMaster, 383] From Jefferson's election--he was a conservative free-thinker--they seemed to anticipate the utter extermination of Christianity, though the man paid in charities, mostly religious, as for Bibles, missionaries, chapels, meeting-houses, etc., one year of his presidency, \$978.20; another year, \$1,585.60. One preacher likened the tribute which Talleyrand demanded of Adams's envoys to that which Sennacherib required of Hezekiah. [footnote: Isaiah, 36]

Another compared Hamilton, killed in a duel, to Abner, the son of Ner, slain by Joab. Another took for his text the message which Hezekiah sent to the Prophet Isaiah: "This is a day of trouble and of rebuke and of contumely,"[footnote: Isaiah, 37: 3 seq.] etc. Another attacked Republicanism outright from the words: "There is an accursed thing in the midst of thee, O Israel."[footnote: Joshua. 7: 13] The coolest federalist leaders could fall prey to this partisan temper. Lafayette meditated settling in this country. Such was his popularity here that no one would have dared to oppose this openly. Hamilton, however, while favoring it publicly, yet, lest the great Frenchman's coming should help on the republican cause, secretly did his utmost to prevent it. Even Washington, who was human after all, connived, it seems, at this piece of duplicity.

According to a federalist sheet, Hamilton's death called forth "the voice of deep lament" save from "the rancorous Jacobin, the scoffing deist, the snivelling fanatic, and the imported scoundrel." "Were I asked," said an apologist, "whether General Hamilton had vices, in the face of the world, in the presence of my God, I would answer, No."

Another poetized of the

"Great day
When Hamilton--disrobed of mortal clay--
At God's right hand shall sit with face benign,
And at his murderer cast a look divine."

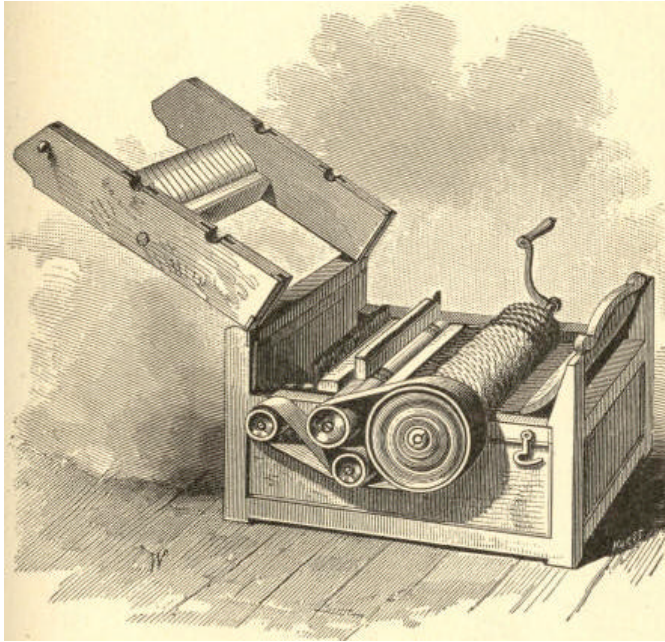
In 1800 instrumental music might have been heard in some American churches. There were Roman Catholic congregations in Boston, New York, Philadelphia, and Baltimore. Baltimore had its Catholic bishop. The Protestant Episcopal Church in America had been organized. Methodism, independent of England since 1784, was on its crusade up and down the land, already strong in New York and the South, and in 1790 a Methodist church had been gathered in Boston.

The manufacture of corduroys, bed-ticking, fustian, jeans, and cotton-yarn had been started. Iron ore and iron ware of nearly all sorts was produced. Syracuse was manufacturing salt. Lynn already made morocco leather, and Dedham, straw braid for hats. Cotton was regularly exported in small quantities from the South.



Cotton Plant.

In New York one could get a decayed tooth filled or a set of false teeth made. Four daily stages ran between New York and Philadelphia. The Boston ship *Columbia* had circumnavigated the globe. The United States Mint was still working by horse-power, not employing steam till 1815.



The Cotton-Gin.
From the original model.

Whitney's cotton-gin had been invented in 1793. Terry, of Plymouth, Conn., was making clocks. There were in the land two insurance companies, possibly more. Cast-iron ploughs, of home make, were displacing the old ones of wood. Morse's "Geography" and Webster's "Spelling-book" were on the market, and extensively used.

The great industrial inventions which were to color the entire civilization of mankind had a powerful effect upon America. So early as 1775, in England, Crompton's mule-jenny had superseded Hargreaves' spinning machine. The latter had improved on the old spinning-wheel by making eight, and later eighty, threads with the effort and time the old arrangement had required for one; but the threads were no better, and could be used only for woof, linen being required for warp. Arkwright's roller arrangement was an improvement upon Hargreaves'. It bettered the quality of the threads, making them even, so that they could serve for warp as well as woof. Crompton's mule was another quantitative improvement, combining the excellences of both Hargreaves and Arkwright. One man could with this machinery work twenty-two hundred spindles, and they went much faster than by the ancient wheel. Then came steam-power. Watts's engine was adapted to spinning and carding cotton at Manchester in 1783. Two years later the cylinder printing of cottons was invented, and a little after began the use of acid in bleaching.



Eli Whitney.

These mighty industrial devices did not cross to America immediately, but were all here before the time of which we now write. A spinning-jenny was indeed exhibited in Philadelphia so early as 1775. During the Revolution, Philadelphia was a seat of much manufacture. We have in an earlier chapter remarked that Beverly, Mass., had a cotton factory in 1787. Oxen furnished its power, as a horse did that for the first Philadelphia mill. A cotton mill was also started very early at Worcester, but whether in 1780 or 1789 may admit of doubt. There is some evidence that before July, 1790, a cotton factory run by water, with ginning, carding, and spinning machines, the last of eighty-four spindles apiece, was in operation near Statesburg, S. C.; but whether it was successful or not is not known. Oliver Evans was operating a single-flue boiler for steam-power by 1786.

Soon after he had one with two flues, and in 1779 a high-pressure or non-condensing engine, the principle of which he is by many believed to have invented. He was the earliest builder of steam-engines in the United States, having in 1804 secured a patent for the high-pressure device. His factory furnished engines to all parts of the country.

England did her best to prevent all knowledge of the new manufacturing machinery from crossing the Atlantic. The Act 21 George III., c. 37, denounced upon anyone who should aid toward giving America any tool, machine, or secret relating to manufacture in any branch, a penalty of 200 pounds and one year's imprisonment. In vain. Partly by smuggling, partly by invention, the new arts soon flourished here as there. Some Scotch artisans who came to Bridgewater, Mass., by invitation from Mr. Hugh Orr, of that town, constructed, about 1786, the first cotton-spinning machines in America, including the Arkwright inventions.

To build and launch the English machinery with full success was, however, reserved for Samuel Slater, a native of Belper, Derbyshire, England, who, in 1790, erected at Pawtucket, R. I., the Old Mill in rear of Mill Street, which still stands and runs. Slater had served his time at the making of cotton-manufacturing machinery with J. Strutt, who, had been Arkwright's partner. In Strutt's factory he had risen to be overseer. So thoroughly had he mastered the business that, on arriving here, he found himself able to imitate the foreign machines from memory alone, without model, plan, or measurement. Having gotten his gear in readiness, almost solely with his own hands, December 20, 1790, he started three cards, drawing and roving, also seventy-two spindles, all on the Arkwright plan, the first of the kind ever triumphantly operated on this side of the ocean. President Jackson styled Slater "the father of American manufactures," and 1790 may be taken as the birth-year of the American factory system.

The Tariff, the embargo policy of President Jefferson, and the hatred toward England, taking form in organizations pledged to wear only home-made clothing, all powerfully stimulated the erection of factories. A report in 1810, of Albert Gallatin, Madison's Secretary of the Treasury, states that by the end of the year preceding, eighty-seven cotton factories had arisen in this country, calculated for eighty thousand spindles. The power loom, however, not used in England till about 1806, did not begin its work here till after the War of 1812. [footnote: See. further, Period II., Chap. VIII.]

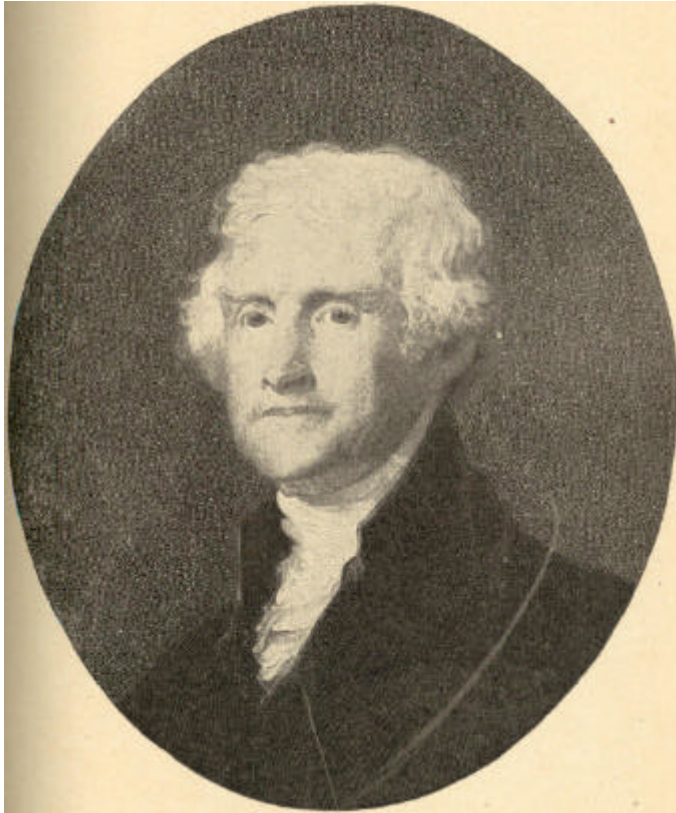
CHAPTER IX.

DEMOCRACY AT THE HELM

By the original mode of election, President and Vice-President could not be separately designated on electors' tickets, so that, soon as party spirit led each elector to vote for the same two men, these two were tied for the first place. This occurred in 1801. The republican candidates were Jefferson and Burr. Each had the same number of electoral votes, seventy-three, against sixty-five for Adams, sixty-four for C. C. Pinckney, and one for John Jay. There being no choice, the election went to the House. This had a federalist majority, but was, by the parity of the two highest candidates, constitutionally shut up to elect between these, both of them Republicans. Jefferson as the abler and from the South, was more than Burr an object of federalist hate.

Against Hamilton's advice, to his honor be it remembered, the Federalists agreed to throw their votes for Burr. But the vote then, as to-day in such a case, had to be by States. There were sixteen States, nine being necessary to a choice. In nineteen ballots on February 11th, nine the 12th, one the 13th, four the 14th, one each the 16th and 17th, thirty-five in all, Jefferson every time carried eight States and Burr six, while Maryland and Vermont were equally divided, and therefore powerless.

The fear at last began to be felt that the Union would go to pieces and the Federalists be to blame. Accordingly, on the 36th ballot, five Federalists from South Carolina, four from Maryland, one from Vermont, and one from Delaware--Mr. Bayard, grandfather to President Cleveland's first Secretary of State--did not vote, enabling the republican members from Vermont and Maryland to cast the votes of those States for Jefferson. Thus, with ten States, he was elected, Burr becoming Vice-President.



Thomas Jefferson.

From the painting by Gilbert Stuart--property of T. Jefferson Coolidge.

This crisis led, in 1804, to the XIIth Amendment to the Constitution, which directs each elector to vote for Vice-President as such. There can hardly now be a tie between the two leading presidential candidates, and if there is for any reason delay in electing the President, the Senate may proceed to elect the Vice-President at once. The improvement became manifest when, in 1825, the House again had to elect the President, and chose John Quincy Adams over Crawford and Jackson.

The Democratic Party proved to have entered upon a long lease of power. For forty years its hold upon affairs was not relaxed, and it was in no wise broken even by the elections of Harrison in 1840 and Taylor in 1848. Nor did it ever appear probable that the Whigs, upon anyone of the great issues which divided them from the Democrats, were in a way to win permanent advantage. Not till after 1850 had the ruling dynasty true reason to tremble, and then only at the rise of a new party, the modern Republicans, inspired by the bold cry of anti-slavery, which the Whigs had never dared to raise.

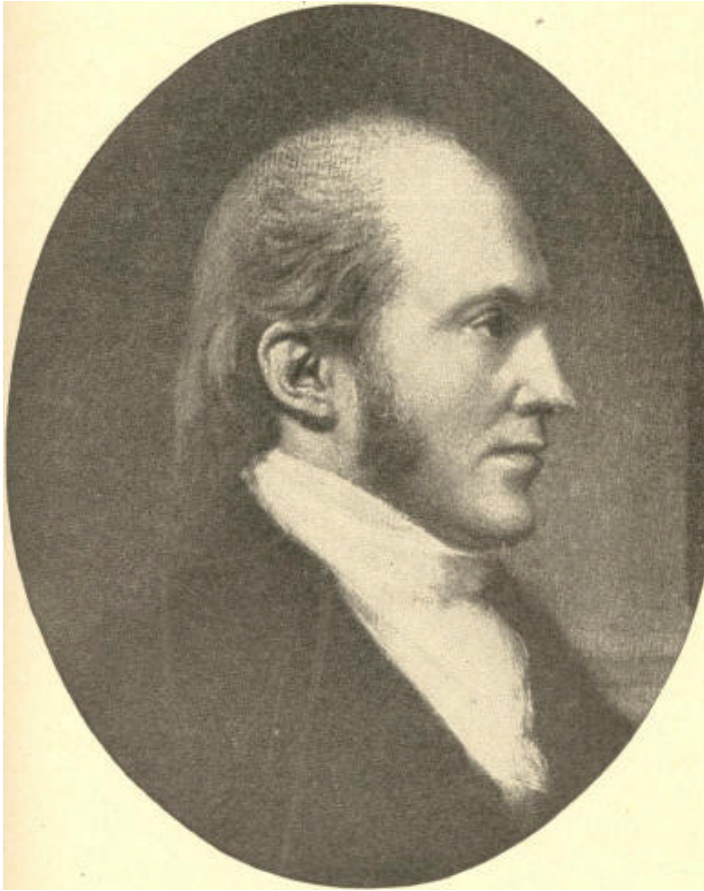
As to its main outlines, the democratic policy was well foreshadowed in Jefferson's first inaugural. It favored thrift and simplicity in government, involving close limitation of army, navy, and diplomatic corps to positive and tangible needs. It professed peculiar regard for the rights and interests of the common man, whether of foreign or of native parentage. Strict construction of the Constitution, which was to a great extent viewed as a compact of States, was another of its cherished ideas. It also maintained special friendliness for agriculture and commerce. From its strict constructionism sprung, further, its hostility to internal improvements; from this and from its regard to agriculture and commerce resulted its dislike to restrictive tariffs. Particularly after the whig schism, about 1820, did these ideas stand forth definite and pronounced as the authoritative democratic creed. In and from Jackson's time they were more so still.

Yet in most respects Jefferson has remained the typical Democrat, He had genuine faith in the people, in free government, in unfettered individuality, His administration was frugal almost to a fault. He insisted upon making the civil power supreme over the military, and scorned all pretensions on the part of any particular class to rule, In two points only was his democracy ideal rather than illustrative of that which followed, viz., adroitness in giving trend and consistency to legislation, and non-partisan administration of the civil service. In the former no executive has equalled him, in the latter none since Quincy Adams.

Growing up as a scholar and a gentleman-farmer, with refined tastes, penning the great Declaration, which was early scouted for its abstractions, long minister to France, where abstract ideas made all high politics morbid, the sage of Monticello turned out to be one of the most practical presidents this nation has ever had.

If he overdid simplicity in going to the Capitol on horseback to deliver his first inaugural, tying his magnificent horse, Wildair, to a tree with his own hands, he yet entertained elegantly, and his whole state as President, far from humiliating the nation, as some feared it would, was in happy keeping with its then development and nature. His cabinet, Madison, Gallatin, Dearborn, Smith, and Granger, was in liberal education superior to any other the nation has ever had, every member a college graduate, and the first two men of distinguished research and attainments.

As to the civil service, Jefferson, it is true, made many removals from office, some doubtless unwise and even unjust; but in judging of these we must remember his profound and unquestionably honest conviction that the Federalists lacked patriotism. It was this belief which dictated his prosecution, almost persecution, of Burr, whom Federalists openly befriended and defended.



Aaron Burr.

From a painting by Vallderlyn at the New York Historical Society.

Aaron Burr was the brilliant grandson of President Edwards. Graduating at Princeton at the early age of seventeen, he studied theology a year, then law, which on the outbreak of the Revolution he deserted for army life at Boston. He went in Arnold's expedition to Canada, was promoted to be colonel, and served on Washington's staff. In Canada he did service as a spy, disguised as a priest and speaking French or Latin as needed. His legal studies completed, 1783 found him in practice in New York, office at No. 10 Little Queen Street. Both as lawyer and in politics he rose like a meteor, being Hamilton's peer in the one, his superior in the other. Organizing his "Little Band" of young Republicans, spite of federalist opposition and sneers from the old republican chiefs, he became Attorney-general of New York in 1789. In 1791, superseding Schuyler, he was United States senator from that State, and in 1800, Vice-President.

Higher he could not mount, as federalist favor cursed him among his own party, yet was too weak to aid him independently. It was kept down by Hamilton, who saw through the man and opposed him with all his might. For this Burr forced him to a duel, and fatally shot him, July 11, 1804.

Indicted for murder, Burr now disappears from politics, but only to emerge in a new *role*. During all the early history of our Union the parts beyond the Alleghanies were attached to it by but a slender thread, which Spanish intrigue incessantly sought to cut. At this very time Spain was pensioning men in high station there, including General Wilkinson, commanding our force at New Orleans. Could not Burr detach this district or a part of it from our Government and make here an empire of his own? Or might he not take it as the base of operations for an attack on Spanish America that should give him an empire there? Some vision of this sort danced before the mad genius's vision, as before that of Hamilton in the Miranda scheme. Many influential persons encouraged him, with how much insight into his plan we shall never know. Wilkinson was one of these. Blennerhassett, whose family and estate Burr irreparably blasted, was another. He expected aid from Great Britain, and from disaffected Mexicans.

From the outset the West proved more loyal than he hoped, and when, at the critical moment, Wilkinson betrayed him, he knew that all was lost. Sinking his chests of arms in the river near Natchez, he took to the Mississippi woods, only to be recognized, arrested by Jefferson's order, and dragged to Richmond to jail. As no overt act was proved, he could not be convicted of treason; and even the trial of him for misdemeanor broke down on technical points. The Federalists stood up for Burr as if he had been their man, while Jefferson on his part pushed the prosecution in a fussy and personal way, ill becoming a President.

Jefferson's most lasting work as national chief-magistrate was his diplomacy in purchasing for the Union the boundless territory beyond the Mississippi, prized then not for its extent or resources, both as yet unknown, but as assuring us free navigation of the river, which sundry French and Spanish plots had demonstrated essential to the solid loyalty of the West.

Louisiana, ceded by France to Spain in 1762, became French again in 1801. Napoleon had intended it as the seat of a colonial power rivalling Great Britain's, but, pressed for money in his new war with that kingdom, concluded to sell. He wished, too, the friendship of the United States against Great Britain, and knew not the worth of what he was bargaining away. Willing to take fifty million francs, he offered for one hundred million, speedily closing with Livingston and Monroe's tender of eighty, we to assume in addition the French spoliation claims of our citizens. The treaty of purchase was signed May 2, 1803, and ratified by the Senate the 17th of the following October.

This stupendous transaction assured to our Republic not only leading hand in the affairs of this continent, but place among the great powers of the world. Its 1,124,685 square miles doubled the national domain. It opened path well toward, if not to, the Pacific, and made ours measureless tracts of agricultural and mining lands, rich as any under the sun.



Stephen Decatur.

If it originated many of the most perplexing questions which have agitated our national politics, as those relating to slavery in this territory itself, to the acquisitions from Mexico, to the Pacific railways, and to the Indians and the Chinese, all this has been amply compensated by the above and countless other benefits.

Equally brilliant if less impressive was another piece of Jefferson's foreign policy. He might be over-friendly to France, but elsewhere he certainly did not believe in peace at any price. The Barbary powers had begun to annoy our commerce soon after Independence. The *Betsey* was captured in 1784, next year the *Maria*, of Boston, and the *Dauphin*, of Philadelphia, and their crews of twenty-one men carried to a long and disgraceful captivity in Algiers.

The Dey's bill for these captives, held by him as slaves, was:

3 Captains at \$6,000	\$18,000
2 Mates at \$4,000	8,000
2 Passengers at \$4,000	8,000
14 Seamen at \$1,400	19,600

	\$53,600
For custom, eleven per cent	5,896

	\$59,496

Later a single cruise lost us ten vessels to these half-civilized people.

Following European precedent, Washington had made, in 1795, a ransom-treaty with this nest of pirates, to carry out which cost us a fat million. The captives had meantime increased to one hundred and fifteen, though the crews of the *Maria* and the *Dauphin* had wasted away to ten men. Nearly a million more went to the other North-African freebooters. The policy of ransoming was, indeed, cheaper than force. Count d'Estaing used to say that bombarding a pirate town was like breaking windows with guineas. The old Dey of Algiers, learning the expense of Du Quesne's expedition to batter his capital, declared that he himself would have burnt it for half the sum.

Yet it makes one's blood hot to-day to read how our fathers paid tribute to those thieves. The Dey had, in so many words, called us his slaves, and had actually terrorized Captain Bainbridge, of the man-of-war *George Washington*, into carrying despatches for him to Constantinople, flying the Algerine pirate flag conspicuously at the fore. After anchoring--this was some requital--Bainbridge was permitted to hoist the Stars and Stripes, the first time that noble emblem ever kissed the breeze of the Golden Horn.

Jefferson loathed such submission, and vowed that it should cease. Commodore Dale was ordered to the Mediterranean with a squadron to protect our ships there from further outrage. One of his vessels, the *Experiment*, soon captured a Tripoli cruiser of fourteen guns, the earliest stroke of any civilized power for many years by way of showing a bold front to these pestilent corsairs.

This was on August 6, 1801. In 1803 Preble was placed in command of the Mediterranean fleet, with some lighter ships to go farther up those shallow harbors. Bainbridge had the misfortune while in pursuit of a Tripoli frigate to run his ship, the *Philadelphia*, on a rock, and to be taken prisoner with all his crew. The sailors were made slaves.



Lieutenant Decatur on the Turkish Vessel
during the Bombardment of Tripoli.

Lieutenant Decatur penetrated the Tripoli harbor under cover of night, and burned the Philadelphia to the water's edge. Tripoli was bombarded, and many of its vessels taken or sunk. Commodore Barron, who had succeeded Preble, co-operated with a land attack which some of the Pasha's disaffected subjects, led by the American General Eaton, made upon Tripoli. The city was captured, April 27th, and the pirate prince forced to a treaty. Even now, however, we paid \$60,000 in ransom money.

CHAPTER X.

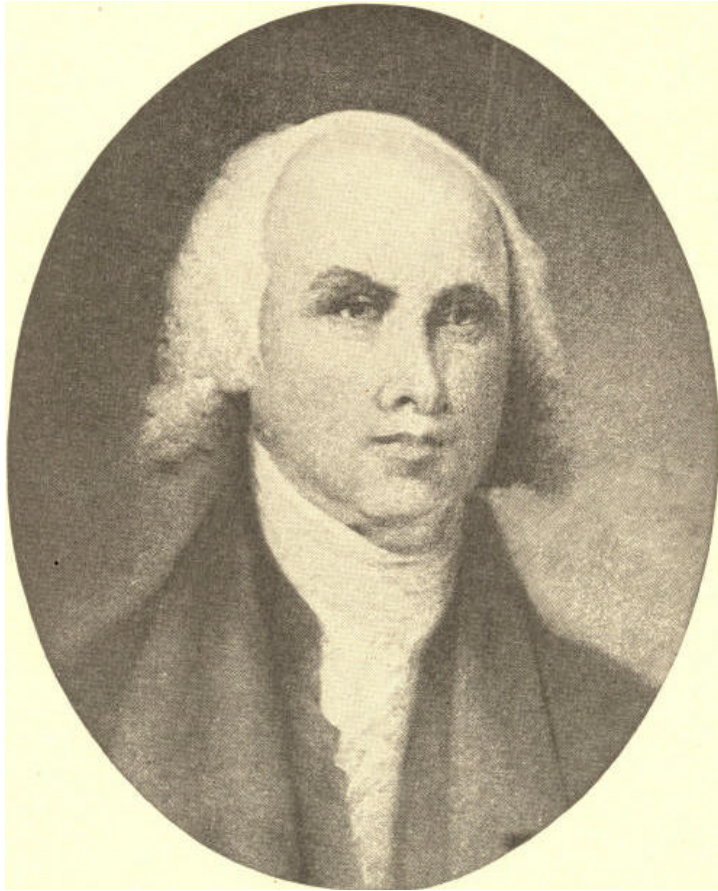
THE WAR OF 1812

Although paying, so long as Jay's treaty was in force, for certain invasions of our commerce, Great Britain had never adopted a just attitude toward neutral trade. She persisted in loosely defining contraband and blockade, and in denouncing as unlawful all commerce which was opened to us as neutrals merely by war or carried on by us between France and French colonies through our own ports.

The far more flagrant abuse of impressment, the forcible seizure of American citizens for service in the British navy, became intolerably prevalent during Jefferson's administration. Not content with reclaiming deserters or asserting the eternity of British citizenship, Great Britain, through her naval authorities, was compelling thousands of men of unquestioned American birth to help fight her battles.

Castlereagh himself admitted that there had been sixteen hundred *bona fide* cases of this sort by January 1, 1811. And in her mode of asserting and exercising even her just claims she ignored international law, as well as the dignity and sovereignty of the United States. The odious right of search she most shamefully abused. The narrow seas about England were assumed to be British waters, and acts performed in American harbors admissible only on the open ocean. When pressed by us for apology or redress, the British Government showed no serious willingness to treat, but a brazen resolve to utilize our weak and too trustful policy of peace.

One instance of this shall suffice. Commodore Barron, in command of the United States war vessel Chesapeake, was attacked by the Leopard, a British two-decker of fifty guns, outside the mouth of Chesapeake Bay, to recover three sailors, falsely alleged to be British-born, on board.



James Madison.

From a painting by Gilbert Stuart--property of T. Jefferson Coolidge.

Their surrender being refused, the Leopard opened fire. The Chesapeake received twenty-one shots in her hull, and lost three of her crew killed and eighteen wounded. She had been shamefully unprepared for action, and was hence forced to strike, but Humphreys, the Leopard's commander, contemptuously declined to take her a prize. There was no excuse whatever for this wanton and criminal insult to our flag, yet the only reparation ever made was formal, tardy, and lame.

Bad was changed to worse with the progress of the new and more desperate war between Great Britain and Napoleon. The Emperor shut the North-German ports to Britain; Britain declared Prussian and all West European harbors in a state of blockade. The Emperor's Berlin decree, November, 1806, paper-blockaded the British Isles; his Milan decree, December, 1807, declared forfeited all vessels, wherever found, proceeding to or from any British port, or having submitted to British search or tribute.

In fine, Britain would treat as illicit all commerce with the continent, France all with Britain. But while Napoleon, in fact, though not avowedly, more and more receded from his position, England maintained hers with iron tenacity.

Sincere as was our Government's desire to maintain strict neutrality in the European conflict, it naturally found difficulty in making England so believe. Their opponents at home ceaselessly charged Jefferson, Madison, and all the Republicans with partiality to France, so that Canning and Castlereagh were misled; and they were confirmed in their suspicion by Napoleon's crafty assumption that our embargo or non-intercourse policy was meant to act, as it confessedly did, favorably to France. Napoleon's confiscation of our vessels, at one time sweeping, he advertised as a friendly proceeding in aid of our embargo. Yet all this did not, as Castlereagh captiously pretended, prove our neutrality to be other than strict and honest. At this time it certainly was both. So villainously had Napoleon treated us that all Americans now hated him as heartily as did any people in England.

The non-intercourse mode of hostility, a boomerang at best, had played itself out before Jefferson's retirement; and since George's ministry showed no signs whatever of a changed temper, guiltily ill-prepared as we were, no honorable or safe course lay before us but to fight Great Britain. Clay, Calhoun, Quincy Adams, and Monroe--the last the soul of the war--deserved the credit of seeing this first and clearest, and of the most sturdy and consistent action accordingly. Their spirit proved infectious, and the Republicans swiftly became a war party.

Most of the "war-hawks," as they were derisively styled, were from the South and the southern Middle States. Fearing that, if it were a naval war, glory would redound to New England and New York, which were hotbeds of the peace party, they wished this to be a land war, and shrieked, "On to Canada." They made a great mistake.

The land operations were for the most part indescribably disgraceful. Except the exploits of General Brown and Colonel Winfield Scott, subsequently the head of the national armies, not an action on the New York border but ingloriously failed. The national Capitol was captured and burnt, a deed not more disgraceful to England in the commission than to us in the permission. Of the officers in command of armies, only Harrison and Jackson earned laurels.

Harrison had learned warfare as Governor of Indiana, where, on November 7, 1811, he had fought the battle of Tippecanoe, discomfiting Tecumseh's braves and permanently quieting Indian hostilities throughout that territory. In the new war against England, after Hull's pusillanimous surrender of Detroit, the West loudly and at length with success demanded "Tippecanoe" as commander for the army about to advance into Canada. Their estimate of Harrison proved just. Overcoming many difficulties and aided by Perry's flotilla on Lake Erie, he pursued Proctor, his retreating British antagonist, up the River Thames to a point beyond Sandwich.



Tecumseh

Here the British made a stand, but a gallant charge of Harrison's Kentucky cavalry irreparably broke their lines. The Indians, led by old Tecumseh in person, made a better fight, but in vain. The victory was complete, and Upper Canada lay at our mercy.

Andrew Jackson also began his military experience by operations against Indians. The southern redskins had been incited to war upon us by British and Spanish emissaries along the Florida line. Tecumseh had visited them in the same interest. The horrible massacre at Fort Mims, east of the Alabama above its junction with the Tombigbee, was their initial work. Five hundred and fifty persons were there surprised, four hundred of them slain or burned to death. Jackson took the field, and in an energetic campaign, with several bloody engagements, forced them to peace. By the battle of the Horse-Shoe, March 27, 1814, the Creek power was entirely crushed.

Subsequently placed in command of our force at New Orleans, Jackson was attacked by a numerous British army, made up in large part of veterans who had seen service under Wellington in Spain. Pakenham, the hero of Salamanca, commanded. Jackson's position was well chosen and strongly fortified.

After several preliminary engagements, each favorable to the American arms, Pakenham essayed to carry the American works by storm. The battle occurred on January 8, 1815. It was desperately fought on both sides, but at its close Jackson's loss had been trifling and his line had not been broken at a single point, while the British had lost at least 2,600, all but 500 of these killed or wounded. The British immediately withdrew from the Mississippi, leaving Jackson entirely master of the position.

But the naval operations of this war were far the most famous, exceeding in their success all that the most sanguine had dared to hope, and forever dispelling from our proud foe the charm of naval invincibility. The American frigate *Constitution* captured the British *Guerriere*. The *Wasp* took the *Frolic*, being soon, however, forced to surrender with her prize to the *Poitiers*, a much larger vessel. The United States vanquished the *Macedonian*, and the *Constitution* the *Java*. One of the best fought actions of the war was that of McDonough on Lake Champlain, with his craft mostly gunboats or galleys. His victory restored to us the possession of Northern New York, which our land forces had not been able to maintain.



Oliver H. Perry.

The crowning naval triumph during the war, one of the most brilliant, in fact, in all naval annals, was won by Oliver Hazard Perry near Put-in-Bay on Lake Erie, September 10, 1813, over the Briton, Barclay, a naval veteran who had served under Nelson at Trafalgar.

The fleets were well matched, the American numbering the more vessels but the fewer guns. Barclay greatly exceeded Perry in long guns, having the latter at painful disadvantage until he got near. Perry's flag-ship, the *Lawrence*, was early disabled. Her decks were drenched with blood, and she had hardly a gun that could be served. Undismayed, Perry, with his insignia of command, crossed in a little boat to the *Niagara*. Again proudly hoisting his colors, aided by the wind and followed by his whole squadron, he pressed for close quarters, where desperate fighting speedily won the battle. Barclay and his next in command were wounded, the latter dying that night. "We have met the enemy and they are ours," Perry wrote to Harrison, "two ships, two brigs, one schooner, and one sloop."

Triumph far more complete might have attended the war but for the perverse and factious federalist opposition to the administration. Some Federalists favored joining England out and out against Napoleon. Having with justice denounced Jefferson's embargo tactics as too tame, yet when the war spirit rose and even the South stood ready to resent foreign affronts by force, they changed tone, harping upon our weakness and favoring peace at any price. Tireless in magnifying the importance of commerce, they would not lift a hand to defend it. The same men who had cursed Adams for avoiding war with France easily framed excuses for orders in council, impressment, and the Chesapeake affair.

Apart from Randolph and the few opposition Republicans, mostly in New York, this Thersites band had its seat in commercial New England, where embargo and war of course sat hardest, more than a sixth of our entire tonnage belonging to Massachusetts alone. From the Essex Junto and its sympathizers came nullification utterances not less pointed than the Virginia and Kentucky resolutions, although, considering the sound rebukes which the latter had evoked, they were far less defensible.



Perry transferring his Colors from the Lawrence to the Niagara.

Disunion was freely threatened, and actions either committed or countenanced bordering hard upon treason. The Massachusetts Legislature in 1809 declared Congress's act to enforce embargo "not legally binding." Governor Trumbull of Connecticut declined to aid, as requested by the President, in carrying out that act, summoning the Legislature "to interpose their protecting shield" between the people and "the assumed power of the general Government." "How," wrote Pickering, referring to the Constitution, Amendment X., "are the powers reserved to be maintained, but by the respective States judging for themselves and putting their negative on the usurpations of the general Government?" A sermon of President Dwight's on the text, "Come out from among them and be ye separate, saith the Lord," even Federalists deprecated as hinting too strongly at secession. This unpatriotic agitation, from which, be it said, large numbers of Federalists nobly abstained, came to a head in the mysterious Hartford Convention, at the close of 1814, and soon began to be sedulously hushed--in consequence of the glorious news of victory and peace from Ghent and New Orleans.

While the Congregationalists, especially their clergy, were nearly all stout Federalists, opposing Jefferson, Madison, and the war, the Methodists and Baptists almost to a man stood up for the administration and its war policy with the utmost vigor, rebuking the peace party as traitors. [footnote: The writer's grandfather, a Baptist minister, was as good as driven from his pulpit and charge at Templeton, Mass., because of his federalist sympathies in this war.] Timothy Merritt, a mighty Methodist preacher on the Connecticut circuit, has left us from these critical times a stirring sermon on the text, Judges v. 23, "Curse ye Meroz, said the angel of the Lord, curse ye bitterly the inhabitants thereof; because they came not up to the help of the Lord, to the help of the Lord against the mighty." Meroz was the federalist party and England's ministry and army were "the mighty."

Czar Alexander, regarding our hostility as dangerous to England, with whom he then stood allied against Napoleon, sought to end the war. The Russian campaign of 1812 practically finished Napoleon's career, so leaving England free to press operations in America. In April, 1814, Paris was captured. The United States therefore accepted Alexander's offices. Our commissioners, Adams, Clay, Gallatin, Marshall, Bayard, and Russell met the English envoys at Ghent, and after long discussions, in which more than once it seemed as if the war must proceed, the treaty of Ghent was executed, December 24, 1814, a fortnight before the battle of New Orleans.

It was an honorable peace. If we gained no territory we yielded none. The questions of Mississippi navigation and the fisheries were expressly reserved for future negotiations. Upon impressment and the abuse of neutrals, exactly the grievances over which we had gone to war, the treaty was silent, and peace men laughed at the war party on this account, calling the war a failure. The ridicule was unjust. Had Napoleon been still on high, or the negotiations been subsequent to the New Orleans victory, England would doubtless have been called upon to renounce these practices.

But experience has proved that such a demand would have been unnecessary. No outrage of these kinds has occurred since, nor can anyone doubt that it was our spirit as demonstrated in the war of 1812 which changed England's temper. Hence, in spite of our military inexperience, financial distress, internal dissensions, and the fall of Napoleon, which unexpectedly turned the odds against us, the war was a success.

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